

# Polity

Consolidated Must-Score Facts and must-score drill cards for every chapter.

UPPCS + UKPCS Study Library · chapter order follows Subject Notes.

## Chapters

---

1. Daily Read — High-Yield Revision Facts
2. Topic 1 — Constitutional Development
3. Topic 2 — Features of the Constitution
4. Topic 3 — Parts, Articles & Schedules
5. Topic 4 — Union & Territory
6. Topic 5 — Fundamental Rights & Duties
7. Topic 6 — Union Executive
8. Topic 7 — Parliament
9. Topic 8 — State Government
10. Topic 9 — Judiciary
11. Topic 10 — Local Government
12. Topic 11 — Centre–State Relations
13. Topic 12 — Constitutional Bodies
14. Topic 13 — Statutory & Non-Constitutional Bodies
15. Topic 14 — Elections
16. Topic 15 — Emergency Provisions
17. Topic 16 — Constitutional Amendments
18. Topic 17 — Language & Special Provisions
19. Topic 18 — Political Parties & Pressure Groups
20. Topic 19 — Acts & Governance
21. Topic 20 — Internal Security
22. Topic 21 — International Relations
23. Topic 22 — Constitutional Philosophy
24. Topic 23 — Constitutional & Legal Offices
25. Topic 24 — Important Supreme Court Judgments
26. Topic 25 — UP Special
27. Topic 26 — One-Liner Revision
28. Uttarakhand — Topic 1 — Constitutional Framework
29. Uttarakhand — Topic 2 — Public Services, PSC & Auditing
30. Uttarakhand — Topic 3 — High Court & Jurisdiction
31. Uttarakhand — Topic 4 — SC/ST, Minorities & Language
32. Uttarakhand — Topic 5 — Funds, Parties & Elections
33. Uttarakhand — Topic 6 — Local Government & PR
34. Uttarakhand — Topic 7 — Governance & Rights Schemes

1. Borrowed Features of the Indian Constitution (Country-Wise Master Table)

| Source Country / Document                                  | Borrowed Features & Principles                                                                                                                                                                                                                                                                           |
|------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Government of India Act 1935 (Major Source — >50% of text) | Federal Scheme, Office of Governor, Judiciary structure, Public Service Commissions (UPSC/SPSC), Emergency provisions (administrative details), Administrative details.                                                                                                                                  |
| United Kingdom (British Constitution)                      | Parliamentary form of government, Rule of Law (Art. 14), Legislative procedure, <b>Single Citizenship</b> , Cabinet system, Prerogative <b>Wrists</b> (Art. 32/226), Parliamentary privileges (Art. 105), <b>Bicameralism</b> , Office of Speaker & Deputy Speaker.                                      |
| United States (American Constitution)                      | <b>Fundamental Rights</b> (Part III), Independence of Judiciary, <b>Judicial Review</b> (Art. 13), <b>Impeachment of the President</b> (Art. 61), Removal of Supreme Court & High Court judges, Post of <b>Vice-President</b> (ex-officio Chairman of Rajya Sabha), Preamble phrasing ("We the People"). |
| Ireland (Irish Constitution 1937)                          | <b>Directive Principles of State Policy (DPSP)</b> (Part IV), Nomination of 12 members to Rajya Sabha by President, Method of <b>Election of the President</b> (proportional representation by STV).                                                                                                     |
| Canada                                                     | Federation with a <b>strong Centre</b> , Vesting of <b>Residuary Powers in the Centre</b> (Art. 248), <b>Appointment of State Governors by the Centre</b> , Advisory jurisdiction of the Supreme Court (Art. 143).                                                                                       |
| Australia                                                  | <b>Concurrent List</b> (7th Schedule), Freedom of Trade, Commerce, and Intercourse (Part XIII), <b>Joint Sitting of both Houses of Parliament</b> (Art. 108).                                                                                                                                            |
| Germany (Weimar Constitution)                              | <b>Suspension of Fundamental Rights during National Emergency</b> (Art. 359). (Note: Emergency itself is from GOI 1935, suspension of FR is from Weimar!)                                                                                                                                                |
| USSR / Russia (Soviet Constitution)                        | <b>Fundamental Duties</b> (Art. 51A, Part IVA - 42nd Amd 1976), Ideals of <b>Justice (Social, Economic, and Political)</b> in the Preamble, Five-Year Plans.                                                                                                                                             |
| France (French Constitution)                               | Ideals of <b>Liberty, Equality, and Fraternity</b> in the Preamble; <b>Republic</b> character of the Indian State.                                                                                                                                                                                       |
| South Africa                                               | Procedure for <b>Amendment of the Constitution</b> (Art. 368), <b>Election of members of the Rajya Sabha</b> (by elected MLAs via STV).                                                                                                                                                                  |
| Japan                                                      | Procedure established by Law ( <i>Vidhi dwara sthapit prakriya</i> - Art. 21).                                                                                                                                                                                                                           |

2. Parts of the Indian Constitution (All 25 Parts Cheat-Sheet)

Originally 22 Parts in 1950; currently 25 Parts (counting sub-parts: IVA, IXA, IXB, XIVA; Part VII repealed).

| Part       | Roman | Subject Matter Covered                         | Article Span         | Key Prelims Takeaway / Recurring Trap                                                                                                                                                                                                                                           |
|------------|-------|------------------------------------------------|----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Part I     | I     | The Union and its Territory                    | Arts. 1–4            | Art. 1: "India, that is Bharat, shall be a Union of States"; Art. 3: Parliament alters state boundaries/names by simple majority                                                                                                                                                |
| Part II    | II    | Citizenship                                    | Arts. 5–11           | Single citizenship (borrowed from UK); Citizenship Act 1955                                                                                                                                                                                                                     |
| Part III   | III   | Fundamental Rights                             | Arts. 12–35          | " <b>Magna Carta of India</b> "; borrowed from US Bill of Rights; justifiable                                                                                                                                                                                                   |
| Part IV    | IV    | Directive Principles of State Policy (DPSP)    | Arts. 36–51          | Borrowed from Ireland; non-justiciable; fundamental in the governance of the country                                                                                                                                                                                            |
| Part IVA   | IV-A  | Fundamental Duties                             | Art. 51A             | Added by <b>42nd Amendment 1976</b> (Swaran Singh Committee); 10 originally, 11th added by <b>86th Amendment 2002</b> ; non-justiciable                                                                                                                                         |
| Part V     | V     | The Union Government                           | Arts. 52–151         | Ch. 1: Executive (52–78), Ch. 2: Parliament (79–122), Ch. 3: President's Legislative Power (123), Ch. 4: Union Judiciary (124–147), Ch. 5: CAG (148–151)                                                                                                                        |
| Part VI    | VI    | The State Governments                          | Arts. 152–237        | Governor (153–162), State Legislature (168–212), Governor's Ordinance (213), High Courts (214–232), Subordinate Courts (233–237)                                                                                                                                                |
| Part VII   | VII   | States in Part B of First Schedule             | Art. 238             | <b>REPEALED</b> by <b>7th Constitutional Amendment Act 1956</b>                                                                                                                                                                                                                 |
| Part VIII  | VIII  | The Union Territories                          | Arts. 239–242        | Administration of UTs by President through Administrator / Lieutenant Governor; Art. 239AA: Special status to NCT of Delhi (69th Amd 1991)                                                                                                                                      |
| Part IX    | IX    | The Panchayats                                 | Arts. 243 to 243-O   | Inserted by <b>73rd Amendment 1992</b> ; 3-tier Panchayati Raj; 11th Schedule (29 functional items)                                                                                                                                                                             |
| Part IXA   | IX-A  | The Municipalities                             | Arts. 243P to 243ZG  | Inserted by <b>74th Amendment 1992</b> ; Urban Local Bodies; 12th Schedule (18 functional items)                                                                                                                                                                                |
| Part IXB   | IX-B  | The Co-operative Societies                     | Arts. 243ZH to 243ZT | Inserted by <b>97th Amendment 2011</b> (partially struck down in 2021 for state cooperatives, holds for multi-state)                                                                                                                                                            |
| Part X     | X     | The Scheduled and Tribal Areas                 | Arts. 244–244A       | 5th & 6th Schedules administration                                                                                                                                                                                                                                              |
| Part XI    | XI    | Relations between the Union and the States     | Arts. 245–263        | Ch. 1: Legislative Relations (245–255), Ch. 2: Administrative Relations (256–263); Art. 263: Inter-State Council. <b>Trap: NOT municipalities or tribunals!</b>                                                                                                                 |
| Part XII   | XII   | Finance, Property, Contracts and Suits         | Arts. 264–300A       | Consolidated Fund (266), Contingency Fund (267), GST Council (279A), Finance Commission (280); <b>Art. 300A</b> : Right to Property (Legal/Constitutional right, NOT fundamental right!)                                                                                        |
| Part XIII  | XIII  | Trade, Commerce and Intercourse within India   | Arts. 301–307        | Freedom of inter-state trade and commerce                                                                                                                                                                                                                                       |
| Part XIV   | XIV   | Services under the Union and the States        | Arts. 308–323        | All India Services (Art. 312 created by Rajya Sabha); UPSC & State PSCs (Arts. 315–323)                                                                                                                                                                                         |
| Part XIVA  | XIV-A | Tribunals                                      | Arts. 323A–323B      | Added by <b>42nd Amendment 1976</b> (Swaran Singh Committee); 323A: Administrative Tribunals (CAT/SAT), 323B: Other Tribunals                                                                                                                                                   |
| Part XV    | XV    | Elections                                      | Arts. 324–329A       | Art. 324: Election Commission of India; Art. 326: Universal Adult Suffrage                                                                                                                                                                                                      |
| Part XVI   | XVI   | Special Provisions Relating to Certain Classes | Arts. 330–342A       | Reservation of seats in Lok Sabha & State Assemblies (SC: 330/332; ST: 330/332); NCSC (338), NCST (338A), NCBC (338B)                                                                                                                                                           |
| Part XVII  | XVII  | Official Language                              | Arts. 343–351        | Ch. 1: Official Language of Union (343 - Hindi in Devanagari script), Ch. 2: Regional Languages (345), Ch. 3: Judiciary (348), Ch. 4: Special Directives (350A: Primary instruction in mother tongue, 350B: Special Officer for Linguistic Minorities, 351: Promotion of Hindi) |
| Part XVIII | XVIII | Emergency Provisions                           | Arts. 352–360        | Art. 352: National Emergency, Art. 356: President's Rule (State Emergency), Art. 360: Financial Emergency                                                                                                                                                                       |
| Part XIX   | XIX   | Miscellaneous                                  | Arts. 361–367        | Art. 361: Immunity of President and Governors from criminal prosecution                                                                                                                                                                                                         |

| Part      | Roman | Subject Matter Covered                         | Article Span  | Key Prelims Takeaway / Recurring Trap                                                                                                                                                                                                                                                                                                |
|-----------|-------|------------------------------------------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Part XX   | XX    | Amendment of the Constitution                  | Art. 368      | Constituent power of Parliament to amend the Constitution (borrowed from South Africa)                                                                                                                                                                                                                                               |
| Part XXI  | XXI   | Temporary, Transitional and Special Provisions | Arts. 369–392 | Special provisions for states: <b>Art. 371 (Maha &amp; Guj)</b> , <b>371A (Nagaland)</b> , <b>371B (Assam)</b> , <b>371C (Manipur)</b> , <b>371D &amp; E (Andhra/Telangana)</b> , <b>371F (Sikkim)</b> , <b>371G (Mizoram)</b> , <b>371H (Arunachal)</b> , <b>371-I (Goa)</b> , <b>371J (Karnataka - Hyderabad-Karnataka region)</b> |
| Part XXII | XXII  | Short Title, Commencement & Repeals            | Arts. 393–395 | Short title: "Constitution of India"                                                                                                                                                                                                                                                                                                 |

### 3. All 12 Schedules (The Master Mnemonic: TEARS OF OLD PM)

| Schedule | Mnemonic Letter | Subject Matter                     | Key Details / High-Yield Trap                                                                                                                                                                                                                                                                                                                 |
|----------|-----------------|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1st      | T               | Territories                        | Names of the 28 States and 8 Union Territories and their territorial extents                                                                                                                                                                                                                                                                  |
| 2nd      | E               | Emoluments & Salaries              | Salaries, allowances, and pensions of: President, Governors, Lok Sabha Speaker/Deputy Speaker, Rajya Sabha Chairman/Deputy Chairman, SC/HC Judges, CAG. <b>PM and Ministers are NOT in the 2nd Schedule!</b>                                                                                                                                  |
| 3rd      | A               | Affirmations & Oaths               | Forms of Oaths for: Union/State Ministers, MPs/MLAs, SC/HC Judges, CAG. <b>President (Art. 60), Vice-President (Art. 69), and Governors (Art. 159) have oaths under separate articles, NOT in the 3rd Schedule!</b>                                                                                                                           |
| 4th      | R               | Rajya Sabha Seat Allocation        | Allocation of seats in the Council of States to States and UTs. <b>Uttar Pradesh has the highest: 31 seats; Uttarakhand has 3 seats.</b>                                                                                                                                                                                                      |
| 5th      | S               | Scheduled Areas & Tribes           | Administration and control of Scheduled Areas and Scheduled Tribes in 10 states (excluding the 4 states of the 6th Schedule); Tribes Advisory Council                                                                                                                                                                                         |
| 6th      | O               | Other Tribal Areas                 | Administration of Tribal Areas in <b>4 North-Eastern States: AMTM = Assam, Meghalaya, Tripura, Mizoram</b> (Autonomous District Councils; <b>Manipur is NOT in the 6th Schedule!</b> )                                                                                                                                                        |
| 7th      | F               | Federal Lists (Division of Powers) | Three legislative lists:<br>1. <b>Union List:</b> Originally 97, now <b>100 subjects</b><br>2. <b>State List:</b> Originally 66, now <b>61 subjects</b><br>3. <b>Concurrent List:</b> Originally 47, now <b>52 subjects</b> (Education, Forests, Weights & Measures, Wild animals & birds, Administration of justice transferred by 42nd Amd) |
| 8th      | O               | Official Languages                 | <b>22 recognized languages</b> (Originally 14):<br>• 1967 (21st Amd): Added <b>Sindhi</b><br>• 1992 (71st Amd): Added <b>Konkani, Manipuri, Nepali</b> (KMN)<br>• 2003 (92nd Amd): Added <b>Bodo, Dogri, Maithili, Santhali</b> (BDMS)<br><b>Traps: English and Bhojpuri are NOT in the 8th Schedule!</b>                                     |
| 9th      | L               | Land Reforms & Validation          | Added by <b>1st Amendment 1951</b> to protect land reform laws from judicial review; <b>I.R. Coelho Case (2007)</b> : SC ruled laws placed in 9th Schedule post <b>24 April 1973</b> (Kesavananda judgment date) are <b>open to judicial review</b>                                                                                           |
| 10th     | D               | Defection (Anti-Defection Law)     | Added by <b>52nd Amendment 1985</b> ; disqualification on ground of defection; decided by Presiding Officer; subject to judicial review ( <b>Kihoto Hollohan 1992</b> ); split exemption of 1/3 deleted by 91st Amd 2003; merger requires <b>2/3rd members</b>                                                                                |
| 11th     | P               | Panchayati Raj                     | Added by <b>73rd Amendment 1992</b> ; specifies <b>29 functional subjects</b> within the purview of Panchayats (Article 243G)                                                                                                                                                                                                                 |
| 12th     | M               | Municipalities                     | Added by <b>74th Amendment 1992</b> ; specifies <b>18 functional subjects</b> within the purview of Municipalities (Article 243W)                                                                                                                                                                                                             |

### 4. Warrant of Precedence (Order of Precedence, 1979 Notification)

Frequently tested in arrange-order questions in UPPCS/UKPCS:

- Rank 1: President of India**
- Rank 2: Vice-President of India**
- Rank 3: Prime Minister of India**
- Rank 4: Governors of States** (within their respective States)
- Rank 5: Former Presidents** - *Rank 5A: Deputy Prime Minister* (if any)
- Rank 6: Chief Justice of India (CJI)** and **Speaker of Lok Sabha** (*Both have equal rank!*)
- Rank 7: Cabinet Ministers of the Union, Chief Ministers of States** (within respective states), Deputy Chairman of NITI Aayog (former Planning Commission), **Leaders of Opposition in Rajya Sabha and Lok Sabha** - *Rank 7A: Holders of Bharat Ratna*
- Rank 8: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers** (outside their respective states), Governors (outside their respective states)
- Rank 9: Judges of the Supreme Court of India** - *Rank 9A: Chief Election Commissioner (CEC), Comptroller and Auditor General (CAG)*, Chairperson of UPSC
- Rank 10:** Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union
- Rank 11: Attorney General for India**, Cabinet Secretary, Lieutenant Governors (within their UTs).

### 5. Parliamentary Terms, Motions & Working Procedure

| Parliamentary Term   | Core Meaning & Procedural Rules                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Question Hour        | First hour of every parliamentary sitting (11:00 AM to 12:00 PM):<br>• <b>Starred Questions:</b> Oral answers required; <b>supplementary questions CAN be asked</b> (green paper).<br>• <b>Unstarred Questions:</b> Written answers required; <b>NO supplementary questions allowed</b> (white paper).<br>• <b>Short Notice Questions:</b> Relates to matter of urgent public importance; asked with less than 10 days notice; answered orally (light pink paper). |
| Zero Hour            | <b>Unique Indian parliamentary innovation (introduced in 1962)</b> ; starts immediately after Question Hour (12:00 PM); members raise urgent matters without prior notice; <b>not mentioned in Rules of Procedure</b> .                                                                                                                                                                                                                                            |
| Adjournment Motion   | Introduced in <b>LOK SABHA ONLY</b> to draw attention to a definite matter of urgent public importance; requires support of <b>at least 50 members</b> to be admitted; sitting adjourned for debate $\geq 2.5$ hours; involves censure of government.                                                                                                                                                                                                              |
| No-Confidence Motion | Moved in <b>LOK SABHA ONLY</b> under Rule 198; requires support of <b>at least 50 members</b> ; no specific grounds needed; if passed, Council of Ministers must resign.                                                                                                                                                                                                                                                                                           |
| Censure Motion       | Moved in Lok Sabha against specific ministers or entire council for specific policies; requires specific grounds; if passed, government is not obligated to resign immediately but must seek confidence.                                                                                                                                                                                                                                                           |

| Parliamentary Term              | Core Meaning & Procedural Rules                                                                                                                                                                                                                                                                               |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Calling Attention Motion</b> | Indian parliamentary innovation (since 1954); calling attention of a Minister to a matter of urgent public importance and seeking an authoritative statement. Mentioned in Rules of Procedure.                                                                                                                |
| <b>Cut Motions</b>              | Moved during Budget debate (Lok Sabha only):<br>1. <b>Disapproval of Policy Cut:</b> Amount reduced to <b>Re 1</b> (shows complete policy rejection).<br>2. <b>Economy Cut:</b> Amount reduced by a specific lump sum.<br>3. <b>Token Cut:</b> Amount reduced by <b>Rs 100</b> to express specific grievance. |
| <b>Guillotine</b>               | When time allotted for discussion on demands for grants concludes, all remaining undiscussed demands are put to vote immediately without debate.                                                                                                                                                              |
| <b>Lame-Duck Session</b>        | Refers to the last session of the existing Lok Sabha after a new Lok Sabha has been elected. Those existing MPs who failed to get re-elected are called "Lame Ducks".                                                                                                                                         |
| <b>Quorum</b>                   | Minimum number of members required to be present to conduct a sitting: <b>1/10th of total membership</b> of the House (55 in Lok Sabha, 25 in Rajya Sabha) per <b>Article 100(3)</b> .                                                                                                                        |

## 6. Parliamentary Committees (Must-Memorize Facts)

| Committee Name                                            | Total Strength | Lok Sabha Members | Rajya Sabha Members | Term   | Chairperson Rules & Key Functions                                                                                                                                                                                                                                                                                                                                 |
|-----------------------------------------------------------|----------------|-------------------|---------------------|--------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Public Accounts Committee (PAC)</b>                    | 22             | 15                | 7                   | 1 year | Set up first in <b>1921</b> (GOI Act 1919); scrutinizes <b>CAG Audit Reports</b> ; elected by PR by STV; <b>Ministers CANNOT be members</b> ; by convention since <b>1967</b> , Chairperson is appointed by the Speaker from the <b>Opposition</b> ; known as <b>"Twin sister" of Estimates Committee</b> and <b>"Friend, Philosopher, and Guide"</b> of the CAG. |
| <b>Estimates Committee</b>                                | 30             | 30                | 0 (NO RSI!)         | 1 year | Set up in <b>1950</b> on recommendation of Finance Minister <b>John Mathai</b> ; <b>LARGEST PARLIAMENTARY COMMITTEE</b> ; all 30 members from Lok Sabha only; examines budget estimates and suggests alternative policies ("Continuous Economy Committee"); Chairperson appointed by Speaker from ruling party.                                                   |
| <b>Committee on Public Undertakings (COPU)</b>            | 22             | 15                | 7                   | 1 year | Created in <b>1964</b> on recommendation of <b>Krishna Menon Committee</b> ; examines reports of CAG on public undertakings; Chairperson appointed by Speaker from Lok Sabha members only.                                                                                                                                                                        |
| <b>Departmentally Related Standing Committees (DRSCs)</b> | 31 (each)      | 21                | 10                  | 1 year | Total <b>24 DRSCs</b> (16 work under Lok Sabha, 8 under Rajya Sabha); examine demands for grants, bills, and annual reports of respective ministries.                                                                                                                                                                                                             |

## 7. Constitutional Offices: Age Limits, Tenures & Appointments

| Office / Position                              | Minimum Age Required                   | Retirement Age / Term of Office                                   | Appointed By                                                                         | Resignation Submitted To       | Removal Procedure                                                                                                                       |
|------------------------------------------------|----------------------------------------|-------------------------------------------------------------------|--------------------------------------------------------------------------------------|--------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>President of India</b>                      | 35 years                               | 5 years (eligible for re-election)                                | Electoral College (Elected MPs of LS/RS + Elected MLAs of States/UTs - Art. 54)      | <b>Vice-President</b>          | <b>Impeachment under Art. 61</b> (Quasi-judicial, 14 days notice, 2/3rd of total membership of both Houses; nominated MPs participate!) |
| <b>Vice-President of India</b>                 | 35 years                               | 5 years                                                           | Electoral College (All MPs of LS & RS, both elected & nominated - Art. 66; no MLAs!) | <b>President</b>               | Resolution in Rajya Sabha by effective majority + agreed to by Lok Sabha (Art. 67)                                                      |
| <b>Governor of a State</b>                     | 35 years                               | 5 years (Holds office during pleasure of President)               | President of India                                                                   | <b>President</b>               | Removed by President at any time without constitutional procedure                                                                       |
| <b>Prime Minister / Union Minister</b>         | 25 yrs (LS) / 30 yrs (RS)              | No fixed tenure (during pleasure of President / confidence of LS) | President                                                                            | <b>President</b>               | Loss of majority in Lok Sabha                                                                                                           |
| <b>Member of Parliament (Lok Sabha)</b>        | 25 years                               | 5 years (unless dissolved earlier)                                | Direct Election (First-past-the-post)                                                | <b>Speaker of Lok Sabha</b>    | Disqualification under Art. 102 or 10th Schedule                                                                                        |
| <b>Member of Parliament (Rajya Sabha)</b>      | 30 years                               | 6 years (Permanent body; 1/3rd members retire every 2 years)      | Indirect Election by elected MLAs (STV)                                              | <b>Chairman of Rajya Sabha</b> | Disqualification under Art. 102 or 10th Schedule                                                                                        |
| <b>Member of Legislative Assembly (MLA)</b>    | 25 years                               | 5 years                                                           | Direct Election                                                                      | <b>Speaker of Assembly</b>     | Disqualification under Art. 191                                                                                                         |
| <b>Member of Legislative Council (MLC)</b>     | 30 years                               | 6 years (1/3rd retire every 2 years)                              | Indirect (MLAs 1/3, Local bodies 1/3, Teachers 1/12, Grads 1/12, Gov nominates 1/6)  | <b>Chairman of Council</b>     | Disqualification under Art. 191                                                                                                         |
| <b>Panchayat / Municipality Member</b>         | 21 years                               | 5 years                                                           | Direct Election                                                                      | Presiding Officer              | Disqualification under state municipal/panchayat laws                                                                                   |
| <b>Voter (Universal Adult Suffrage)</b>        | 18 years (lowered from 21 by 61st Amd) | —                                                                 | Enrolled in electoral roll                                                           | —                              | Ineligibility under Art. 326 (unsound mind, crime)                                                                                      |
| <b>Supreme Court Judge / CJI</b>               | No min age                             | 65 years                                                          | President (Collegium recommendation)                                                 | <b>President</b>               | Removed by Presidential order supported by special majority of both Houses for proved misbehaviour or incapacity (Art. 124(4))          |
| <b>High Court Judge / Chief Justice</b>        | No min age                             | 62 years (15th Amd raised from 60)                                | President (after consulting CJI, Governor, HC CJ)                                    | <b>President</b>               | Same manner and grounds as Supreme Court Judge                                                                                          |
| <b>Comptroller &amp; Auditor General (CAG)</b> | No min age                             | 6 years or 65 years (whichever earlier)                           | President                                                                            | <b>President</b>               | Same manner and grounds as Supreme Court Judge (Art. 148(1))                                                                            |
| <b>Chief Election Commissioner (CEC)</b>       | No min age                             | 6 years or 65 years                                               | President                                                                            | <b>President</b>               | Same manner and grounds as Supreme Court Judge (Art. 324(5))                                                                            |
| <b>Attorney General for India</b>              | Qualified as SC Judge                  | No fixed term (pleasure of President)                             | President                                                                            | <b>President</b>               | Removed by President at pleasure                                                                                                        |
| <b>Advocate General for the State</b>          | Qualified as HC Judge                  | No fixed term (pleasure of Governor)                              | Governor                                                                             | <b>Governor</b>                | Removed by Governor at pleasure                                                                                                         |
| <b>UPSC Chairman / Member</b>                  | No min age                             | 6 years or 65 years                                               | President                                                                            | <b>President</b>               | Removed by President on ground of misbehaviour after inquiry by Supreme Court (Art. 317)                                                |
| <b>State PSC Chairman / Member</b>             | No min age                             | 6 years or 62 years                                               | <b>Governor appoints</b>                                                             | <b>Governor</b>                | <b>REMOVED ONLY BY PRESIDENT</b> (Not Governor!) on SC inquiry under Art. 317                                                           |

| Office / Position              | Minimum Age Required | Retirement Age / Term of Office         | Appointed By                                       | Resignation Submitted To | Removal Procedure                  |
|--------------------------------|----------------------|-----------------------------------------|----------------------------------------------------|--------------------------|------------------------------------|
| Central Vigilance Commissioner | No min age           | 4 years or 65 years (whichever earlier) | President on 3-member panel (PM, Home Min, LoP LS) | President                | Removed by President on SC inquiry |

## 8. High-Frequency Articles Must-Revise Daily

### A. Fundamental Rights (Part III, Arts. 12–35)

- **Art. 12:** Definition of “State” (includes Union/State Governments, Parliament/Legislatures, Local authorities, other statutory authorities like LIC, ONGC).
- **Art. 13:** Laws inconsistent with or in derogation of Fundamental Rights shall be void (*Doctrine of Judicial Review, Doctrine of Severability, Doctrine of Eclipse*).
- **Art. 14:** Equality before law (British origin, negative concept) & Equal protection of the laws (American origin, positive concept).
- **Art. 15:** Prohibition of discrimination **ONLY** on grounds of religion, race, caste, sex, place of birth.
- **Art. 15(4):** Special provisions for SC/ST/OBC (1st Amd 1951).
- **Art. 15(6):** 10% EWS reservation in educational institutions (103rd Amd 2019).
- **Art. 16:** Equality of opportunity in matters of public employment.
- **Art. 16(4):** Reservation for backward classes not adequately represented.
- **Art. 16(6):** 10% EWS reservation in public employment (103rd Amd 2019).
- **Art. 17: Abolition of Untouchability** (Absolute right; enforced via Protection of Civil Rights Act 1955).
- **Art. 18:** Abolition of titles (Bharat Ratna/Padma awards are decorations, not titles — *Balaji Raghavan Case 1996*).
- **Art. 19:** Protection of **Six Democratic Freedoms**: 1. *19(1)(a):* Freedom of speech and expression (includes freedom of press, right to remain silent). 2. *19(1)(b):* Freedom to assemble peaceably and without arms. 3. *19(1)(c):* Freedom to form associations, unions, or co-operative societies (97th Amd). 4. *19(1)(d):* Freedom to move freely throughout the territory of India. 5. *19(1)(e):* Freedom to reside and settle in any part of the territory of India. 6. *19(1)(g):* Freedom to practice any profession, trade, or business.
- (*Note: 19(1)(f) Right to acquire, hold, and dispose of property was REPEALED by 44th Amd 1978*).
- **Art. 20:** Protection in respect of conviction for offences:
  - *20(1):* No ex-post-facto criminal law.
  - *20(2):* No double jeopardy (cannot be prosecuted twice for the same offence).
  - *20(3):* No self-incrimination (cannot be compelled to be a witness against oneself).
- **Art. 21: Protection of Life and Personal Liberty** (*Procedure Established by Law* → *Due Process of Law* via *Maneka Gandhi Case 1978*; encompasses Right to Privacy - *Puttaswamy 2017*, Right to clean environment, Right to livelihood, Right to sleep, Right to die with dignity / passive euthanasia - *Common Cause 2018*).
- **Art. 21A: Right to Free and Compulsory Education** for children aged 6 to 14 years (Inserted by **86th Amendment 2002**; RTE Act enacted in 2009, in force 1 April 2010).
- **Art. 22:** Protection against arrest and detention (production before magistrate within 24 hours; preventive detention max 3 months without advisory board approval).
- **Art. 23:** Prohibition of traffic in human beings and **Begar** (forced labour).
- **Art. 24:** Prohibition of employment of children **below 14 years in factories, mines, or hazardous employment**.
- **Arts. 25–28:** Freedom of Religion:
  - *Art. 25:* Freedom of conscience, free profession, practice, and propagation of religion.
  - *Art. 26:* Freedom to manage religious affairs.
  - *Art. 27:* Freedom from payment of taxes for promotion of any particular religion.
  - *Art. 28:* Freedom from attendance at religious instruction in state-funded educational institutions.
- **Arts. 29–30:** Cultural and Educational Rights of Minorities:
  - *Art. 29:* Protection of language, script, and culture of minorities.
  - *Art. 30:* Right of religious and linguistic minorities to establish and administer educational institutions.
- **Art. 32: Right to Constitutional Remedies:** Power of Supreme Court to issue 5 Writs (**Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto**); Dr. B.R. Ambedkar called Article 32 the “**Heart and Soul of the Constitution**”.

**NON-SUSPENDABLE RIGHTS:** Under **Article 359 (as amended by 44th Amd 1978)**, the President **CANNOT suspend the enforcement of Articles 20 and 21** even during a National Emergency!

### B. Directive Principles of State Policy (DPSP, Part IV, Arts. 36–51)

- **Art. 38:** State to secure a social order for the promotion of welfare of the people (minimize inequalities).
- **Art. 39(b) & (c):** Equitable distribution of material resources of the community to subserve common good (39b); prevention of concentration of wealth (39c) — *Articles 39(b) and 39(c) take precedence over Articles 14 and 19 per Art. 31C!*
- **Art. 39A: Equal justice and free legal aid** (Added by 42nd Amd 1976; Legal Services Authorities Act 1987 / NALSA).
- **Art. 40: Organization of Village Panchayats** (Gandhian principle).
- **Art. 41:** Right to work, to education, and to public assistance in cases of unemployment, old age, sickness.
- **Art. 42:** Provision for just and humane conditions of work and **Maternity relief**.
- **Art. 43:** Living wage and decent standard of life for workers.
- **Art. 43A: Participation of workers in management of industries** (Added by 42nd Amd 1976).
- **Art. 43B:** Promotion of **Co-operative societies** (Added by 97th Amd 2011).
- **Art. 44: Uniform Civil Code (UCC)** for all citizens (**Goa** had Portuguese civil code; **Uttarakhand became the first state in post-independence India to pass a UCC bill in 2024!**).
- **Art. 45:** Provision for early childhood care and education for all children until they complete the age of **6 years** (Amended by 86th Amd 2002).
- **Art. 48:** Organization of agriculture and animal husbandry; prohibiting slaughter of cows, calves, and milch cattle.
- **Art. 48A: Protection and improvement of environment, and safeguarding of forests and wildlife** (Added by 42nd Amd 1976).
- **Art. 50: Separation of Judiciary from the Executive** in the public services of the State.
- **Art. 51:** Promotion of international peace and security.

### C. Union & State Executive / Legislature Comparisons

| Constitutional Matter         | Union Article (President / Parliament) | State Article (Governor / State Legislature)                | Key Distinction / Comparison                                                                                                                                          |
|-------------------------------|----------------------------------------|-------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Office of Head                | Art. 52: President of India            | Art. 153: Governor of a State                               | 7th Amd 1956: Same person can be appointed Governor for two or more states                                                                                            |
| Executive Power               | Art. 53: Vested in President           | Art. 154: Vested in Governor                                | Governor is appointed by President (Canadian model); holds office during pleasure                                                                                     |
| Pardoning Power               | Art. 72: President of India            | Art. 161: Governor of a State                               | <b>President alone can pardon Death Sentences and Court Martial (Military) sentences.</b> Governor can suspend/remit, but cannot grant full pardon for death sentence |
| Council of Ministers          | Art. 74: CoM to aid & advise           | Art. 163: CoM to aid & advise                               | Governor has broader constitutional discretionary powers (Art. 163(2))                                                                                                |
| Appointment of PM/CM          | Art. 75: PM appointed by President     | Art. 164: CM appointed by Governor                          | CoM size capped at <b>max 15%</b> of Lower House membership (91st Amd 2003); State min = 12                                                                           |
| Top Legal Officer             | Art. 76: Attorney General for India    | Art. 165: Advocate General for the State                    | AG has right to speak in both Houses of Parliament but <b>NO right to vote</b> (Art. 88)                                                                              |
| Joint Sitting                 | Art. 108: Joint Sitting of Parliament  | <b>NO PROVISION</b> for Joint Sitting in State Legislature! | Summoned by President; presided over by <b>Lok Sabha Speaker</b> (simple majority)                                                                                    |
| Money Bill Definition         | Art. 110: Money Bill in Parliament     | Art. 199: Money Bill in State Assembly                      | Speaker's decision is final; Rajya Sabha / Legislative Council has only <b>14 days</b> to suggest                                                                     |
| Annual Budget                 | Art. 112: Annual Financial Statement   | Art. 202: Annual Financial Statement                        | Word "Budget" is nowhere used in the Constitution!                                                                                                                    |
| Ordinance Power               | Art. 123: President                    | Art. 213: Governor                                          | Can only be promulgated when legislature is not in session; max lifespan: <b>6 weeks from reassembly</b> (absolute maximum lifespan = 6 months + 6 weeks)             |
| Assent to Bills               | Art. 111: President's Assent           | Art. 200: Governor's Assent                                 | Governor can reserve bill for consideration of President ( <b>Art. 201</b> )                                                                                          |
| Creation/Abolition of Council | —                                      | Art. 169: Legislative Council                               | State Assembly passes resolution by special majority → Parliament approves by simple majority                                                                         |

### 9. Constitutional vs Statutory vs Executive Bodies

| Body Name                               | Category                            | Governing Article / Parent Act                                                         | Head / Composition                                                                | Appointed By                                                                | Removal / Tenure                                                                               |
|-----------------------------------------|-------------------------------------|----------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|-----------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| Election Commission of India (ECI)      | Constitutional                      | Art. 324                                                                               | Chief Election Commissioner + 2 Election Commissioners                            | President (per 2023 Act: panel of PM, LoP, Cabinet Min)                     | Same grounds and manner as Supreme Court Judge (6 yrs or 65 yrs)                               |
| Union Public Service Commission (UPSC)  | Constitutional                      | Arts. 315–323                                                                          | Chairman + Members (usually 9–11)                                                 | President                                                                   | 6 yrs or 65 yrs; removed by President on SC enquiry under Art. 317                             |
| Finance Commission                      | Constitutional                      | Art. 280                                                                               | Chairman + 4 Members                                                              | President every 5th year                                                    | Recommends devolution of net tax proceeds between Union & States                               |
| Comptroller & Auditor General (CAG)     | Constitutional                      | Art. 148                                                                               | Single-member office                                                              | President                                                                   | 6 yrs or 65 yrs; removed like a Supreme Court Judge; " <b>Guardian of the Public Purse</b> "   |
| Attorney General for India              | Constitutional                      | Art. 76                                                                                | Single-member office                                                              | President                                                                   | Holds office <b>during the pleasure of the President</b> ; must be qualified to be an SC Judge |
| Advocate General for the State          | Constitutional                      | Art. 165                                                                               | Single-member office                                                              | Governor                                                                    | Holds office <b>during the pleasure of the Governor</b> ; qualified to be an HC Judge          |
| National Commission for SC (NCSC)       | Constitutional                      | Art. 338                                                                               | Chairperson, Vice-Chairperson + 3 Members                                         | President                                                                   | 3 years tenure                                                                                 |
| National Commission for ST (NCST)       | Constitutional                      | Art. 338A                                                                              | Separated by 89th Amd 2003; Chairperson + 4                                       | President                                                                   | 3 years tenure                                                                                 |
| National Commission for BC (NCBC)       | Constitutional                      | Art. 338B                                                                              | Accorded constitutional status by 102nd Amd 2018                                  | President                                                                   | 3 years tenure                                                                                 |
| GST Council                             | Constitutional                      | Art. 279A                                                                              | Chaired by Union Finance Minister; members: MoS Finance + State Finance Ministers | -                                                                           | Voting weight: Centre = 1/3rd, States = 2/3rd; 3/4th majority needed to pass decisions         |
| Inter-State Council                     | Constitutional                      | Art. 263                                                                               | Set up in 1990 ( <b>Sarkaria Commission</b> ); chaired by Prime Minister          | -                                                                           | CMs of all states + 6 Union Cabinet Ministers                                                  |
| National Human Rights Commission (NHRC) | Statutory                           | Protection of Human Rights Act (PHRA) 1993                                             | Retired CJI or Judge of SC (Chairperson) + Members                                | President on panel (PM, Speaker, Home Min, LoP LS, LoP RS, Dy Chairman RS)  | 3 years or 70 years                                                                            |
| Central Vigilance Commission (CVC)      | Statutory                           | CVC Act 2003 (set up 1964 on Santhanam Committee)                                      | Central Vigilance Commissioner + max 2 Vigilance Commissioners                    | President on panel (PM, Home Minister, LoP LS)                              | <b>4 years or 65 years</b> (Unique tenure!)                                                    |
| Central Information Commission (CIC)    | Statutory                           | Right to Information (RTI) Act 2005                                                    | Chief Information Commissioner + max 10 ICs                                       | President on panel (PM, LoP LS, Union Cabinet Min)                          | Set by Central Govt or 65 yrs                                                                  |
| Lokpal of India                         | Statutory                           | Lokpal and Lokayuktas Act 2013                                                         | Chairperson (CJI/SC Judge/eminent person) + max 8 Members                         | President on panel (PM, Speaker LS, LoP LS, CJI or nominee, eminent jurist) | 5 years or 70 years                                                                            |
| National Green Tribunal (NGT)           | Statutory                           | NGT Act 2010                                                                           | Chairperson (retired SC judge or HC CJ) + Judicial/Expert members                 | Central Govt in consultation with CJI                                       | 5 years; not eligible for reappointment                                                        |
| NITI Aayog                              | Non-Constitutional (Executive Body) | Created by Union Cabinet Resolution on 1 Jan 2015 (replacing Planning Commission 1950) | Chairperson: Prime Minister; Vice-Chairperson + CEO + Ex-officio members          | PM appoints                                                                 | Think tank; promotes Cooperative & Competitive Federalism                                      |

10. Landmark Constitutional Amendments (The Complete PCS Sheet)

| Amendment Act & Year | Prime Minister / Context               | Landmark Provisions / Changes Made                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|----------------------|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1st (1951)           | J.L. Nehru                             | Added <b>9th Schedule</b> to protect land reform laws from judicial review; placed reasonable restrictions on freedom of speech (public order, friendly relations with foreign states, incitement to an offence)                                                                                                                                                                                                                                                                                                                                    |
| 7th (1956)           | J.L. Nehru                             | Implemented <b>States Reorganisation Act 1956</b> (Fazal Ali Commission); abolished Part A, B, C, D classification; created 14 States & 6 UTs; allowed common High Court for two or more states; allowed same person as Governor of multiple states                                                                                                                                                                                                                                                                                                 |
| 24th (1971)          | Indira Gandhi                          | Affirmed Parliament's power to amend any part of the Constitution, including Fundamental Rights; made it <b>obligatory for the President to give assent</b> to a Constitutional Amendment Bill                                                                                                                                                                                                                                                                                                                                                      |
| 42nd (1976)          | Indira Gandhi (Swaran Singh Committee) | Known as the <b>"Mini-Constitution"</b> :<br>1. Preamble: Added words <b>"SOCIALIST, SECULAR, INTEGRITY"</b><br>2. Added <b>Part IVA (Fundamental Duties, Art. 51A)</b> with 10 duties<br>3. Added <b>Part XIVA (Tribunals, Arts. 323A–323B)</b><br>4. Added DPSPs: Arts. <b>39A</b> (Free legal aid), <b>43A</b> (Workers' participation), <b>48A</b> (Environment)<br>5. Transferred <b>5 subjects from State List to Concurrent List</b> : Education, Forests, Weights & Measures, Protection of Wild Animals & Birds, Administration of Justice |
| 44th (1978)          | Morarji Desai (Janata Party)           | Undid emergency excesses of 42nd Amendment:<br>1. Replaced "Internal Disturbance" with <b>"Armed Rebellion"</b> in Art. 352<br>2. Mandated that President can declare National Emergency only on <b>written advice of the Cabinet</b><br>3. <b>Right to Property deleted from Fundamental Rights</b> (Art. 19(1)(f) & Art. 31 deleted; made a legal right under <b>Art. 300A</b> )<br>4. Provided that <b>Articles 20 and 21 CANNOT be suspended</b> during emergency                                                                               |
| 52nd (1985)          | Rajiv Gandhi                           | Added <b>10th Schedule (Anti-Defection Law)</b> ; disqualified MPs/MLAs defecting from their political party                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 61st (1988)          | Rajiv Gandhi                           | <b>Lowered voting age from 21 years to 18 years</b> for Lok Sabha and Legislative Assembly elections (amended <b>Art. 326</b> )                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 69th (1991)          | P.V. Narasimha Rao                     | Conferred special status on Union Territory of Delhi as <b>National Capital Territory of Delhi (NCT)</b> with Legislative Assembly and 7-member Council of Ministers (inserted <b>Art. 239AA</b> )                                                                                                                                                                                                                                                                                                                                                  |
| 73rd (1992)          | P.V. Narasimha Rao                     | Accorded constitutional status to <b>Panchayati Raj Institutions (PRIs)</b> ; inserted <b>Part IX (Arts. 243 to 243-O)</b> and <b>11th Schedule (29 subjects)</b> ; 33% mandatory reservation for women                                                                                                                                                                                                                                                                                                                                             |
| 74th (1992)          | P.V. Narasimha Rao                     | Accorded constitutional status to <b>Urban Local Bodies (Municipalities)</b> ; inserted <b>Part IXA (Arts. 243P to 243ZG)</b> and <b>12th Schedule (18 subjects)</b>                                                                                                                                                                                                                                                                                                                                                                                |
| 86th (2002)          | A.B. Vajpayee                          | 1. Inserted <b>Article 21A</b> (Right to free and compulsory education for children aged 6–14 as a Fundamental Right)<br>2. Substituted Article 45 (Early childhood care)<br>3. Added <b>11th Fundamental Duty</b> under <b>Art. 51A(k)</b>                                                                                                                                                                                                                                                                                                         |
| 91st (2003)          | A.B. Vajpayee                          | 1. Capped the size of the Council of Ministers to <b>maximum 15%</b> of the total strength of Lok Sabha / State Legislative Assembly (minimum 12 in states)<br>2. <b>Deleted 1/3rd split provision</b> from 10th Schedule (only 2/3rd merger protected)                                                                                                                                                                                                                                                                                             |
| 99th (2014)          | Narendra Modi                          | Established National Judicial Appointments Commission (NJAC); <b>struck down as unconstitutional by Supreme Court in 2015</b> ( <i>Fourth Judges Case</i> ), restoring the Collegium system                                                                                                                                                                                                                                                                                                                                                         |
| 101st (2016)         | Narendra Modi                          | Introduced <b>Goods and Services Tax (GST)</b> ; inserted <b>Art. 246A, 269A, and 279A</b> (GST Council chaired by Union Finance Minister); in force from <b>1 July 2017</b>                                                                                                                                                                                                                                                                                                                                                                        |
| 102nd (2018)         | Narendra Modi                          | Accorded constitutional status to the <b>National Commission for Backward Classes (NCBC)</b> ; inserted <b>Articles 338B and 342A</b>                                                                                                                                                                                                                                                                                                                                                                                                               |
| 103rd (2019)         | Narendra Modi                          | Provided <b>10% reservation for Economically Weaker Sections (EWS)</b> in educational admissions and civil posts; amended <b>Articles 15(6) and 16(6)</b>                                                                                                                                                                                                                                                                                                                                                                                           |
| 104th (2020)         | Narendra Modi                          | Extended reservation of seats for <b>SC and ST in Lok Sabha and State Assemblies for another 10 years (until 2030)</b> ; <b>discontinued the nomination of 2 Anglo-Indian members</b> in Lok Sabha and 1 in Assemblies                                                                                                                                                                                                                                                                                                                              |
| 105th (2021)         | Narendra Modi                          | Clarified that State Governments maintain the power to prepare and maintain their own list of <b>Socially and Educationally Backward Classes (SEBCs / OBCs)</b>                                                                                                                                                                                                                                                                                                                                                                                     |
| 106th (2023)         | Narendra Modi                          | <b>Nari Shakti Vandan Adhiniyam</b> : Provides <b>33% reservation for women in Lok Sabha, State Legislative Assemblies, and NCT of Delhi Assembly</b> (inserted Arts. 330A, 332A, 239AA(2)(b)); effective after the next delimitation exercise                                                                                                                                                                                                                                                                                                      |

11. Panchayati Raj Committees Chronological Ladder

| Committee Name              | Year                       | Landmark Recommendation / Impact                                                                                                                                                                                                                                                                               |
|-----------------------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Balwant Rai Mehta Committee | 1957                       | Recommended <b>Three-Tier Panchayati Raj System</b> :<br>1. Gram Panchayat (Village)<br>2. Panchayat Samiti (Block - executive body)<br>3. Zilla Parishad (District - advisory body)<br><b>First implemented in Nagaur (Rajasthan) on 2 October 1959</b> by J.L. Nehru; second state was <b>Andhra Pradesh</b> |
| K. Santhanam Committee      | 1963                       | Panchayati Raj finances and budgetary powers                                                                                                                                                                                                                                                                   |
| Ashok Mehta Committee       | 1977 (Janata Govt)         | Recommended <b>Two-Tier System</b> :<br>1. <b>Mandal Panchayat</b> (group of villages, pop. 15,000–20,000)<br>2. <b>Zilla Parishad</b> (District executive body)<br>Advocated official participation of political parties in elections                                                                         |
| G.V.K. Rao Committee        | 1985 (Planning Commission) | Critiqued bureaucratic takeover, describing PRIs as <b>"Grass without Roots"</b> ; recommended strengthening Zilla Parishad and creating post of District Development Commissioner (DDC)                                                                                                                       |
| L.M. Singhvi Committee      | 1986 (Rajiv Gandhi)        | <b>FIRST TO STRONGLY RECOMMEND CONSTITUTIONAL RECOGNITION FOR PANCHAYATI RAJ</b> ; advocated Nyaya Panchayats and financial autonomy                                                                                                                                                                           |
| P.K. Thungon Committee      | 1988                       | Sub-committee of Parliamentary Consultative Committee; strongly urged <b>Constitutional status</b> , 3-tier system, fixed 5-year tenure, Zilla Parishad as main planning agency                                                                                                                                |
| V.N. Gadgil Committee       | 1988                       | Blueprint for the 73rd Amendment bill: 3 tiers, fixed 5-yr tenure, reservation for SC/ST/Women, State Election Commission, State Finance Commission                                                                                                                                                            |

12. Landmark Supreme Court Judgments (Chronological Table)

| Case Name & Year            | Key Issue / Doctrine Established                                                                   |
|-----------------------------|----------------------------------------------------------------------------------------------------|
| Shankari Prasad Case (1951) | Parliament can amend any part of the Constitution, including Fundamental Rights under Article 368. |

| Case Name & Year                                          | Key Issue / Doctrine Established                                                                                                                                                                                                                            |
|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Golaknath Case (1967)</b>                              | 11-Judge bench; ruled that <b>Fundamental Rights are transcendental and sacrosanct</b> ; Parliament CANNOT amend or take away Fundamental Rights.                                                                                                           |
| <b>Kesavananda Bharati Case (1973)</b>                    | <b>13-Judge bench (largest ever, 7:6 verdict on 24 April 1973)</b> ; upheld Parliament's power to amend the Constitution, BUT established the <b>"Basic Structure Doctrine"</b> — Parliament cannot alter the basic framework/features of the Constitution. |
| <b>Indira Nehru Gandhi v. Raj Narain (1975)</b>           | Struck down 39th Amendment (Article 329A); held that <b>Free and Fair Elections and Judicial Review are part of the Basic Structure</b> .                                                                                                                   |
| <b>Maneka Gandhi Case (1978)</b>                          | Reinterpreted Article 21; replaced rigid "Procedure Established by Law" with <b>"Due Process of Law"</b> ; procedure must be <i>just, fair, and reasonable</i> . Golden Triangle: Articles 14, 19, and 21 are interrelated.                                 |
| <b>Minerva Mills Case (1980)</b>                          | Struck down clauses of 42nd Amendment; held that <b>limited amending power and judicial review are basic features</b> ; Indian Constitution is founded on the bedrock of <b>balance between Fundamental Rights and DPSPs</b> .                              |
| <b>Waman Rao Case (1981)</b>                              | Reaffirmed Basic Structure Doctrine; set cutoff date of <b>24 April 1973</b> for applying Basic Structure scrutiny to the 9th Schedule.                                                                                                                     |
| <b>Shah Bano Case (1985)</b>                              | Upheld divorced Muslim woman's right to maintenance under Section 125 CrPC; urged enactment of a Uniform Civil Code.                                                                                                                                        |
| <b>Indira Sawhney Case (1992)</b><br><i>(Mandal Case)</i> | 9-Judge bench; upheld 27% OBC reservation; introduced <b>"Creamy Layer"</b> exclusion; capped <b>total reservations at 50%</b> ; no reservation in promotions.                                                                                              |
| <b>S.R. Bommai Case (1994)</b>                            | 9-Judge bench; curbed misuse of <b>Article 356 (President's Rule)</b> ; held that <b>Secularism is part of the Basic Structure</b> ; floor test in Assembly is the only valid test of majority.                                                             |
| <b>Vishaka v. State of Rajasthan (1997)</b>               | Formulated <b>Vishaka Guidelines</b> to prevent sexual harassment of women at workplaces (precursor to POSH Act 2013).                                                                                                                                      |
| <b>I.R. Coelho Case (2007)</b>                            | 9-Judge bench; held that all laws inserted into the <b>9th Schedule after 24 April 1973 are subject to judicial review</b> if they violate Fundamental Rights forming part of the Basic Structure.                                                          |
| <b>Justice K.S. Puttaswamy Case (2017)</b>                | 9-Judge bench unanimously held that the <b>Right to Privacy is a Fundamental Right</b> intrinsically protected under Article 21.                                                                                                                            |
| <b>Navtej Singh Johar Case (2018)</b>                     | Decriminalized consensual homosexual acts between adults by reading down <b>Section 377 of the Indian Penal Code (IPC)</b> .                                                                                                                                |
| <b>Jarnail Singh Case (2018)</b>                          | Held that the <b>"Creamy Layer" principle applies to SC/ST</b> when extending reservation in promotions.                                                                                                                                                    |
| <b>Janki Janak v. UOI (2022)</b>                          | Upheld the constitutional validity of the <b>103rd Constitutional Amendment (10% EWS reservation)</b> by 3:2 majority.                                                                                                                                      |

### 13. State Reorganization Chronology (Post-Independence India)

- 1953: Andhra State** created (first linguistic state, separated Telugu-speaking areas of Madras after 56-day fast unto death of **Potti Sreeramulu**; Kurnool capital).
- 1956: States Reorganisation Act 1956** (Fazal Ali Commission with H.N. Kunzru and K.M. Panikkar); created **14 States and 6 Union Territories**.
- 1960: Bilingual Bombay State bifurcated into Maharashtra and Gujarat** (Gujarat became the 15th state).
- 1961: Dadra & Nagar Haveli** (10th Amd) and **Goa, Daman & Diu** (12th Amd) integrated via Operation Vijay.
- 1962: Pondicherry** (Puducherry) integrated via 14th Amd (ceded by French in 1954).
- 1963: Nagaland** created as 16th state (incorporating Naga Hills-Tuensang Area).
- 1966: Punjab bifurcated** into Punjab (Punjabi) and **Haryana** (17th state, Hindi) on recommendation of **Shah Commission**; **Chandigarh** made common UT.
- 1971: Himachal Pradesh** elevated from UT to 18th State.
- 1972:** North-Eastern reorganization: **Manipur (19th), Tripura (20th), and Meghalaya (21st)** became full states; Mizoram and Arunachal Pradesh created as UTs.
- 1975: Sikkim:** 35th Amd 1974 made it "Associate State" (10th Schedule added); **36th Amendment 1975 made Sikkim 22nd full State of India**.
- 1987: Mizoram (23rd), Arunachal Pradesh (24th), and Goa (25th state)** elevated to full statehood.
- 2000 (November):** Three new states carved out:
  - Chhattisgarh (26th state):** 1 Nov 2000 (carved from MP).
  - Uttarakhand (Uttaranchal, 27th state): 9 Nov 2000** (carved from Uttar Pradesh, 13 hill districts; renamed Uttarakhand on 1 Jan 2007).
  - Jharkhand (28th state):** 15 Nov 2000 (carved from Bihar on Birsa Munda's birth anniversary).
- 2014 (2 June): Telangana (29th state)** carved out of Andhra Pradesh (Sri Krishna Committee).
- 2019 (31 October): Jammu & Kashmir Reorganisation Act 2019:** State of J&K bifurcated into **two Union Territories: J&K (with assembly) and Ladakh (without assembly)**; total count: **28 States and 8 Union Territories**.
- 2020 (26 Jan):** Merged **Dadra & Nagar Haveli and Daman & Diu** into a single Union Territory.

**From-to (do not stop at the birth year): Uttarakhand** as a state runs **9 Nov 2000 → present** (name **Uttaranchal** till **1 Jan 2007**). **Jammu & Kashmir as a State** ran till **31 Oct 2019; Art. 370** operative **1950 → 5/6 Aug 2019**. Goa was a UT **1961–1987**, then the **25th state**.

### 14. UP & Uttarakhand State Legislature Quick Facts

| State                | Legislative Assembly<br>(Vidhan Sabha) | Legislative Council<br>(Vidhan Parishad) | Lok Sabha Seats                                                           | Rajya Sabha<br>Seats               | High Court & Benches                                                                                          |
|----------------------|----------------------------------------|------------------------------------------|---------------------------------------------------------------------------|------------------------------------|---------------------------------------------------------------------------------------------------------------|
| <b>Uttar Pradesh</b> | <b>403 seats</b> (SC: 84, ST: 2)       | <b>100 seats</b> (Bicameral!)            | <b>80 seats</b> (Highest in India; SC reserved: 17, ST: 0)                | <b>31 seats</b> (Highest in India) | <b>Allahabad High Court</b> (Established 1866 at Agra, shifted to Allahabad 1869; Lucknow Bench created 1948) |
| <b>Uttarakhand</b>   | <b>70 seats</b> (SC: 13, ST: 2)        | <b>Unicameral</b> (No Council)           | <b>5 seats</b> (Tehri, Garhwal, Almora - SC, Haridwar, Nainital-US Nagar) | <b>3 seats</b>                     | <b>Uttarakhand High Court</b> (Established 9 Nov 2000 at Nainital; shifting to Haldwani approved)             |

### 15. The Five Types of Writs (Articles 32 & 226)

Power to issue prerogative writs: *Supreme Court (Article 32 — only for Fundamental Rights) and High Courts (Article 226 — for Fundamental Rights AND ordinary legal rights; HC writ jurisdiction is wider than SC!)*

| Writ Name                                     | Literal Latin Meaning                       | Purpose & Grounds for Issue                                                                                                                                                                                      | Against Whom Issued                                                                                            | Exceptions (Cannot be Issued Against)                                                                                                                                                                                                             |
|-----------------------------------------------|---------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Habeas Corpus</b><br>(बन्दी प्रत्यक्षीकरण) | <b>“To have the body of”</b>                | Remedy against <b>unlawful detention or illegal custody</b> ; court orders the detaining authority to produce the detained person before it to examine legality of detention                                     | <b>Both Public Authorities and Private Individuals</b>                                                         | 1. Detention is lawful<br>2. Proceeding is for contempt of court/legislature<br>3. Detention is by competent court<br>4. Outside court's territorial jurisdiction                                                                                 |
| <b>Mandamus</b><br>(परमादेश)                  | <b>“We Command”</b>                         | Order issued to a public official/body directing them to <b>perform an official public duty</b> which they have failed or refused to perform                                                                     | <b>Public officials, Public Corporations, Inferior Courts, Tribunals, Government</b>                           | 1. <b>Private individuals or private bodies</b><br>2. Discretionary duties (not mandatory)<br>3. To enforce private contracts<br>4. <b>President of India or State Governors</b> (Art. 361)<br>5. Chief Justice of HC acting in judicial capacity |
| <b>Prohibition</b><br>(प्रतिषेध)              | <b>“To Forbid”</b>                          | Issued by a higher court to a lower court/tribunal to <b>prevent it from exceeding its jurisdiction</b> or usurping a jurisdiction not vested in it; preventive in nature                                        | <b>Judicial and Quasi-Judicial Authorities only</b>                                                            | Administrative authorities, legislative bodies, and private individuals/bodies                                                                                                                                                                    |
| <b>Certiorari</b><br>(उत्प्रेषण)              | <b>“To be Certified” / “To be Informed”</b> | Issued by a higher court to a lower court/tribunal to <b>quash an order already passed</b> in excess of jurisdiction, lack of jurisdiction, or violation of natural justice; both <b>preventive and curative</b> | <b>Judicial, Quasi-Judicial, and Administrative Authorities</b> (SC expanded to administrative bodies in 1991) | Legislative bodies and private individuals/bodies                                                                                                                                                                                                 |
| <b>Quo-Warranto</b><br>(अधिकार-पृच्छा)        | <b>“By What Authority or Warrant”</b>       | Issued to enquire into the <b>legality of the claim of a person to a public office</b> ; prevents illegal usurpation of a substantive public office                                                              | <b>Substantive Public Offices of a permanent nature created by statute/Constitution</b>                        | Ministerial offices (PM/Minister), private offices.<br><i>(Can be sought by ANY interested person, not necessarily the aggrieved party!)</i>                                                                                                      |

## 16. Constituent Assembly Committees & Drafting Committee Members

### A. Major Committees & Their Chairpersons (High-Frequency Match)

| Committee Name                                                                 | Chairperson                     | Scope & Responsibility                                                                                                                                                                                                                                                                                                                                                                |
|--------------------------------------------------------------------------------|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Drafting Committee</b> (प्रारूप समिति)                                      | <b>Dr. B.R. Ambedkar</b>        | Prepared the draft of the Constitution; appointed on <b>29 August 1947</b>                                                                                                                                                                                                                                                                                                            |
| <b>Union Powers Committee</b>                                                  | <b>Jawaharlal Nehru</b>         | Defined the extent of Union legislative authority                                                                                                                                                                                                                                                                                                                                     |
| <b>Union Constitution Committee</b>                                            | <b>Jawaharlal Nehru</b>         | Drafted structure of the Union Executive and Parliament                                                                                                                                                                                                                                                                                                                               |
| <b>States Committee (Committee for Negotiating with States)</b>                | <b>Jawaharlal Nehru</b>         | Negotiations with Princely States                                                                                                                                                                                                                                                                                                                                                     |
| <b>Provincial Constitution Committee</b>                                       | <b>Sardar Vallabhbhai Patel</b> | Drafted structure of State Governors and Legislatures                                                                                                                                                                                                                                                                                                                                 |
| <b>Advisory Committee on Fundamental Rights, Minorities &amp; Tribal Areas</b> | <b>Sardar Vallabhbhai Patel</b> | Apex advisory body with 5 sub-committees:<br><ul style="list-style-type: none"> <li><i>Fundamental Rights Sub-Committee:</i> <b>J.B. Kripalani</b></li> <li><i>Minorities Sub-Committee:</i> <b>H.C. Mukherjee</b></li> <li><i>North-East Frontier Tribal Areas:</i> <b>Gopinath Bardoloi</b></li> <li><i>Excluded &amp; Partially Excluded Areas:</i> <b>A.V. Thakkar</b></li> </ul> |
| <b>Rules of Procedure Committee</b>                                            | <b>Dr. Rajendra Prasad</b>      | Formulated rules for conduct of assembly business                                                                                                                                                                                                                                                                                                                                     |
| <b>Steering Committee</b>                                                      | <b>Dr. Rajendra Prasad</b>      | Steered legislative agenda and debates                                                                                                                                                                                                                                                                                                                                                |
| <b>Ad-hoc Committee on the National Flag</b>                                   | <b>Dr. Rajendra Prasad</b>      | Adopted the National Flag on <b>22 July 1947</b>                                                                                                                                                                                                                                                                                                                                      |
| <b>Order of Business Committee</b>                                             | <b>Dr. K.M. Munshi</b>          | Scheduled daily proceedings                                                                                                                                                                                                                                                                                                                                                           |

### B. The 7 Members of the Drafting Committee (Must-Memorize List)

Set up on 29 August 1947 under the chairmanship of Dr. B.R. Ambedkar:

- Dr. B.R. Ambedkar** (Chairman)
- N. Gopalaswami Ayyangar**
- Alladi Krishnaswamy Iyer**
- Dr. K.M. Munshi** (Only original Congress politician member)
- Syed Mohammad Saadulla** (Only Muslim League member)
- N. Madhava Rau** (Replaced **B.L. Mitter** who resigned due to ill-health)
- T.T. Krishnamachari** (Replaced **D.P. Khaitan** who died in 1948)

**Constitutional Adviser:** Sir **B.N. Rau** (prepared original constitutional draft).  
**Chief Draftsman:** **S.N. Mukherjee**.  
**Calligrapher of English text:** Prem Behari Narain Raizada (flowery italic style).  
**Illuminator / Decorator:** **Nandalal Bose** and **Beohar Rammanohar Sinha** (Santiniketan artists).  
**Hindi Calligrapher:** **Vasant Krishan Vaidya** (decorated by Nandalal Bose).

## 17. Center-State Relations & Inter-State River Water Dispute Tribunals

### A. Major Commissions on Center-State Relations

| Commission / Committee                           | Year        | Appointed By / State                              | Key Recommendations / Landmark Findings                                                                                                                                      |
|--------------------------------------------------|-------------|---------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Administrative Reforms Commission (ARC-I)</b> | <b>1966</b> | Central Govt (Morarji Desai → K. Hanumanthaiah)   | Recommended setting up of an <b>Inter-State Council under Article 263</b> ; non-partisan Governors                                                                           |
| <b>Rajamannar Committee</b>                      | <b>1969</b> | <b>Tamil Nadu Govt</b> (DMK, Dr. P.V. Rajamannar) | Strongly advocated State Autonomy; recommend immediate deletion of <b>Articles 356 and 365</b> ; vesting residuary powers in States; abolishing All-India Services (IAS/IPS) |

| Commission / Committee    | Year      | Appointed By / State                                                     | Key Recommendations / Landmark Findings                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------------------------|-----------|--------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Anandpur Sahib Resolution | 1973      | Akali Dal (Punjab)                                                       | Demanded restriction of Central jurisdiction strictly to <b>Defence, Foreign Affairs, Currency, and Communications</b>                                                                                                                                                                                                                                                                                                                                                                             |
| West Bengal Memorandum    | 1977      | Left Front Govt (WB)                                                     | Demanded word "Union" be replaced by "Federation"; 75% of central revenues to states                                                                                                                                                                                                                                                                                                                                                                                                               |
| Sarkaria Commission       | 1983–1987 | Central Govt (Justice <b>R.S. Sarkaria</b> , B. Sivaraman, Dr. S.R. Sen) | <b>MOST INFLUENTIAL COMMISSION:</b><br>1. <b>Article 356 must be used sparingly, only as a measure of last resort</b><br>2. Institutionalize <b>Inter-State Council</b> under Art. 263 (established 1990)<br>3. Governor should be an eminent person from outside the state, detached from active politics, appointed after consulting CM<br>4. Opposed abolishing All-India Services, advocated strengthening them<br>5. Residuary legislative powers should remain with Centre (except taxation) |
| Punchhi Commission        | 2007–2010 | Central Govt (Justice <b>M.M. Punchhi</b> )                              | 1. Localized emergency (targeted under Art. 355/356 without dissolving state assembly)<br>2. Governor's tenure: fixed 5 years, removal only through impeachment by State Legislature<br>3. Governor should not be Chancellor of state universities                                                                                                                                                                                                                                                 |

## B. Inter-State River Water Disputes (Article 262)

*Inter-State River Water Disputes Act 1956 empowers Central Govt to set up ad-hoc tribunals; jurisdiction of Supreme Court is barred:*

| Water Dispute Tribunal                | Year Set Up | Riparian States Involved in Dispute                              |
|---------------------------------------|-------------|------------------------------------------------------------------|
| Krishna Water Dispute Tribunal I & II | 1969 / 2004 | Maharashtra, Karnataka, Andhra Pradesh, Telangana                |
| Godavari Water Dispute Tribunal       | 1969        | Maharashtra, Andhra Pradesh, MP, Chhattisgarh, Odisha, Karnataka |
| Narmada Water Dispute Tribunal        | 1969        | Gujarat, Madhya Pradesh, Maharashtra, Rajasthan                  |
| Ravi & Beas Water Dispute Tribunal    | 1986        | Punjab, Haryana, Rajasthan                                       |
| Cauvery Water Dispute Tribunal        | 1990        | Tamil Nadu, Karnataka, Kerala, Puducherry                        |
| Mahadayi (Mandovi) Tribunal           | 2010        | Goa, Karnataka, Maharashtra                                      |
| Vansadhara Water Dispute Tribunal     | 2010        | Odisha and Andhra Pradesh                                        |
| Mahanadi Water Dispute Tribunal       | 2018        | Chhattisgarh and Odisha                                          |

## Topic 1 — Constitutional Development

### Consolidated — 35 Must-Score Facts

1. The **Regulating Act, 1773** created the **Governor-General (गवर्नर-जनरल) of Bengal** (Warren Hastings (वारेन)) and a Supreme Court at Calcutta in **1774**. It did **not** create the Governor-General of India.
2. The **Charter Act, 1833** made the Governor-General of Bengal the **Governor-General of India**; William Bentinck (बेंटिंक) was the first holder of that title.
3. Under **Pitt's India Act, 1784**, the **Board of Control** handled political affairs and the **Court of Directors** handled commercial affairs. Do not swap the two.
4. The **Act of 1786** let the Governor-General **overrule** his Council on safety/peace grounds; **Lord Cornwallis** was the first Governor-General who was also Commander-in-Chief.
5. Open competitive examination for the **ICS** was implemented under the **Charter Act, 1853**. The **1833** Act only carried the spirit of open competition.
6. The **Charter Act, 1813** ended the Company's trade monopoly except **tea and China trade**, and set aside **₹1 lakh** for education. Territory and revenue stayed with the Company for another **20 years**.
7. The **Government of India Act, 1858** ended Company rule. The Crown took over; a **Secretary of State** and a **Viceroy** (वायसराय) replaced Company control. **Lord Canning** was the first Viceroy (कैनिंग).
8. The **portfolio system** got legal recognition (मान्यता) under the **Indian Councils Act, 1861** (practice had begun around **1859**). Do not fact it to 1858, 1892, or 1909.
9. The **Indian Councils Act, 1892** introduced **indirect elections** and allowed **budget discussion without voting**. Supplementary questions arrived with **1909**, not 1892.
10. **Muslim separate electorates** began with the **Indian Councils Act, 1909** (Morley-Minto). The Communal Award of **1932** was not the first such device.
11. **S.P. Sinha** was the first Indian member of the Viceroy's Executive Council under the **1909** reforms.
12. The **Government of India Act, 1919** introduced **Dyarchy** (द्वैध शासन) in the provinces, a bicameral legislature at the Centre, and the **Chamber of Princes**.
13. The **Government of India Act, 1935** introduced **Provincial Autonomy**, which **operated**. The proposed **Federation** and **Dyarchy at the Centre never operated**.
14. Under the **1935** Act, residuary (अवशिष्ट) powers rested with the **Viceroy / Governor-General**, not with the Federal Legislature.
15. The **Federal Court** under the 1935 scheme began in **1937**. The **RBI** was created by the **RBI Act, 1934**; the 1935 Act only provided for a central bank.
16. The **Communal Award** came in **1932** (not 1933). The **Poona Pact** (पूना पैक्ट) replaced separate electorates for Depressed Classes with **reserved seats and a joint electorate**.
17. Gandhi (गांधी) attended the **Second Round Table Conference**; **Rajendra Prasad** did not go as the Congress (कांग्रेस) delegate.
18. The **August Offer (1940)** (Viceroy Linlithgow) offered dominion status after the war and accepted in principle the idea of a constitution framed by Indians — the **1935** Act itself did not provide a written Constitution.
19. The **Cripps Mission (March 1942)** offered a Constituent Assembly after the war and dominion status; Congress rejected it. Chronology: Cripps (**1942**) → Wavell/Shimla (**1945**) → Cabinet Mission (**1946**).
20. The **Wavell Plan (1945)** proposed equal Hindu-Muslim seats on the Governor-General's Executive Council (except Defence); the **Shimla Conference** failed to break the deadlock.
21. The **Cabinet Mission (1946)** (Pethick-Lawrence, Stafford Cripps, A.V. Alexander) rejected a sovereign Pakistan, proposed a **three-tier** Union with **Sections A/B/C**, and framed the path to the Constituent Assembly.
22. The Interim Government was **announced on 24 August 1946** and took **office on 2 September 1946**. Do not mix the two dates.
23. The **Mountbatten Plan** (माउंटबेटन योजना) was announced on **3 June 1947**. The **Indian Independence Act** received assent on **18 July 1947**.
24. The first clear demand for a Constituent Assembly (संविधान सभा) is linked to **M.N. Roy (1934)** and then the **Congress (1935)**.
25. The Constituent Assembly's original strength was **389 (292 + 93 + 4)**, later reduced to **299**. Election was **indirect** by provincial assemblies through **PR-STV**. About **15 women** were members. **Gandhi was not a member**.
26. The Assembly first met on **9 December 1946**. The **Objectives Resolution** was moved on **13 December 1946** and adopted (अंगीकृत) on **22 January 1947**.
27. The **Drafting Committee** was set up on **29 August 1947** with **B.R. Ambedkar** (बी.आर. अम्बेडकर) as Chairman. **B.N. Rau** was the **Constitutional Adviser**, not the Drafting Chair.
28. The **Minorities Sub-Committee** was chaired by **H.C. Mukherjee**. The parent **Advisory Committee** was chaired by **Sardar Patel** (सरदार पटेल).
29. The Constitution was **adopted on 26 November 1949** (284 signatures) and **enforced on 26 January 1950**. The last Assembly sitting (बैठक) was on **24 January 1950**. The national flag was adopted on **22 July 1947**.
30. **C. Rajagopalachari** was the first Indian Governor-General (**1948–50**). Mountbatten was the last British Governor-General, not the first Indian one.
31. Borrowed-feature facts: **UK** — parliamentary system; **USA** — Fundamental Rights (मौलिक अधिकार); **Ireland** — DPSP (राज्य के नीति निर्देशक तत्व); **Canada** — residuary powers; **Australia** — Concurrent List (समवर्ती सूची); **Germany** — emergency suspension model; **Japan** — procedure (प्रक्रिया) established by law (Art. 21 style); **GOI Act 1935** — structural (संरचनात्मक) skeleton.
32. The **Simon Commission (1927)** was all-British. The **Nehru Report** followed in **1928**, then the Round Table Conferences, the Award/Poona Pact, and the **1935** Act.
33. Under **1919**, a path toward a Public Service Commission led to the **Central PSC in 1926**.
34. Six provinces became bicameral under the 1935 scheme: **Bengal, Bombay, Madras, Bihar, Assam, and the United Provinces**.
35. Constitution Day is remembered on **26 November** as the adoption anniversary, not as the enforcement date.

#### Constitutional Development Acts Chronology (1773–1947)

1773: Regulating Act (GG of Bengal: Warren Hastings; SC at Calcutta 1774)

1784: Pitt's India Act (Dual Government: Board of Control & Court of Directors)

1793: Charter Act (Company monopoly extended 20 yrs; Home charges from India)

1813: Charter Act (Trade monopoly ended except Tea & China; 1 Lakh for education)

1833: Charter Act (GG of India: William Bentinck; trade ended; Law Member Macaulay)

1853: Charter Act (Separated Executive & Legislature; Open competition for ICS)

1858: Government of India Act (Crown Rule; Secretary of State & Council; Viceroy Canning)

1861: Indian Councils Act (Portfolio system; Ordinance power; Decentralization restored)

1892: Indian Councils Act (Indirect elections; Budget discussion without voting)  
|  
1909: Morley-Minto Reforms (Separate electorates for Muslims; S.P. Sinha in Council)  
|  
1919: Montagu-Chelmsford Reforms (Dyarchy in Provinces; Bicameral Centre; Central PSC 1926)  
|  
1935: Government of India Act (Provincial Autonomy; Federal Court 1937; Federation proposed)  
|  
1947: Indian Independence Act (Assent 18 July; Partition into India & Pakistan Dominions)

Must-score facts — Acts, missions, CA dates

Act → year / lock

| Act               | Lock                                                                            |
|-------------------|---------------------------------------------------------------------------------|
| Regulating Act    | <b>1773</b> — GG of <b>Bengal</b> ; SC Calcutta <b>1774</b>                     |
| Pitt's India Act  | <b>1784</b> — Board of Control (political) / Court of Directors (commercial)    |
| Charter 1833      | GG of <b>India</b> (Bentinck first)                                             |
| Charter 1853      | Open <b>ICS</b> competition                                                     |
| GOI Act 1858      | Crown rule (क्राउन शासन); first Viceroy <b>Canning</b>                          |
| Councils Act 1861 | Portfolio system legal recognition                                              |
| Councils Act 1909 | Muslim separate electorates; <b>S.P. Sinha</b> first Indian EC member           |
| GOI Act 1919      | <b>Dyarchy</b> (द्वैध शासन) in provinces; Chamber of Princes                    |
| GOI Act 1935      | <b>Provincial Autonomy</b> (worked); Federation / Centre Dyarchy <b>did not</b> |
| Communal Award    | <b>1932</b> (not 1933); Poona Pact = reserved seats + joint electorate          |

CA / transfer tags

| Item                       | Lock                                                                           |
|----------------------------|--------------------------------------------------------------------------------|
| Interim announced / office | <b>24 Aug 1946 / 2 Sep 1946</b>                                                |
| CA first meet              | <b>9 Dec 1946</b>                                                              |
| Drafting Committee         | <b>29 Aug 1947</b> ; Chair <b>Ambedkar</b> (अम्बेडकर); Adviser <b>B.N. Rau</b> |
| CA strength                | <b>389 → 299</b> ; ~15 women; <b>284</b> signed                                |
| Adopt / Enforce            | <b>26 Nov 1949 / 26 Jan 1950</b>                                               |
| Flag                       | <b>22 Jul 1947</b>                                                             |

Borrowed features (quick)

| Feature            | Source           |
|--------------------|------------------|
| Residuary          | <b>Canada</b>    |
| Concurrent List    | <b>Australia</b> |
| Fundamental Rights | <b>USA</b>       |
| DPSP               | <b>Ireland</b>   |

Topic 2 — Features of the Constitution

Must-score facts — type, Preamble, scholars

Type / design tags

| Item                    | Lock                                                                        |
|-------------------------|-----------------------------------------------------------------------------|
| Type of government      | <b>Parliamentary</b> + Democratic Republic                                  |
| Polity structure        | <b>Quasi-federal Union</b> (not Presidential)                               |
| Ambedkar line           | Federal in form, <b>unitary in spirit</b>                                   |
| Dual executive          | President nominal; PM real; responsible to <b>Lok Sabha</b>                 |
| Art. 1                  | <b>Union of States</b> (word “federation” unused)                           |
| Third tier              | <b>73rd / 74th, 1992</b>                                                    |
| Voting age 18 (from 21) | <b>61st</b> Amendment ( <b>1988</b> , enforced 1989)                        |
| Parts and Schedules     | Originally <b>22 Parts, 8 Schedules</b> ; Now <b>25 Parts, 12 Schedules</b> |

Federalism scholars

| Scholar            | Label                                                        |
|--------------------|--------------------------------------------------------------|
| K.C. Wheare        | Quasi-federal / Federation with strong centralizing tendency |
| Granville Austin   | Cooperative                                                  |
| Morris-Jones       | Bargaining                                                   |
| Ivor Jennings      | Centralising tendency                                        |
| C.H. Alexandrowicz | Sui Generis (Unique)                                         |

Preamble locks

| Item                      | Lock                                                                                        |
|---------------------------|---------------------------------------------------------------------------------------------|
| Counts                    | Justice <b>3</b> · Liberty <b>5</b> · Equality <b>2</b> · Fraternity <b>1</b> (with 2 aims) |
| Word <b>Federal</b>       | <b>Not</b> in Preamble                                                                      |
| 26 Jan 1950 text          | Sovereign Democratic Republic only                                                          |
| 42nd (1976)               | Added <b>Socialist + Secular</b> (+ integrity)                                              |
| Status                    | Part of Constitution; <b>non-justiciable / not enforceable</b>                              |
| Palkhivala                | <b>Identity card</b> (Preamble)                                                             |
| K.M. Munshi               | <b>Political Horoscope</b> (Preamble)                                                       |
| Ambedkar “heart and soul” | <b>Art. 32</b> (not Preamble)                                                               |
| Objective Resolution      | Moved by <b>JL Nehru</b> (13 Dec 1946), Adopted (अंगीकृत) <b>22 Jan 1947</b>                |
| French Revolution         | Source of <b>Liberty, Equality, Fraternity</b>                                              |
| Russian Revolution        | Source of <b>Justice</b> (Social, Economic, Political)                                      |

Borrowed map

| Feature                                                           | Source           |
|-------------------------------------------------------------------|------------------|
| Parliamentary, Writs, Rule of Law                                 | UK               |
| FR, Judicial review, Independent Judiciary, President Impeachment | USA              |
| DPSP, RS nominations by President                                 | Ireland          |
| Residuary with Centre, Advisory SC jurisdiction                   | Canada           |
| Concurrent List, Joint sitting                                    | Australia        |
| Emergency model (FR suspension)                                   | Germany (Weimar) |
| Procedure established by law (Art. 21)                            | Japan            |
| Constitution amendment, RS members election                       | South Africa     |
| Fundamental Duties, Ideals of Justice                             | USSR (Russia)    |
| Republic, Ideals of Liberty/Equality/Fraternity                   | France           |

## Topic 3 — Parts, Articles & Schedules

### Consolidated — 40 Must-Score Facts

1. The Constitution is organised into **Parts**. Originally there were **22 Parts**; today there are about **25 Parts** (including IVA, IXA, IXB, XIVA). **Part VII** stands **repealed**.
2. **Part III** (मौलिक अधिकार) is **Fundamental Rights** (मौलिक अधिकार) (justiciable). **Part IV** (नीति निर्देशक) is **DPSP** (राज्य के नीति निर्देशक तत्व) (non-justiciable). **Part IVA** is **Fundamental Duties** (मौलिक कर्तव्य).
3. **Part IX** (भाग IX) is Panchayats, **Part IXA** is Municipalities, and **Part IXB** is Cooperative Societies. Do not park Municipalities in Part XI.
4. **Part XI** is **Relations between the Union and the States**. **Part XIVA** (भाग XIVA) is **Tribunals**. Confusing XI with Municipalities or Tribunals is a classic wrong-match trap.
5. **Part V** is the Union; **Part VI** is the States; **Part VIII** is Union Territories; **Part X** is Scheduled and Tribal (आदिवासी) Areas; **Part XV** is Elections; **Part XVII** is Official Language; **Part XVIII** is Emergency; **Part XX** is Amendment; **Part XXI** holds temporary, transitional and special provisions (**371–371J**).
6. The **Attorney General** (महान्यायवादी) sits under **Part V**, not under **Part XIII** (Trade (पण्याध्यक्ष), Commerce and Intercourse). Citizenship sits in **Part II**, not Part I.
7. Schedule facts: **First** = territories of States and UTs; **Second** = emoluments (President, CJI, CAG (भारत के नियंत्रक-महालेखापरीक्षक), etc.); **Third** = oaths and affirmations (President's oath is NOT here, it is in Art. 60); **Fourth** = Rajya Sabha (राज्यसभा) seat allocation.
8. **Fifth Schedule** covers Scheduled Areas and Scheduled Tribes in many States. **Sixth Schedule** covers tribal areas of **Assam, Meghalaya (मेघालय), Tripura and Mizoram (AMTM)** with Autonomous Councils. (Manipur is NOT in 6th Schedule (6वीं अनुसूची)).
9. **Seventh Schedule** holds the Union, State and Concurrent Lists (**Article 246**). **Eighth Schedule** (आठवीं अनुसूची) lists **22** official languages.
10. **Ninth Schedule** (नौवीं अनुसूची) validates certain Acts (added by **1st Amendment, 1951**). **Tenth Schedule** is anti-defection (added by **52nd Amendment, 1985**).
11. **Eleventh Schedule** lists **29** Panchayat subjects (**73rd**). **Twelfth Schedule** lists **18** Municipality subjects (**74th**). Do not swap 29 and 18.
12. In the Eighth Schedule, 14 original languages. **Sindhi** (21st Amd), **Konkani, Manipuri (मणिपुरी), Nepali** (71st Amd), and **Bodo, Dogri, Maithili, Santhali** (92nd Amd) were added later. **Bhojpuri and English** are out.
13. **Article 1** declares India a **Union of States**. **Article 3** lets Parliament form or alter States. **Article 12** defines **State** for Fundamental Rights. **Article 13** voids inconsistent laws.
14. Equality cluster: **Articles 14–18**. Freedom cluster: **Article 19**'s **six** freedoms. Life and personal liberty: **Article 21** (अनुच्छेद 21). Free and compulsory education ages **6–14**: **Article 21A**.
15. **Article 32** (अनुच्छेद 32) is the Supreme Court remedy for Fundamental Rights. **Article 226** is the High Court's wider writ power. **Article 51A** holds Fundamental Duties.
16. Pardon facts: **Article 72** (President) and **Article 161** (Governor). Ordinance facts: **Article 123** (President) and **Article 213** (Governor).
17. Union executive articles: **74** (aid and advice), **75** (Council of Ministers), **76** (Attorney General). **Article 110** defines a Money Bill (धन विधेयक). **Article 112** is the Annual Financial Statement (वार्षिक वित्तीय विवरण) (Budget). **Article 148** is the CAG.
18. **Article 249** lets Rajya Sabha empower Parliament to legislate on a State List (राज्य सूची) subject.
19. **Article 263** is the Inter-State Council. **Article 280** is the Finance Commission (वित्त आयोग). **Article 300A** is the legal right to property (44th (44वां संशोधन) Amendment). **Article 312** enables All-India Services. **Article 315** is UPSC (संघ लोक सेवा आयोग) / SPSC. **Article 324** is the Election Commission (निर्वाचन आयोग).
20. Commission Articles: **338** (NCSC (राष्ट्रीय अनुसूचित जाति आयोग)), **338A** (NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) - 89th Amd), **338B** (NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) - 102nd Amd), **340** (Backward Classes Commission).
21. Emergency articles: **352** (national), **356** (State / President's Rule), **360** (financial). **Article 368** (अनुच्छेद 368) is amendment of the Constitution (Part XX).
22. Special-State articles run **371–371J** in Part XXI (e.g. 371A (अनु. 371A) Nagaland, 371G Mizoram, 371J Kalyana Karnataka). **Article 393** is the short title.
23. Part III article span is **12–35**. Part IV is **36–51**. Duties sit at **51A** (added by the **42nd (42वां) Amendment**; eleventh duty by the **86th Amendment, 2002**).
24. Panchayats (**Part IX**, Arts. **243–243O**) came with the **73rd Amendment, 1992**. Municipalities (**Part IXA**) came with the **74th Amendment, 1992**. Cooperatives (**Part IXB**) came with the **97th Amendment, 2011**.
25. Elections (**Part XV**, Arts. **324–329**) include adult suffrage under **Article 326** (voting (राणपूर्ति) age reduced from 21 to 18 by **61st Amendment, 1988**) and a bar on court interference under **Article 329**.
26. **Article 32** writs are for **Fundamental Rights only**. **Article 226** writs can protect Fundamental Rights **and** other legal rights — that is why 226 is called wider.
27. President's pardon (**72**) and Governor's pardon (**161**) must not be swapped on death sentence and court-martial (those stay with the President).
28. National Emergency (राष्ट्रीय आपात) is **352**; State Emergency / President's Rule is **356**; Financial Emergency (वित्तीय आपात) is **360**. Do not mix the three codes.
29. Fourth Schedule is **Rajya Sabha seats**, not validation of Acts. Ninth Schedule is **validation of Acts**, not RS seats.
30. Part match trap set: Municipalities ≠ Part XI; Tribunals ≠ Part XI; Attorney General ≠ Part XIII; Citizenship = Part II.
31. **Vice-President** cluster: Arts. **63–69** (office, RS Chair, acting President, election, term/removal, vacancy, oath). VP is elected by **Parliament only** (Art. **66**). President's college includes **State MLAs** (Art. **54**).
32. **High Court** cluster: Art. **214** (HC for each State), **215** (court of record), **217** (appointment; age **62**), **226** (writs — wider than 32), **227** (superintendence), **231** (common HC). Do not swap **226** with **227**.
33. **Article 21** is one sentence in the text, but courts have read into it dignity, livelihood, privacy (*Puttaswamy*), and related rights. **Article 21A** is the separate RTE for ages **6–14**.
34. **Article 51A** lists **11** Fundamental Duties (**a–k**). Ten came with the **42nd**; **51A(k)** came with the **86th**. Advocate-General of a State is Art. **165** (parallel to Union AG under Art. **76**).
35. The **Anti-Defection** law (Tenth Schedule) triggers disqualification for defection, decided by the Presiding Officer (पीठासीन अधिकारी) of the House (originally subject to no judicial review, later struck down in *Kihoto Hollohan*).
36. **7th Schedule** lists: Union (e.g., Defence, Foreign Affairs, Census), State (e.g., Police, Public Health, Agriculture), Concurrent (e.g., Education, Forests, Marriage — shifted by 42nd Amd).
37. **DPSP specific traps**: Art 39A (Free Legal Aid), Art 40 (Village Panchayats), Art 44 (UCC), Art 50 (Separation of Judiciary & Executive).
38. **Financial specific traps**: Art 266 (Consolidated Fund & Public Account (लोक लेखा)) vs Art 267 (Contingency Fund (आकस्मिकता निधि)).
39. **Panchayat specific traps**: Art 243D (Reservation of seats) and Art 243I (State Finance Commission).
40. **Art 371 series shortcuts**: 371 (MH & GJ), 371A (Nagaland), 371B (Assam), 371C (Manipur), 371D/E (AP & Telangana), 371F (Sikkim), 371G (Mizoram), 371H (Arunachal), 371I (अनु. 371I) (Goa (गोवा)), 371J (Karnataka). MNEMONIC: **No Agriculture Makes Andhra Sikkim More Ardent Go** Karnataka (NAMASMAGK).

### Must-score facts — Parts, Schedules, Articles

#### Part ↔ subject

| Part | Subject     |
|------|-------------|
| II   | Citizenship |

| Part           | Subject                                    |
|----------------|--------------------------------------------|
| III            | Fundamental Rights                         |
| IV             | DPSP                                       |
| IVA            | Fundamental Duties (42nd Amd)              |
| V / VI / VIII  | Union / States / UTs                       |
| IX / IXA / IXB | Panchayats / Municipalities / Cooperatives |
| XI             | Centre–State relations                     |
| XIV            | Services under Union and States (UPSC)     |
| XIVA           | Tribunals (42nd Amd)                       |
| XV             | Elections                                  |
| XVII           | Official Language                          |
| XVIII          | Emergency                                  |
| XX             | Amendment (Art. 368)                       |
| XXI            | Temporary / special ( <b>371–371J</b> )    |

#### Schedule ↔ subject

| Schedule | Lock                                                                                                                                       |
|----------|--------------------------------------------------------------------------------------------------------------------------------------------|
| 1st      | Territories of States / UTs                                                                                                                |
| 2nd      | Emoluments / Salaries (President, CJI, CAG, etc.)                                                                                          |
| 3rd      | Oaths (President's oath is NOT here)                                                                                                       |
| 4th      | Rajya Sabha seats                                                                                                                          |
| 5th      | Scheduled Areas / STs (many States)                                                                                                        |
| 6th      | <b>AMTM:</b> Assam, Meghalaya, Tripura, Mizoram Autonomous Councils                                                                        |
| 7th      | Union / State / Concurrent Lists                                                                                                           |
| 8th      | <b>22</b> languages ( <b>Sindhi, Konkani, Manipuri, Nepali, Bodo, Dogri, Maithili, Santhali</b> added later. Bhojpuri/English <b>out</b> ) |
| 9th      | Validation of Acts (1st Amd, 1951)                                                                                                         |
| 10th     | Anti-defection (52nd Amd, 1985)                                                                                                            |
| 11th     | <b>29</b> Panchayat subjects (73rd Amd)                                                                                                    |
| 12th     | <b>18</b> Municipality subjects (74th Amd)                                                                                                 |

#### High-yield Articles

| Article           | Lock                                             |
|-------------------|--------------------------------------------------|
| 1 / 3             | Union of States / form–alter States              |
| 14-18 / 19 / 21   | Right to Equality / Freedom / Life & Liberty     |
| 32 / 226          | SC FR remedy / HC wider writs                    |
| 40 / 44           | Village Panchayats / Uniform Civil Code          |
| 72 / 161          | President / Governor pardon                      |
| 110 / 112         | Money Bill / Annual Financial Statement (Budget) |
| 123 / 213         | President / Governor ordinance                   |
| 148               | CAG                                              |
| 249               | RS power to legislate on State List subject      |
| 263 / 280 / 324   | ISC / Finance Commission / Election Commission   |
| 300A              | Legal right to property                          |
| 312 / 315         | All-India Services / UPSC                        |
| 338 / 338A / 338B | NCSC / NCST / NCBC                               |
| 352 / 356 / 360   | National / State / Financial Emergency           |
| 368               | Amendment procedure (प्रक्रिया)                  |

## Topic 4 — Union & Territory

### Consolidated — 32 Must-Score Facts

- Part I (Articles 1–4):** India, that is Bharat, is a **Union of States**. The term “Federation” is nowhere used. Names and territorial extent are in the **First Schedule**.
- Territory of India under **Article 1(3)** comprises **States, Union Territories**, and such other territories as may be **acquired** (e.g., Puducherry, Goa (गोवा) initially).
- Article 2 vs Article 3:** Art 2 allows Parliament to **admit or establish new** States (foreign territory, e.g., Sikkim). Art 3 allows forming/altering *existing* States (boundary/name changes).
- Article 4:** Laws under Art 2 & 3 amend the First and Fourth Schedules by a **simple majority**; they are **not** constitutional amendments under **Article 368** (अनुच्छेद 368).
- Article 3 Procedure (प्रक्रिया):** Bill needs prior **President’s recommendation**. The concerned State Legislature’s views are sought but are **not binding**. The State Legislature **cannot** itself change its name.
- Acquisition vs Cession:** Acquisition requires ordinary law. **Cession** of Indian territory requires a **Constitutional Amendment** (*Berubari Union* case, 1960).
- Cession Amendments:** 9th Amendment (9वाँ संशोधन) (1960) ceded Berubari to Pakistan. 100th Amendment (2015) executed India–Bangladesh Land Boundary Agreement (exchange of 162 enclaves).
- Dhar Commission (June 1948)** and **JVP Committee (Dec 1948)** both purely **rejected** immediate linguistic reorganisation, prioritizing national unity.
- Andhra State:** Formed on **1 Oct 1953** following Potti Sriramulu’s fast unto death. It was the **first linguistic State**. First capital was **Kurnool** (not Hyderabad (हैदराबाद)).
- States Reorganisation Commission (SRC (आयोग), 1953):** Chaired by **Justice Fazl Ali**, with **K.M. Panikkar** and **H.N. Kunzru**. (K.T. Shah and P. Sitaramayya were *not* members).
- States Reorganisation Act, 1956:** Combined with the **7th Amendment (1956)**, it abolished Part A (ए)/B/C/D states, establishing **14 States and 6 UTs** on 1 Nov 1956.
- Zonal Councils:** They are **statutory** bodies established by the States Reorganisation Act, 1956. The **Union Home Minister** is the common chairman. (North Eastern Council was formed by a separate 1971 Act).
- Formation Chronology:** Gujarat (1960), Nagaland (1963), Haryana (1966), Himachal (हिमाचल) (1971), Manipur/Tripura/Meghalaya (मेघालय) (1972), Sikkim (1975).
- Sikkim:** Created via **Article 2**. 35th Amd (1974) made it an ‘Associate State’; **36th Amd (1975)** made it a full 22nd State (inserted Art. 371F).
- UP/UK trivia:** United Provinces renamed to **Uttar Pradesh** (उत्तर प्रदेश) on **24 Jan 1950** (UP Diwas). **Uttarakhand** (उत्तराखंड) was carved out on **9 Nov 2000** as the 27th State.
- Current Map:** India has **28 States and 8 Union Territories**. Dadra (दादरा) & Nagar Haveli and Daman & Diu merged into one UT in **Jan 2020**. J&K and Ladakh (लद्दाख) formed on 31 Oct 2019.
- UT Administration (Part VIII):** Administered directly by the President through an Administrator or **Lieutenant Governor (LG)** under **Article 239**.
- Legislatures in UTs:** **Art. 239A** (14th Amd) enables Puducherry’s legislature. **Art. 239AA** (69th Amd, 1991) designates Delhi as **NCT** with special provisions.
- NCT Delhi Exceptions:** Public order, police, and land remain strictly with the Union (unlike Puducherry). Maximum LS seats from UTs is **20** (Article 81). Delhi has 70 MLAs.
- Citizenship (Part II, Articles 5–11):** India follows **single citizenship** (unlike USA’s dual system). Constitution left citizenship regulation to Parliament (**Article 11**).
- Citizenship Act, 1955:** Provides 5 modes of **acquisition** (Birth, Descent, Registration, Naturalisation, Territory Incorporation) and 3 of **loss** (Renunciation, Termination, Deprivation).
- Dual Citizenship:** Strictly **not allowed**. Voluntary acquisition of foreign citizenship results in automatic **termination** (**Article 9**).
- Deprivation:** A compulsory Central order against **registered/naturalised** citizens (for fraud, disloyalty, or 7-year overseas residence). Birth citizens cannot be ‘deprived’.
- Birth-citizenship evolution:** Birth plus: -> 1987 (one parent must be Indian) -> **3 Dec 2004** (both parents citizens, or one citizen & other not an *illegal migrant*).
- PIO / OCI:** PIO scheme merged into **OCI in 2015**. OCI is **not** dual citizenship—OCI cardholders cannot vote, hold constitutional office, or routinely buy agricultural land.
- Pravasi Bharatiya Divas:** Celebrated on **9 Jan** (Gandhi (गान्धी)’s return), inspired by the **L.M. Singhvi Committee (2000)** on Indian diaspora.
- Citizenship Amendment Act (CAA), 2019:** Protects 6 persecuted minorities (Hindu, Sikh, Buddhist, Jain, Parsi, Christian) from 3 countries (Pak, Afghan, Bangladesh) entering on/before **31 Dec 2014**.
- National Integration Council (NIC, 1961):** PM is the chairman. It is completely **extra-constitutional** (unlike the Inter-State Council under Art. 263).
- Fundamental Rights (मौलिक अधिकार) (Citizens Only):** Articles **15, 16, 19, 29, 30**. Non-citizens also get Arts. 14, 20, 21, 22, 25–28.
- Minority / Treaties Trivia:** French enclaves (Puducherry de jure 1962), Portuguese enclaves (Goa/Daman/Diu liberated in 1961 via *Operation Vijay*).
- Article 240** lets the President make **regulations** for peace, progress and good government of listed UTs without a legislature (or when the legislature is dissolved/suspended). Living list includes Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, and **Puducherry** when its Assembly is not functioning. **Goa is a State** — not on the Art. 240 list.
- Article 241** enables a High Court for a Union Territory; Parliament may also place a UT under a neighbouring State’s High Court (e.g. Chandigarh with Punjab & Haryana HC).

### Must-score facts — Arts. 1–4, SRC, citizenship

#### Article & Constitutional Tags

| Entity            | Core Lock                                                                                                 |
|-------------------|-----------------------------------------------------------------------------------------------------------|
| <b>Art. 1</b>     | India = Union of States; Territory = States + UTs + Acquired                                              |
| <b>Art. 2</b>     | Admit / establish <b>new</b> States (e.g., Sikkim entry)                                                  |
| <b>Art. 3</b>     | Form / alter <b>existing</b> States; President’s recommendation mandatory; State views <b>not binding</b> |
| <b>Art. 4</b>     | Changes to 1st & 4th Schedules not deemed Art. 368 amendment                                              |
| <b>Art. 5–11</b>  | Citizenship (Part II); Single citizenship                                                                 |
| <b>Art. 239</b>   | UT administered via Administrator / LG                                                                    |
| <b>Art. 239AA</b> | NCT Delhi (69th Amd) — public order / police / land strictly with Centre                                  |

#### Quick Chronology & Committees

| Item                         | Core Lock                                                               |
|------------------------------|-------------------------------------------------------------------------|
| <b>Dhar &amp; JVP (1948)</b> | Rejected immediate linguistic States; focus on unity                    |
| <b>Andhra (1953)</b>         | First linguistic State ( <b>1 Oct 1953</b> ); capital <b>Kurnool</b>    |
| <b>SRC (1953)</b>            | Fazl Ali (Chair), K.M. Panikkar, H.N. Kunzru (Sitaramayya NOT a member) |
| <b>SRA (1956) + 7th Amd</b>  | <b>1 Nov 1956</b> — 14 States + 6 UTs scheme                            |

| Item                   | Core Lock                                              |
|------------------------|--------------------------------------------------------|
| Sikkim                 | 35th Amd (Associate State), 36th Amd 1975 (Full State) |
| Uttarakhand (UP focus) | Carved from UP on <b>9 Nov 2000</b> (27th State)       |

#### Citizenship Locks

| Item                  | Core Lock                                                                               |
|-----------------------|-----------------------------------------------------------------------------------------|
| Statute & Power       | Citizenship Act <b>1955</b> ; Parliament's absolute (निरपेक्ष) power ( <b>Art. 11</b> ) |
| Citizen-only FRs      | Arts. <b>15, 16, 19, 29, 30</b>                                                         |
| Acquisition (5 modes) | Birth, descent, registration, naturalisation, incorporation of territory                |
| Loss (3 modes)        | Renunciation, termination (automatic on foreign passport), deprivation (Central order)  |
| Pravasi Bh. Divas     | <b>9 Jan</b> ; L.M. Singhvi Committee (2000) recommendation                             |
| CAA 2019              | 6 minority religions from Pak, Afghan, Bangladesh entering before <b>31 Dec 2014</b>    |

Topic 5 — Fundamental Rights & Duties

Consolidated — 32 Must-Score Facts

1. **Part III (मौलिक अधिकार) (Articles 12–35)** holds Fundamental Rights. They are **justiciable**. Part III is called the **Magna Carta of India**. Originally there were **seven** groups; after the **44th (44वाँ संशोधन) Amendment (1978)** removed the Right to Property, **six** groups remain. Pre-1950 demand spine: **1895** Tilak (तिलक) Bill → **Nehru (नेहरू) Report (नेहरू रिपोर्ट) 1928** (नेहरू रिपोर्ट) → **Karachi 1931** (Patel).
2. **Article 12** defines **State** for Part III (Union and State governments and legislatures, local authorities, and other authorities under the instrumentality test).
3. Rights available only to **citizens: Articles 15, 16, 19, 29 and 30**. Rights available to **all persons** (citizens and foreigners): **14, 20, 21, 21A, 22, 23, 24, 25–28 and 32**.
4. **Article 14** (equality before law / equal protection) covers **any person**. **Article 16** (equality of opportunity in public employment) covers **citizens only**.
5. Reservation / special-provision facts: **15(4)** is the first explicit special provision; **15(5)** is the **93rd**; **15(6) / 16(6)** are the **103rd** (EWS). Promotion facts include **16(4A) (77th)** and **16(4B) (81st / related 85th teaching)**.
6. **Article 17** abolishes **untouchability** (absolute (निरपेक्ष) equality fact). **Article 18** bans titles; national awards such as **Bharat Ratna** (भारत रत्न) are **not** “titles” in that sense.
7. **Article 19** gives **six** freedoms to **citizens**. The old property freedom **19(1)(f)** was deleted by the **44th Amendment** (44वाँ संशोधन); property now sits as a **legal right** under **Article 300A**.
8. The six freedoms are speech and expression, assembly, association (cooperatives reinforced by the **97th**), movement, residence, and profession — each with reasonable restrictions under **19(2)–(6)**.
9. **Article 20** protects **all persons** against ex post facto criminal law, double jeopardy, and self-incrimination. Torture and privacy questions are **not** solved only by Article 20.
10. **Article 21** (अनुच्छेद 21) protects life and personal liberty for **all persons**. After *Maneka Gandhi (गंधी)*, procedure (प्रक्रिया) must be **fair, just and reasonable**. **Privacy** was treated as a Fundamental Right in *Puttaswamy* (2017).
11. **Article 21A** (Right to Education) covers free and compulsory education for ages **6–14**, inserted by the **86th Amendment**. Do not stretch 21A to every age group.
12. **Article 22**: ordinary arrest needs production before a magistrate within **24 hours**. Preventive detention has a separate code (Advisory Board and three-month rhythm in the usual teaching).
13. **Articles 23–24** are rights against **exploitation** (begar (बेगार), trafficking, child labour under 14 in hazardous work). Do not park untouchability here — that is **Article 17** under equality.
14. Religion cluster **25–28**: **25** includes the right to **propagate**; **26** is to manage religious affairs; **27** bars a **tax** for promotion of a religion (a regulatory **fee** is different); **28** covers religious instruction in certain institutions.
15. **Article 29** protects culture of **any section** of citizens. **Article 30** protects **minorities’** right to establish and administer educational institutions. “Minority” is not exhaustively defined in the text (*T.M.A. Pai* line).
16. **Article 32** (अनुच्छेद 32) is the Supreme Court writ remedy for **Fundamental Rights only** — Ambedkar (अम्बेडकर)’s “heart and soul.” **Article 226** is **wider**: Fundamental Rights **plus** other legal rights.
17. Five writs (पाँच प्रकार की रिटें): **Habeas Corpus** (बन्दी प्रत्यक्षीकरण), **Mandamus** (परमादेश), **Prohibition** (प्रतिषेध), **Certiorari** (उत्प्रेषण), **Quo Warranto** (अधिकार-पृच्छा). **Prohibition** comes **before** the decision; **Certiorari** comes **after** to quash. Mandamus does **not** run against the President or a Governor in the usual fact.
18. High Court Habeas Corpus can reach even a **private** person in the classic teaching. Quo Warranto tests illegal occupation of a **public office**.
19. Under a National Emergency (राष्ट्रीय आपात), **Article 358** automatically suspends **Article 19** freedoms (subject to later refinements). **Article 359** can suspend enforcement of other rights by order, but **Articles 20 and 21** cannot be suspended.
20. **DPSP** (राज्य के नीति निर्देशक तत्व) sit in **Part IV (नीति निर्देशक) (Articles 36–51)**, borrowed in form from **Ireland**, and are **non-justiciable (Article 37)** though fundamental in governance.
21. High-yield DPSP map: **39A** legal aid; **40** village panchayats; **43A** workers’ participation; **43B** cooperatives (**97th**); **44** Uniform Civil Code; **45** early childhood care (under-6 after 86th shift); **48A** environment (पर्यावरण); **50** separation of judiciary; **51** international peace.
22. Do not swap **43A** (workers) with **43B** (cooperatives), or **48** (cattle / agriculture) with **50** (separation of judiciary).
23. **Fundamental Duties** (मौलिक कर्तव्य) sit in **Part IVA, Article 51A**, added by the **42nd Amendment (1976)** — originally **10**, raised to **11** by the **86th (51A(k))** education of child). Duties bind **citizens**.
24. **Article 51A(g)** (protect environment) pairs with DPSP **48A** — same idea in two Parts.
25. Fundamental Rights are justiciable (USA-style Bill of Rights form); DPSP are non-justiciable (Ireland-style directives). Conflict cases later balanced them without erasing either Part.
26. **Article 13** voids inconsistent laws. Constitutional amendments sit outside via **13(4)** after the **24th Amendment**. Doctrines: eclipse, severability, and generally **no waiver** of Fundamental Rights.
27. Exceptions to equality include **Article 361** immunities of the President and Governors — Article 14 does not apply fully to those official-act shields.
28. S. Radhakrishnan’s Constituent Assembly (संविधान सभा) line: Fundamental Rights are “a **pledge** to our people and a **pact** with the civilized world.”
29. Some rights (notably **17, 23, 24**) also bind private persons; most Part III rights primarily bind the **State** under Article 12.
30. Property is **not** a Fundamental Right after the 44th; it is a **constitutional legal right** under **300A** — State can deprive only by authority of law.
31. **Articles 31A, 31B and 31C** save certain laws from Fundamental Rights attack: **31B** works with the **Ninth Schedule** (1st Amendment, 1951); **31C** protects laws giving effect to Articles **39(b)/(c)**. The **42nd** tried to stretch 31C to **all** DPSPs; *Minerva Mills* struck that stretch and kept the FR–DPSP balance as Basic Structure.
32. **Articles 33–35** let Parliament restrict or modify Fundamental Rights for the armed forces and similar forces (**33**), allow indemnity related to martial law (**34**), and reserve certain Part III powers exclusively to Parliament (**35**).

Must-score facts — FR groups, writs, DPSP, Duties

Citizens-only vs all persons

| Only citizens      | All persons                           |
|--------------------|---------------------------------------|
| 15, 16, 19, 29, 30 | 14, 20, 21, 21A, 22, 23–24, 25–28, 32 |

Six FR groups (present)

| Group                | Articles |
|----------------------|----------|
| Equality             | 14–18    |
| Freedom              | 19–22    |
| Against exploitation | 23–24    |

| Group                   | Articles |
|-------------------------|----------|
| Religion                | 25–28    |
| Culture & education     | 29–30    |
| Constitutional remedies | 32       |

#### Key article locks

| Article                   | Lock                                                                        |
|---------------------------|-----------------------------------------------------------------------------|
| 17                        | Untouchability (≠ exploitation 23–24)                                       |
| 19                        | Six freedoms; property <b>19(1)(f)</b> deleted by <b>44th</b> → <b>300A</b> |
| 20                        | Ex post facto · double jeopardy · self-incrimination (torture ≠ 20 alone)   |
| 21                        | Life / liberty; privacy = <i>Puttaswamy</i> <b>2017</b>                     |
| 21A                       | RTE ages <b>6–14 (86th)</b>                                                 |
| 32 vs 226                 | FR only / FR + other legal rights                                           |
| Prohibition vs Certiorari | <b>Before</b> decision / <b>After</b> to quash                              |
| 358 / 359                 | Art. 19 auto-suspend (war/external); <b>20 &amp; 21 never</b> suspended     |

#### DPSP / Duties

| Item         | Lock                                                             |
|--------------|------------------------------------------------------------------|
| DPSP         | Part IV <b>36–51</b> ; Ireland; non-justiciable ( <b>37</b> )    |
| 43A vs 43B   | Workers' participation vs cooperatives                           |
| 48 vs 50     | Cattle/agriculture vs separation of judiciary                    |
| 48A + 51A(g) | Environment in <b>both</b> Parts                                 |
| Duties       | <b>42nd</b> (10) + <b>86th</b> 51A(k); <b>vote is NOT a Duty</b> |
| Monuments    | DPSP <b>49</b> (not a Duty)                                      |

Topic 6 — Union Executive

Consolidated — 30 Must-Score Facts

- 1. **Part V** covers the Union: Executive (**Articles 52–78** — President, Vice-President, Prime Minister, Council of Ministers, Attorney General) plus Parliament, and the **CAG under Articles 148–151**.
- 2. India follows a parliamentary system: the **President** is the **nominal / de jure** head; the **real / de facto** executive is the **Council of Ministers headed by the Prime Minister**.
- 3. **Article 53** vests executive power of the Union in the **President**, exercised in practice on the **aid and advice** of the Council of Ministers under **Article 74**.
- 4. The President is elected **indirectly** by an Electoral College of **elected** MPs of both Houses, **elected** MLAs of the States, and **elected** MLAs of **Delhi and Puducherry (70th Amendment)**.
- 5. **Nominated** members of Parliament and members of State **Legislative Councils** do **not** vote in the Presidential election. They **do** vote in the Vice-President’s election.
- 6. Election uses **proportional representation by single transferable vote** and a secret ballot. Vote-value population (जनसंख्या) is frozen at the **1971 census** until the first census after **2026**.
- 7. Presidential qualifications (**Article 58**): citizen, completed **35 years**, and qualified for election to the **Lok Sabha** (लोकसभा) (not Rajya Sabha). Oath is before the **Chief Justice of India**.
- 8. Term is **five years**; re-election is allowed any number of times. A vacancy by death, resignation or removal must be filled within **six months**; the Vice-President acts until then.
- 9. Impeachment under **Article 61** is for **violation of the Constitution**. Nominated MPs **can** vote in impeachment; **State MLAs do not**. No President has ever been impeached.
- 10. Veto types in India: **absolute, suspensive, and pocket** (no fixed time limit). There is **no qualified veto** of the USA type.
- 11. On a **Money Bill**, the President may only **assent or withhold** — he **cannot return** it for reconsideration. After the **24th Amendment**, he **must assent** to a Constitution Amendment Bill.
- 12. **Article 72** (President) covers Union offences, court-martial sentences, and **death sentences**. **Article 161** (Governor) does **not** cover death sentence or court-martial.
- 13. **Article 123** ordinances: Houses not in session (पंगु सत्र); must be laid and lapse if not approved within **six weeks** of reassembly. An ordinance **cannot amend the Constitution**.
- 14. The Vice-President is **ex-officio Chairman of the Rajya Sabha** but is **not a member** of the House. Removal under **Article 67** starts in the Rajya Sabha (effective majority) and needs Lok Sabha agreement, with **14 days’** notice — not a full “impeachment” label.
- 15. Vice-President’s Electoral College is **both Houses of Parliament**, including **nominated** members; **State legislatures do not** take part.
- 16. **Article 74** aid and advice is **binding** on the President (42nd (42वाँ) / 44th (44वाँ संशोधन) line). **Article 78** is the Prime Minister’s duty to communicate information to the President.
- 17. Council of Ministers size is capped at **15% of the Lok Sabha** by the **91st Amendment**. Collective responsibility under **Article 75(3)** is to the **Lok Sabha only**.
- 18. Individual ministers hold office during the **pleasure of the President (Article 75(2))**. Rank order: Cabinet Ministers → Ministers of State → Deputy Ministers. Cabinet Committees are **extra-constitutional**.
- 19. The **Attorney General** (महान्यायवादी) (**Article 76**) is the first law officer, needs Supreme Court judge qualifications, holds office **during the pleasure of the President**, and may **speak in both Houses** but **cannot vote**.
- 20. The **CAG (Articles 148–151)** is appointed by the President for **six years or age 65**, removed **like a Supreme Court judge** (not pleasure tenure), and is barred from further Union or State office. Union reports go to the **President** then Parliament; State reports go to the **Governor**. Contrast: **AG = pleasure; CAG = SC-judge security**.
- 21. The **Warrant / Table of Precedence (1979)** is **ceremonial only**. It is **not** the constitutional line of succession.
- 22. Precedence ranks to fact: **1** President, **2** Vice-President, **3** Prime Minister, **4** Governors (within their State), **5** former Presidents, **6** CJI = Speaker, **7** Cabinet Ministers / CMs (in State) / former PMs / Leaders of Opposition, **11** Attorney General.
- 23. Do not place the Speaker below Cabinet Ministers: Speaker shares **rank 6** with the CJI; Cabinet Ministers are **rank 7**. AG at **11** does **not** outrank Cabinet Ministers.
- 24. **CEC / CAG (भारत के नियंत्रक-महालेखापरीक्षक) / UPSC (संघ लोक सेवा आयोग) Chair** sit at **9A**; Supreme Court judges sit at **9** — do not swap those bands.
- 25. The PMO is headed by the **Principal Secretary** to the PM. The **Cabinet Secretariat** is headed by the **Cabinet Secretary** — different offices.
- 26. Nomination for President needs **50** proposers and **50** seconders; disputes go to the **Supreme Court** under **Article 71**.
- 27. Resignation of the President is addressed to the **Vice-President**. The President shall not be a member of either House; if a sitting (बैठक) member is elected, the seat is vacated.
- 28. Kitchen / inner Cabinet and most Cabinet Committees are political practice, not constitutional offices. Deputy Prime Minister is also a political designation, not a separate constitutional post.
- 29. **Doctrine of Pleasure** (Article **310**) is the general rule for civil servants, but it is **restricted** by Article **311** and by the hard removal routes for judges, CAG, CEC and similar offices.
- 30. **Droupadi Murmu** became the **15th President** (office from **25 July 2022**) — first tribal President and second woman President.

Must-score facts — President, VP, PM, ordinances

Frame

| Item            | Lock                                         |
|-----------------|----------------------------------------------|
| Part / Arts.    | <b>Part V, 52–78</b>                         |
| Nominal / real  | President / PM + CoM                         |
| Executive power | Art. <b>53</b> ; aid & advice Art. <b>74</b> |

President election / office

| Item               | Lock                                                     |
|--------------------|----------------------------------------------------------|
| Electoral College  | Elected MPs + elected MLAs of States/UTs with Assemblies |
| Do <b>not</b> vote | Nominated MPs; Legislative Council members               |
| Method             | PR-STV; secret ballot                                    |
| Age                | <b>35</b> ; qualified for Lok Sabha                      |
| Term               | <b>5 years</b> ; re-election unlimited                   |

| Item        | Lock                                                       |
|-------------|------------------------------------------------------------|
| Impeachment | Art. <b>61</b>                                             |
| Pardon      | Art. <b>72</b> (death + court-martial stay with President) |
| Ordinance   | Art. <b>123</b>                                            |

#### VP / PM tags

| Item        | Lock                                                                    |
|-------------|-------------------------------------------------------------------------|
| VP election | Parliament only (Art. <b>66</b> ) — no State MLAs                       |
| VP role     | Ex-officio RS Chair                                                     |
| PM          | Appointed by President; real executive; collective responsibility to LS |
| AG          | Art. <b>76</b> ; may speak both Houses; no vote                         |

Topic 7 — Parliament

Consolidated — 30 Must-Score Facts

- 1. **Article 79**: Parliament of the Union = the **President + Rajya Sabha** (राज्यसभा) + **Lok Sabha** (लोकसभा). The President is an integral part of Parliament even though he sits in neither House.
- 2. Rajya Sabha maximum under **Article 80** is **250** (238 States/UTs + 12 nominated). Present strength is **245** (233 + 12). Seats follow the **Fourth Schedule** and are **not** equal per State.
- 3. Rajya Sabha members are elected by **elected MLAs** through **PR-STV**. Term is **six years; one-third retire every two years**. The House is **never dissolved**.
- 4. The President nominates **12** members with special knowledge in **literature, science, art, or social service**. **Sport** is **not** in that list. Nominated members vote in the **Vice-President** election but **not** in the **President** election.
- 5. Rajya Sabha special powers: **Article 249** (State List (राज्य सूची) for one year), **Article 312** (All-India Services — **2/3 of members present and voting** (गणपूर्ति)), and the start of **Vice-President removal**.
- 6. High-yield Rajya Sabha seat facts: **Uttar Pradesh** (उत्तर प्रदेश) **31**, Maharashtra 19, Tamil Nadu (तामिल) 18, Bihar/West Bengal 16; UTs with seats include **Delhi 3, Puducherry 1, Jammu & Kashmir 4**.
- 7. Lok Sabha maximum under **Article 81** is **550** (530 States + 20 UTs). Present elected strength is **543**. Election is **FPTP**; minimum age is **25**.
- 8. Anglo-Indian nomination to the Lok Sabha ended with the **104th Amendment**. SC/ST reservation continues till **25 January 2030**. Seat freeze uses the **1971** census (84th) until the first census after **2026**.
- 9. **Uttar Pradesh** (उत्तर प्रदेश) has **80** Lok Sabha seats — the highest Leading state in the usual map.
- 10. Qualifications sit in **Article 84**; disqualifications in **Article 102**. Office of profit is decided by the **President on binding Election Commission** (निर्वाचन आयोग) **advice**, not by the Speaker alone.
- 11. Dual-membership clocks: both Houses of Parliament — choose within **10 days**; Parliament and a State legislature — Parliament seat goes after **14 days**. *Lily Thomas*: conviction of **two years or more** brings **instant** disqualification.
- 12. The **Speaker** is elected by the House (**Article 93**), resigns to the Deputy Speaker, and can be removed by **14 days’** notice plus a majority of **all then members**. The Speaker gives the **Money Bill certificate** and presides over a **joint sitting** (संयुक्त बैठक).
- 13. The **Vice-President** is *ex-officio* **Chairman** of the Rajya Sabha and is **not a member**. The Deputy Chairman is elected **from among** Rajya Sabha members. **Pro Tem Speaker** is appointed by the **President**.
- 14. Sessions under **Article 85**: Budget, Monsoon, Winter; gap between two sittings of a House must not exceed **six months**. **Adjournment** (स्थगन) ends a sitting; **prorogation** (सत्रावसान) ends a session (Bills survive); **dissolution** (विघटन) ends the Lok Sabha’s life.
- 15. **Quorum** (गणपूर्ति / कोरम) is **one-tenth** (1/10) of total membership (सदन की कुल सदस्य संख्या का) (**Article 100**). A **lame-duck** session (पेंगु सत्र) is the last sitting of an outgoing Lok Sabha after a new House has been elected.
- 16. **Joint sitting** (संयुक्त बैठक) is **Article 108** (not 109). It is for **ordinary Bills** only. The **Speaker** presides. There is **never** a joint sitting for a **Money Bill**, Appropriation Bill, or **Constitution Amendment Bill**.
- 17. **Article 110** defines a Money Bill (धन विधेयक); **Article 109** is the **procedure** (प्रक्रिया). A Money Bill can originate **only in the Lok Sabha**. The Speaker’s certificate is **final**. Rajya Sabha gets **14 days** and may only **recommend** (सिफारिश).
- 18. **Financial Bill I (117(1))** has money-matter clauses plus other matter: only Lok Sabha origin; Rajya Sabha can amend; joint sitting **possible**. **Financial Bill II (117(3))** involves expenditure from the Consolidated Fund: either House; joint sitting **possible**.
- 19. **Finance Bill** is the annual tax Bill (usually certified as a Money Bill). **Appropriation Bill (Article 114)** is a Money Bill. Do not treat “Financial Bill” and “Finance Bill” as the same label.
- 20. Funds: **Consolidated Fund of India** (भारत की संचित निधि) and **Public Account** (लोक लेखा) sit under **Article 266**; the **Contingency Fund** (आकस्मिकता निधि) sits under **Article 267** (at the President’s disposal). Charged expenditure is **discussed but not voted**.
- 21. Budget is the **Annual Financial Statement** (वार्षिक वित्तीय विवरण) under **Article 112**. Lok Sabha may **reduce or refuse** a Demand for Grants — it **cannot increase** it. Guillotine (गिलोटिन - बिना चर्चा के सभी अनुदान मांगों पर मतदान) closes undiscussed demands at the time limit.
- 22. Devices: **Question Hour** (प्रश्न काल) is the first hour; **Zero Hour** (शून्य काल - Indian innovation, 1962 teaching) comes **after** Question Hour. **Adjournment motion** (स्थगन प्रस्ताव) and **no-confidence** (अविश्वास प्रस्ताव) are **Lok Sabha only**.
- 23. Cut motions (कटौती प्रस्ताव): **policy cut** (नीतिगत कटौती) reduces a demand to **₹1**; **economy cut** (मितव्ययिता कटौती) reduces by a specified amount; **token cut** (संकेतिक कटौती) reduces by **₹100**.
- 24. **Public Accounts Committee**: **22** members (**15 Lok Sabha + 7 Rajya Sabha**), conventionally chaired by an **opposition** member, and examines **CAG** reports.
- 25. **Estimates Committee**: **30** members, **all from the Lok Sabha** — the largest of the three classic financial committees and with **no** Rajya Sabha members. **COPU** is also **22**.
- 26. Parliamentary privileges under **Article 105** cover freedom of speech in the House and protection from **civil** arrest in the session window (**40 days** before/after plus during). They do **not** cover ordinary **criminal** process.
- 27. Prorogation does **not** kill Bills — notices and pending motions may lapse, but Bills remain. Only dissolution ends the Lok Sabha’s unfinished ordinary business in the usual way.
- 28. Leader of Opposition rests on the **1977** statutory recognition (मान्यता) with a practical **~10%** strength convention. Party **whips** (one-/two-/three-line) are **extra-constitutional**.
- 29. Each House has its own **Secretariat** under **Article 98**. Ministers and the Attorney General may **speak in both Houses (Article 88)** but vote only in the House where they are members.
- 30. **Meira Kumar** is the first woman Speaker of the Lok Sabha. Business Advisory Committee is chaired by the **Speaker**.

Must-score facts — RS, LS, Money Bill, seats

Composition

| House                      | Lock                                                            |
|----------------------------|-----------------------------------------------------------------|
| Parliament                 | President + RS + LS (Art. 79)                                   |
| Rajya Sabha max            | <b>250</b> (238 + 12 nominated)                                 |
| RS election / term         | Elected MLAs; PR-STV; <b>6 years</b> ; 1/3 retire every 2 years |
| Nominated 12               | Literature, science, art, social service                        |
| Lok Sabha max              | <b>550</b> (530 States + 20 UTs)                                |
| Anglo-Indian LS nomination | Ended by <b>104th</b>                                           |

### Special RS powers

| Article | Lock                                      |
|---------|-------------------------------------------|
| 249     | State List for national interest (1 year) |
| 312     | All-India Services                        |

### High-yield seats / Money Bill

| Item          | Lock                                                            |
|---------------|-----------------------------------------------------------------|
| UP in RS      | <b>31</b> (highest)                                             |
| Money Bill    | Art. <b>110</b> ; Speaker's certificate; RS <b>14 days</b> only |
| Joint sitting | Art. <b>108</b> (not for Money / Constitution amendment Bills)  |
| Quorum        | 1/10 of total membership                                        |

## Topic 8 — State Government

### Consolidated — 28 Must-Score Facts

1. **Part VI** covers the State Executive: **Governor + Chief Minister + Council of Ministers + Advocate General**. The Governor is the **nominal** head; the CoM headed by the CM is the **real** executive.
2. **Article 153** creates the office of Governor. The **7th Amendment** proviso allows the **same person** to be Governor of **two or more States**.
3. **Article 155** is **appointment** by the President — **not** removal. Removal / tenure sits under **Article 156** (five-year outer term during the **pleasure of the President**; no impeachment).
4. Qualifications (**Article 157**): citizen and completed **35 years**. Oath (**Article 159**) is before the **Chief Justice of the High Court**.
5. **Article 154** vests State executive power in the Governor. **Article 162** only states the **extent** of that power — do not call 162 the vesting article.
6. **Article 163**: the Governor acts on CoM aid and advice **except** where the Constitution gives **discretion**. Dual role: constitutional head of the State and the Centre's agent.
7. Classic discretionary situations: choosing a CM in a hung House (त्रिशंकु सदन); dismissing a CoM that has lost the House; dissolving the Assembly; reserving a Bill under **Article 200**; recommending **Article 356** (अनुच्छेद 356); and certain **Article 371** special responsibilities.
8. **Bommai** fact: majority is tested on the **House floor**, not in Raj Bhavan by private claim alone.
9. **Article 161** pardoning power of the Governor does **not** cover **death sentence** or **court-martial** — those stay with the President under **Article 72**.
10. Under **Article 200** the Governor may assent, withhold assent, return a non-Money Bill, or **reserve** the Bill for the President. A Bill that cuts High Court powers **must** be reserved.
11. Under **Article 201**, if a reserved Bill is returned and the State re-passes it, the **President is still not bound** to assent — unlike the Governor's position after re-passage under Article 200.
12. **Article 213** ordinances: House(s) not in session (पेगु सत्र); same **six-week** reassembly rhythm as at the Centre. In listed cases the Governor needs the **President's instructions** before promulgating.
13. The Chief Minister is appointed by the Governor (**Article 164**) and has a communication duty under **Article 167** (parallel to the PM's Article 78).
14. State Council of Ministers: collective responsibility to the **Legislative Assembly only**. Size under the **91st Amendment**: maximum **15% of the Assembly**, with a floor of **12** ministers including the CM.
15. The **Advocate General** (महाधिवक्ता) (**Article 165**) needs High Court judge qualifications, holds office during the **pleasure of the Governor**, and may speak in both Houses but **cannot vote**.
16. Legislative Assembly: maximum **500**, minimum **60**; term **five years**. **Uttar Pradesh** (उत्तर प्रदेश) Assembly strength is **403**. Quorum (गणपूर्ति) is **10 members or one-tenth**, whichever is greater.
17. MLA disqualification under **Article 191** is decided by the **Governor on binding Election Commission** (निर्वाचन आयोग) advice (**Article 192**), except the anti-defection track handled by the Speaker.
18. Legislative Council under **Article 171**: maximum **one-third of the Assembly**, minimum **40**. Members' term is **six years** with one-third retiring; the Council is **never dissolved**, but it **can be abolished**.
19. Creation or abolition of a Council uses **Article 169**: the Assembly passes a resolution by **special majority**, then Parliament acts by **simple majority** — this is **not** an Article 368 (अनुच्छेद 368) amendment.
20. Council composition mix to fact: about **1/3** local bodies, **1/12** graduates, **1/12** teachers, **1/3** MLAs, **1/6** nominated (including co-operatives in the teaching list).
21. There is **no joint sitting** (संयुक्त बैठक) in a State legislature. Deadlocks follow **Article 197** — the **Assembly prevails**. A Bill that **originates in the Council** and is **rejected by the Assembly** dies.
22. Bicameral States now: **Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh**. UP Council strength is **100**.
23. A minister for **tribal** (आदिवासी) welfare is **compulsory** in **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha** (**Article 164**).
24. **State PSC** members are **appointed by the Governor** but **removed by the President** (after Supreme Court enquiry) — classic appointment/removal swap trap.
25. The Governor is a **constituent part of the State legislature** (**Article 168**), just as the President is of Parliament, even though he sits in neither House.
26. The office is on the **Canada** model (appointed by the Centre), **not** the USA model of elected governors. The Constituent Assembly (संविधान सभा) dropped an elected Governor.
27. The CM need not be from the Assembly alone: a Council member can be CM, and a non-member may be CM for up to **six months** while getting elected.
28. Sarkaria (सरकारिया आयोग) conventions (outsider, detached from active politics, consult CM) are political expectations, often broken; Punchhi (पुंछी आयोग)'s fixed-tenure / impeachment-like removal idea was **not implemented**.

### Must-score facts — Governor, CM, AG, legislature

#### Governor

| Article   | Lock                                                           |
|-----------|----------------------------------------------------------------|
| 153       | Office of Governor (same person for $\geq 2$ States — 7th Amd) |
| 155 / 156 | Appointment by President / tenure-removal                      |
| 157       | Citizen; age <b>35</b>                                         |
| 163       | Aid & advice except constitutional <b>discretion</b>           |
| 161       | Pardon (no court-martial / death like President's 72)          |
| 213       | Ordinance                                                      |

#### Discretion / majority

| Item                    | Lock                                                |
|-------------------------|-----------------------------------------------------|
| Hung House / floor test | <b>Bommai</b> — majority on <b>House floor</b>      |
| Classic discretion      | Choose CM; dismiss lost CoM; reserve Bill; dissolve |

#### State legislature / AG

| Item             | Lock                                     |
|------------------|------------------------------------------|
| Advocate General | Art. <b>165</b> ; HC-judge qualification |

| Item                | Lock                                       |
|---------------------|--------------------------------------------|
| Bicameral States    | Include UP (Council exists)                |
| Money Bill in State | Similar Speaker role; Council limited time |

## Topic 9 — Judiciary

### Consolidated — 30 Must-Score Facts

1. India's judiciary is **integrated** (one hierarchy from district courts to the Supreme Court) and **independent** (separate from the executive and legislature). The United States uses a **dual** court system; India does not.
2. The Supreme Court was inaugurated on **28 January 1950**. Its first Chief Justice was **H.J. Kania**. The Federal Court under the Government of India Act, 1935 had begun on **1 October 1937**.
3. **Article 124** establishes the Supreme Court. It sits in **Delhi** under **Article 130**. Strength moved from **8** (CJI plus 7) to **34** judges in **2019**. Retirement age for an SC judge is **65**.
4. An SC judge resigns to the **President** and takes oath before the **President**. Qualification is citizen plus **5 years** as High Court judge, or **10 years** as High Court advocate, or a **distinguished jurist**. The jurist route exists for the **Supreme Court only**, not for High Courts.
5. Collegium is **judge-made**, not written in the Constitution. **First Judges Case (प्रथम) (1981)** gave the executive primacy. **Second Judges Case (द्वितीय न्यायाधीश) (1993)** created the Collegium (CJI plus two). **Third Judges Case (1998)** fixed **CJI plus four (चातुर्थम)** for Supreme Court appointments and **CJI plus two** for High Court appointments.
6. The **99th Amendment** created the **NJAC** (six members: CJI, two senior SC judges, Law Minister, two eminent persons). The Supreme Court struck it down in **2015**. Any **two** NJAC members could have vetoed a name.
7. Removal of an SC judge needs a motion by **100 Lok Sabha (लोकसभा)** or **50 Rajya Sabha (राज्यसभा)** members, a three-member inquiry under the **1968 Act**, then a **special majority in both Houses in the same session (पंगु सत्र)**. No judge has ever been fully removed; **V. Ramaswami** (1993) failed in the Lok Sabha and **Soumitra Sen** (2011) resigned after the Rajya Sabha passed the motion.
8. **Article 129** makes the Supreme Court a **court of record**. **Article 141** makes its law binding on all courts. **Article 142** allows complete justice and is available to the **Supreme Court only**, not High Courts. A Constitution Bench under **145(3)** needs at least **five** judges.
9. **Article 131** is the Supreme Court's **exclusive original** jurisdiction in federal disputes between the Union and States or among States. It does **not** cover Fundamental Rights (मौलिक अधिकार), private parties, or river-water disputes where Parliament has barred the Court.
10. Disputes over **President or Vice-President elections** go to the Supreme Court under **Article 71**, not Article 131. River-water disputes fall under **Article 262**; the **Inter-State River Water Disputes Act, 1956** bars Supreme Court jurisdiction under Article 131.
11. **Article 32** (अनुच्छेद 32) is a Fundamental Right and gives the Supreme Court writ jurisdiction for **Fundamental Rights only**. **Article 226** is **wider** — High Courts can issue writs for Fundamental Rights **and** any other legal right.
12. **Article 136** Special Leave Petition is the Supreme Court's widest appellate power, but it does **not** apply to judgments of **armed-forces courts**. **Article 137** is review. **Article 143** advisory opinions are **not binding**; under **143(1)** the Court **may** decline, and under **143(2)** it **shall** report on pre-Constitution treaty questions.
13. The **42nd Amendment** had tried to cut High Court power over Central laws (**32A / 131A / 226A**). The **43rd Amendment** repealed those bars. High Courts **can** strike down Central laws.
14. Every State has a High Court under **Article 214**. A **common** High Court for two or more States needs only an **ordinary law** under **Article 231**, not a special amendment under Article 368 (अनुच्छेद 368). There are **25** High Courts. High Court judges retire at **62** (raised from 60 by the **15th Amendment**).
15. A High Court judge takes oath before the **Governor** but resigns to the **President**. Qualification is **10 years** judicial office or **10 years** as High Court advocate — **no** distinguished-jurist route. Salary is charged on the **State Consolidated Fund**; **pension** is charged on the Consolidated Fund of **India**.
16. Transfer of High Court judges is under **Article 222** and does **not** need the judge's consent. An **additional** High Court judge under **Article 224** sits for at most **two years** and must leave by age **62**. After retirement a permanent HC judge cannot practise in the **same** High Court (**Article 220**).
17. The three **Chartered** High Courts of **1862** are **Calcutta, Bombay, and Madras**. **Allahabad** (इलाहाबाद) High Court began on **17 March 1866** (first at Agra, then Allahabad from 1869). The **Lucknow Bench** (1948) is a **bench** of Allahabad, not a separate High Court. Allahabad has the largest sanctioned strength.
18. Judicial independence rests on fixed tenure, charged salaries, bar on discussion of conduct in legislatures (**121 / 211**), no practice after SC retirement (**124(7)**), contempt powers (**129 / 215**), separation under **Article 50**, and control of court staff (**146 / 229**).
19. PIL is **not** written in the Constitution; it grew through **Articles 32 and 226**. The key fact for the PIL CJI is **P.N. Bhagwati** (with Krishna (कृष्णा) Iyer). Landmark locus expansion came in **S.P. Gupta (रुपुता)** (1981).
20. Judicial review draws on **Articles 13, 32, 131, 136, 226, and 227**. Basic structure review survives **Kesavananda** (केशवानंद भारती 1973), **Minerva Mills**, and **L. Chandra Kumar** (एल चंद्र). **Review** is **Article 137**; a **curative** petition (**Rupa Hurra**, 2002) comes only **after** review fails.
21. District Judges are appointed by the **Governor in consultation with the High Court (Article 233)**. **Control** over the subordinate judiciary rests with the High Court (**Article 235**). Other than District Judges, appointments follow **Article 234** (Governor + High Court + State PSC).
22. Tribunals sit in **Part XIVA (Articles 323A–323B)**, added by the **42nd Amendment** — **not** Part XI. **323A** (administrative tribunals) is **Parliament only**. **323B** (other tribunals) may be used by **Parliament or a State**.
23. CAT started on **1 November 1985** at Delhi. **Sampath Kumar** (सम्पथ) (1987) treated tribunals as substitutes for High Courts. **L. Chandra Kumar** (1997) held that tribunals only **supplement** High Courts; **Articles 226 and 227** remain part of the basic structure.
24. NALSA rests on the **Legal Services Authorities Act, 1987** (in force **9 November 1995**). A **Lok Adalat** award equals a civil-court **decree** and has **no appeal**. A regular Lok Adalat works only by **compromise**; a **Permanent Lok Adalat** can decide merits in public-utility pre-litigation cases (cap about **₹1 crore**).
25. **Gram Nyayalayas** (2008 Act; in force **2 October 2009**) are separate courts, not Gram Panchayat courts, and are **not bound** by the Evidence Act. **Fast Track Courts** are ordinary sessions courts on a fast track — they are **not** ADR. An All-India Judicial Service under **Article 312** is enabled but **not yet created** and cannot go below District Judge rank.
26. Contempt of Court is inherent under **Articles 129 and 215**; the **1971 Act** only regulates it. Criminal contempt by a private person needs **Attorney General** (महान्यायवादी) consent under section **15**, but **suo motu** action does not. Truth in public interest became a defence by the **2006** amendment. Limitation is generally **one year**.
27. **Fathima Beevi** (1989) was the first woman Supreme Court judge; she later became Governor of **Tamil Nadu (तामिलु)**, not Kerala. **Anna Chandy** was the first woman High Court judge. **Leila Seth** (लीला सेठ) was the first woman High Court Chief Justice. **Indu Malhotra** (2018) was the first woman SC judge elevated directly from the **Bar**.
28. An **ad hoc** Supreme Court judge under **Article 127** is a **sitting** (बैठक) High Court judge. A **retired** judge may sit under **Article 128**. Do not swap these two articles.
29. Election petitions for MPs and MLAs go to the **High Court** under the Representation of the People Act and **Article 329**, not straight to the Supreme Court. President and Vice-President election disputes stay under **Article 71**.
30. The USA Supreme Court does **not** give advisory opinions. India's Supreme Court **does**, under **Article 143**, but those opinions are **not binding** on the President.

Must-score facts — SC, HC, collegium, writs

Supreme Court

| Item                          | Lock                                                             |
|-------------------------------|------------------------------------------------------------------|
| Inaugurated                   | <b>28 Jan 1950</b> ; first CJI <b>H.J. Kania</b>                 |
| Art. 124 / 130                | Establishment / seat <b>Delhi</b>                                |
| Court of record / binding law | <b>129 / 141</b>                                                 |
| Resignation / oath            | To / before <b>President</b>                                     |
| Removal                       | 100 LS or 50 RS members → inquiry → special majority both Houses |

Collegium / NJAC

| Item                | Lock                                                   |
|---------------------|--------------------------------------------------------|
| Collegium           | Judge-made (not in text)                               |
| First Judges (1981) | Executive primacy                                      |
| NJAC                | <b>99th</b> Amd — struck down ( <i>Fourth Judges</i> ) |

High Court / writs

| Item                     | Lock                                         |
|--------------------------|----------------------------------------------|
| HC for each State        | Art. <b>214</b> ; age <b>62</b> (Art. 217)   |
| 226 vs 227               | Writs (wider than 32) / superintendence      |
| Common HC                | Art. <b>231</b>                              |
| Integrated + independent | One hierarchy; security of tenure / salaries |

Topic 10 — Local Government

Consolidated — 34 Must-Score Facts

1. The Constitutional Skeleton

| Feature         | Panchayati Raj (Rural)                       | Urban Local Bodies                              |
|-----------------|----------------------------------------------|-------------------------------------------------|
| Amendment       | 73rd Act, 1992 (Force: 24 Apr 1993)          | 74th Act, 1992 (Force: 1 June 1993 (1 जून))     |
| Part & Articles | Part IX (भाग IX) (Articles 243 to 243-O)     | Part IXA (नगरपालिका) (Articles 243-P to 243-ZG) |
| Schedule        | 11th Schedule (11वीं) (contains 29 subjects) | 12th Schedule (12वीं) (contains 18 subjects)    |
| Subject List    | Entry 5 of State List (राज्य सूची)           | Entry 5 of State List                           |

2. Evolution & Committees

| Committee / Event          | Key Fact / Recommendation                                                                             |
|----------------------------|-------------------------------------------------------------------------------------------------------|
| Lord Ripon (रिपन) (1882)   | Magna Carta of local self-government; "Father of local self-govt".                                    |
| Hobhouse (1907)            | Royal Commission on Decentralization.                                                                 |
| Community Dev. Prog (1952) | Failure of CDP (सीडीपी) & NES (एनईएस) (1953) led to BR Mehta Committee.                               |
| Balwant Rai Mehta (1957)   | Recommended <b>3-tier system</b> , democratic decentralization.                                       |
| Santhanam (1963)           | Focused on <b>Panchayati Raj Finances</b> .                                                           |
| Ashok Mehta (1977)         | <b>2-tier system</b> , district as first point, official party participation.                         |
| Dantwala (1978)            | Focused on <b>Block-level planning</b> .                                                              |
| G.V.K. Rao (1985)          | <b>District</b> planning; warned of "grass without roots".                                            |
| L.M. Singhvi (1986)        | <b>Constitutional status</b> push, Gram Sabha importance, Nyaya (न्याय) Panchayats.                   |
| Thungon (1988)             | Constitutional status, 5-year term, State Finance Commission.                                         |
| Gadgil (1988)              | Drafted the skeleton which became the basis of the 73rd AM Act.                                       |
| 64th Bill (1989)           | Rajiv Gandhi (गांधी) govt bill passed Lok Sabha (लोकसभा) but <b>failed in Rajya Sabha</b> (राज्यसभा). |

3. Must-Know Structural (संरचनात्मक) Facts

- Gram Sabha (243A):** Comprises **registered voters** of the village, not all residents. Powers are fixed by **State law**, not Central notification.
- Three Tiers (243B):** Village, intermediate, and district. Intermediate tier is **optional** if State population (जनसंख्या) is **≤ 20 lakh**.
- Election (243C / 243R):** All *seats* at all levels are filled by **direct** election. The chairperson's election mode is decided by State law (usually indirect, but UP Pradhan is direct).
- Reservation (243D / 243T):** SC/ST reserved in proportion to population. **Women** get **at least 1/3 (floor)** of total seats and chairpersons. OBC (अन्य पिछड़ा वर्ग) reservation is optional. UP gives 50% to women by State law.
- Term & Age (243E, 243F / 243U, 243V):** **5-year** term. Early dissolution (विघटन) requires elections within **6 months**, remaining term only. Minimum age is **21 years** (not 25).
- State Finance Commission (243-I / 243Y):** Constituted by **Governor** every **5 years** to recommend (सिफारिश) tax sharing and grants.
- State Election Commission (243K / 243ZA):** Appointed by Governor. Runs PRI and ULB polls (not ECI). Removed like a **High Court judge**.
- Article 243O / 243ZG:** Bars courts from interfering in local electoral matters (similar to Art 329 for Parliament/Assemblies).
- DPC (243ZD):** District Planning Committee consolidates rural & urban plans. At least **4/5** members elected.
- MPC (243ZE):** Metropolitan Planning Committee for pop **≥ 10 lakh**. At least **2/3** members elected.
- Exemptions (243M):** Part IX does **not** apply to **Nagaland, Meghalaya (मेघालय), Mizoram**, hill areas of Manipur, and Darjeeling Gorkha Hill Council.
- PESA Act, 1996:** Extends Part IX to **Fifth Schedule** (5वीं अनुसूची) areas (10 States) but NOT to Sixth Schedule (6वीं अनुसूची).
- Cooperatives (97th Amd, 2011):** Part IXB (243ZH-243ZT). Art 43B DPSP (राज्य के नीति निर्देशक तत्व) and Art 19(1)(c) FR. In 2021, SC struck down its application to State cooperatives.
- Cantonment Board:** Set up under Cantonments Act (2006). Falls under **Ministry of Defence**. Station Commander is ex-officio President (not 74th Amd ULB).

4. Urban Local Bodies (Part IXA) — decidable spine

- Three types (Article 243Q):** **Nagar Panchayat** (transitional area), **Municipal Council** (smaller urban area), and **Municipal Corporation** (larger urban area). The **Governor** classifies; the Constitution does **not** fix one all-India population cut-off.
- Mayor vs Municipal Commissioner:** The **Mayor** is the political / ceremonial head; the **Municipal Commissioner** (usually IAS, State-appointed) is the executive. India follows the Commissioner system, not a US strong-mayor model.
- Ward Committee (Article 243S):** Mandatory in a municipality with population **≥ 3 lakh**. It is a committee of councillors — **not** an urban Gram Sabha (Part IXA has no urban Gram Sabha).
- First municipal corporation: Madras, 1688;** Bombay and Calcutta followed in **1726**.

## Topic 11 — Centre–State Relations

### Consolidated — 30 Must-Score Facts

1. Centre–State rules sit mainly in **Part XI** (legislative and administrative, **245–263**), **Part XII** (finance, **264–293** slice), and **Part XIII** (trade, **301–307**). The **7th Schedule** carries the Union, State, and Concurrent Lists.
2. Under **Article 246**, Union List prevails over Concurrent, and Concurrent prevails over State List. Residuary powers, including residuary taxation, belong to the **Union** under **Article 248** and Union List **Entry 97** — unlike the US model where residuary powers lie with the states.
3. Parliament can legislate on a State List subject under **249** (Rajya Sabha (राज्यसभा) resolution for national interest, lasting **one year**), **250** (during a National Emergency (राष्ट्रीय आपात)), **252** (two or more States request), **253** (treaty or international obligation), and during **President's Rule** under **356**.
4. The Rajya Sabha special majority for **Articles 249 and 312** is **two-thirds (ते-भाग)** of members present and voting, **not** two-thirds of total membership (सदन की कुल सदस्य संख्या का).
5. **Article 252** needs resolutions from **two or more States**; other States may adopt later; only **Parliament** can amend or repeal that law. **Article 253** needs **no** State request — treaties and international conferences are enough.
6. On the Concurrent List (समवर्ती सूची), **Article 254(1)** makes the Union law prevail in a clash. Under **254(2)**, a State law reserved for the President and assented to can prevail in that State **until** Parliament legislates again on the same matter.
7. Key doctrines are **pith and substance** (incidental encroachment can be valid), **colourable legislation** (you cannot do indirectly what you cannot do directly), **repugnancy**, **harmonious construction**, **territorial nexus**, and **occupied field**.
8. **Articles 256 and 257** bind States to comply with Union laws and directions and not to impede Union railways and communications. Ignoring Union directions under **Article 365** is a gateway to **President's Rule (356)**.
9. **Article 258** lets the Union entrust functions to a State (usually with consent). **Article 258A** (7th Amendment) lets a State entrust functions to the Union. **Article 261** is full faith and credit for public acts, records, and judicial proceedings across India.
10. All-India Services under **Article 312** need a Rajya Sabha resolution by **two-thirds present and voting**, then a Parliament law. The three AIS are **IAS, IPS, and IFoS** (IFoS from **1966**). **Article 312A** (28th Amendment) deals with ex-ICS officers.
11. **Article 265** bars tax without authority of law. **Article 271** surcharge on certain Union taxes belongs to the **Union only** and is not shared. **Article 268** stamp duties are levied by the Union but collected by the States.
12. The **Finance Commission (Article 280)** is appointed by the **President** every five years: a Chair and **four** (चातुर्यम) other members. It reports to the **President**, not to NITI Aayog (नीति आयोग). Qualifications are fixed by Parliament through the **1951 Act**.
13. The first Finance Commission was chaired by **K.C. Neogy**. The **14th** Finance Commission set the States' vertical share of the divisible pool at **42%**; the **15th** set it at **41%**. The **16th** is chaired by **Arvind Panagariya**.
14. **Article 275** grants recommended by the Finance Commission are **charged** on the Consolidated Fund of India (भारत की संचित निधि) (with a tribal (आदिवासी) proviso). **Article 282** allows **discretionary** grants by the Union **or** a State for any public purpose — do not swap 275 and 282.
15. A State cannot tax Union property (**285**). The Union cannot tax State property except as allowed (**289**). A State that is indebted to the Centre needs Union consent to borrow further (**293**).
16. GST arrived through the **101st Amendment (2016)** and went live on **1 July 2017**. It is a dual tax (CGST + SGST / IGST) under **Article 246A**, **not** residuary Entry 97. **Liquor** stays out; **five petroleum** items stay out until the Council decides otherwise.
17. The **GST Council (279A)** is chaired by the **Union Finance Minister**. Centre has **one-third** weight and States **two-thirds** (ते-भाग); decisions need **three-fourths** weighted majority; quorum (गणपूर्ति) is **half**. Recommendations are not strictly binding (*Mohit Minerals*, 2022).
18. **Article 301** guarantees freedom of trade, commerce, and intercourse throughout India; it is **not** a Fundamental Right under Article 19. Parliament may restrict under **302**. A State restriction under **304(b)** needs **previous Presidential sanction**.
19. Inter-State migration and inter-State quarantine sit in **Union List Entry 81**, not the State List.
20. The **Inter-State Council (Article 263)** is constitutional: the President **may** establish it; the **1990** order did so on **Sarkaria** advice; the **Prime Minister** chairs; it is recommendatory. Do not credit Punchhi for creating it.
21. **Zonal Councils** are statutory under the **States Reorganisation Act, 1956**. There are **five** zones. The **Union Home Minister** chairs them. Uttar Pradesh (उत्तर प्रदेश) sits in the **Central** Zonal Council (with Uttarakhand (उत्तराखंड), Madhya Pradesh, and Chhattisgarh), not the Northern zone.
22. The **North Eastern Council** is under a **1971 Act**. It is **not** a sixth Zonal Council. The **Prime Minister** chairs it (from 2002).
23. Water is **State List Entry 17**, subject to **Union List Entry 56** for inter-State rivers. **Article 262** lets Parliament bar courts; the **1956 Act** did bar **Article 131**. The 2019 tribunal Bill **lapsed** and is not in force.
24. **Article 131** is the Supreme Court's exclusive original jurisdiction for Union–State or inter-State disputes involving a **legal right**. Private parties are out. River water is out where barred. Faith-and-credit is **261**, not 131.
25. **Rajamannar (1969, Tamil Nadu (तामिल नडु))** wanted residuary powers with States, abolition of All-India Services, and repeal of **356**. **Sarkaria (1983–88)** backed a strong Centre, keeping AIS and 356, and creating the Inter-State Council.
26. **Punchhi (2007–10)** came after Sarkaria. It favoured localising **356**, strengthening the Inter-State Council, and time-capping bills under **Article 201**.
27. NITI Aayog (**2015**) replaced the **Planning Commission** (योजना आयोग). It did **not** replace the Finance Commission under **Article 280**. NITI is the SDG nodal body; it does not allocate the old Plan funds and does not report as if it were the FC.
28. The **42nd (42वाँ) Amendment** moved **five** subjects from the State List to the Concurrent List.
29. Profession tax under **Article 276** has a constitutional ceiling (figure **₹2,500** after the **60th Amendment**). Jute export-duty grants under **273** go to Assam, Bihar, Odisha, and West Bengal.
30. Border and inter-State settlements are often political (Union Home Minister plus Chief Ministers), not automatic **Article 131** cases. Read whether a **legal right** is pleaded before jumping to the Supreme Court's original jurisdiction.

### Must-score facts — Lists, 249–263, Finance

#### Legislative frame

| Item     | Lock                                                           |
|----------|----------------------------------------------------------------|
| Parts    | XI (245–263) + XII (finance)                                   |
| Art. 246 | Union > Concurrent > State; residuary with <b>Centre (248)</b> |
| 249      | RS resolution → Parliament on State List (national interest)   |
| 252      | Two or more States request; only Parliament legislates         |

| Item | Lock                                                                                                   |
|------|--------------------------------------------------------------------------------------------------------|
| 254  | Union prevails on Concurrent; State law can prevail with assent under 254(2) until repugnant Union law |

### Doctrines

| Doctrine               | Lock                                                 |
|------------------------|------------------------------------------------------|
| Pith and substance     | Incidental encroachment can be valid                 |
| Colourable legislation | You cannot do indirectly what you cannot do directly |
| Repugnancy             | Concurrent clash → Union wins (with 254(2) nuance)   |

### Administrative / bodies

| Item        | Lock                                       |
|-------------|--------------------------------------------|
| 256 / 257   | States comply with Union laws / directions |
| 263         | Inter-State Council                        |
| 280         | Finance Commission                         |
| GST Council | Cooperative federalism example             |

Topic 12 — Constitutional Bodies

Consolidated — 28 Must-Score Facts

- 1. A **constitutional body** is created by the Constitution itself. Pay is often **charged** on the Consolidated Fund, and removal is often on the lines of a **Supreme Court judge**.
- 2. The **Election Commission (Article 324)** superintends elections to Parliament, State legislatures, the President, and the Vice-President. It does **not** elect the Speaker and does **not** run Panchayat or municipality polls (those belong to the **State Election Commission**).
- 3. Disputes over **President or Vice-President elections** go to the Supreme Court under **Article 71**, not to the Election Commission. **Article 325** creates one general electoral roll. **Article 326** is adult suffrage.
- 4. The Election Commission began as a **single-member** body in 1950, became multi-member in **1989**, briefly single again in **1990**, and has been **three-member** from **1993**. The Chief Election Commissioner is removed like a Supreme Court judge; other Election Commissioners are removed only on the CEC's recommendation.
- 5. An Election Commissioner's term is **six years or age 65**, whichever is earlier. The first CEC was **Sukumar Sen**. The first woman CEC was **V.S. Ramadevi (1990)**. The **2023 Act** places selection with the Prime Minister, Leader of Opposition in the Lok Sabha (लोकसभा), and a Union Cabinet Minister — the Chief Justice is **not** on that panel.
- 6. The **UPSC (Articles 315–323)** is appointed by the **President**. Term is **six years or age 65**. Roughly **half** the members must have at least **ten years** of government service. Removal follows the Supreme Court judge path after a Supreme Court inquiry (**317**).
- 7. UPSC advice is **not binding**. UPSC functions come from **four** (चातुर्यम) sources: the Constitution, Parliament, rules, and conventions. After leaving office, a UPSC Chairperson cannot take further Union or State office (**319**).
- 8. A **State PSC** member is appointed by the **Governor** but removed by the **President**, not the Governor. Extra functions for a State PSC need a law of the **State Legislature (321)**. A **Joint PSC** for two or more States needs a **Parliament** law; the President appoints.
- 9. The **Finance Commission (280)** is a Chair plus **four** members, appointed by the President every five years, reporting to the **President**. It is not NITI Aayog (नीति आयोग). The first Chair was **K.C. Neogy**; the 16th is chaired by **Arvind Panagariya**. Vertical shares moved from **42%** (14th) to **41%** (15th).
- 10. The **CAG (Articles 148–151)** is appointed by the President for **six years or age 65**, removed like a Supreme Court judge, and barred from further office under the Government of India. Form of accounts follows **150**; reports go under **151**.
- 11. India's CAG is mainly an **Auditor after spending**, not a UK-style Comptroller who controls issue of money beforehand. The **Public Accounts Committee** examines CAG reports; the Estimates (आकलन समिति) Committee does not. The first CAG of independent India was **V. Narahari Rao**.
- 12. The **Attorney General (Article 76)** must be qualified to be a Supreme Court judge and holds office during the **pleasure of the President** — there is no impeachment route. The AG may speak in both Houses but has **no vote**. Private practice is allowed except against the Government of India.
- 13. Salary of the Attorney General is **not charged** on the Consolidated Fund. The Solicitor General and Additional Solicitors General are **not** constitutional offices. Do not confuse the AG with the CAG or with the Advocate General.
- 14. The **Advocate General (Article 165)** must be qualified to be a High Court judge and holds office during the **pleasure of the Governor**. Article **165** is not an Election Commission article.
- 15. The **GST Council (279A)** is a constitutional body under the **101st Amendment**. The Union Finance Minister chairs it. Voting (गणपूर्ति) weight is Centre **one-third** and States **two-thirds** (ते-भाग), with **three-fourths** weighted majority and quorum (गणपूर्ति) of **half**.
- 16. **Articles 350, 350A, and 350B** came through the **7th Amendment (1956)**, not the 9th. **350** allows representation in any language; **350A** (अनु. 350A) protects mother-tongue instruction at the primary stage; **350B** creates **one** Special Officer for Linguistic Minorities for the whole of India.
- 17. **Article 338** is the National Commission for Scheduled Castes (with list power under **341**). **338A** is the National Commission for Scheduled Tribes (**342**). **338B** is the National Commission for Backward Classes (**342A**), given constitutional status by the **102nd Amendment**.
- 18. **Article 339** allows an ad hoc commission on Scheduled Areas and Scheduled Tribes administration — it is **not** the standing NCST. **Article 340** is the inquiry article behind Kalelkar/Mandal-type exercises — it is **not** the standing NCBC under **338B**.
- 19. The **105th Amendment (2021)** restored States' power to identify their own Socially and Educationally Backward Classes after the 102nd had centralised the list logic. Keep **102nd** and **105th** as a confused pair.
- 20. The Official Language Commission under **Article 344** was to be set up at five years and then ten years (Kher Commission, 1955). English was originally to continue for **fifteen years** under **343**; the Official Languages Acts of **1963/1967** continue English without a hard stop.
- 21. **NITI Aayog** (नीति आयोग) is an **executive** body (Cabinet Resolution). **NHRC** (राष्ट्रीय मानव अधिकार आयोग) is **statutory**. **NCSC** (राष्ट्रीय अनुसूचित जाति आयोग) is **constitutional**. Sorting bodies by creation source is a standing prelims skill.
- 22. Representation of the People Acts split the work: **RPA 1950** covers rolls, seats, and delimitation machinery; **RPA 1951** covers conduct, nominations, corrupt practices, and election petitions. ECI opinions under certain RPA sections bind the President/Governor on disqualification questions.
- 23. The Election Commission does **not** decide Speaker elections inside the House. Interior House offices follow parliamentary procedure (प्रक्रिया); external electoral superintendence stays with **324**.
- 24. CAG reports are examined by the **Public Accounts Committee**, not by inventing a "CAG committee." Estimates Committee works on estimates, not CAG audit (कैग लेखापरीक्षा) paras.
- 25. UPSC and SPSC members' independence is protected by charged expenditure (भारित) and difficult removal. Still, their **advice** to the government is recommendatory, not mandatory.
- 26. The Special Officer for Linguistic Minorities (**350B**) is **one** officer for India. Do not confuse that office with the **National Commission for Minorities**, which is statutory.
- 27. Joint State PSCs exist only when **two or more States** ask through a **Parliamentary** law. A single State cannot invent a JPSC by State Act alone.
- 28. Constitutional bodies with "like SC judge" removal include the **CEC**, **UPSC** (संघ लोक सेवा आयोग) members (after SC inquiry), and the **CAG**. The **Attorney General** (महान्यायवादी) is the classic pleasure-doctrine contrast — easy removal, no impeachment.

Must-score facts — EC, UPSC, CAG, FC

What is a constitutional body?

Created by the **Constitution**; often charged expenditure; removal harder than ordinary civil servants.

Body → Article / tag

| Body                          | Lock                                      |
|-------------------------------|-------------------------------------------|
| Election Commission           | Art. <b>324</b> ; multi-member; CEC + ECs |
| EC term                       | <b>6 years or age 65</b>                  |
| First CEC                     | <b>Sukumar Sen</b>                        |
| President/VP election dispute | SC under Art. <b>71</b> (not EC)          |

| Body                                | Lock                                                                 |
|-------------------------------------|----------------------------------------------------------------------|
| UPSC                                | Arts. <b>315–323</b> ; President appoints; advice <b>not binding</b> |
| SPSC                                | Appointed by Governor; <b>removed by President</b>                   |
| CAG                                 | Arts. <b>148–151</b> ; 6 years / age 65                              |
| Finance Commission                  | Art. <b>280</b>                                                      |
| National Commission for SCs/STs/BCs | Constitutional (related Articles 338 etc.)                           |

## Topic 13 — Statutory & Non-Constitutional Bodies

### Consolidated — 30 Must-Score Facts

1. A **statutory body** is created by an **Act of Parliament or a State legislature**. It is not created by the Constitution (CAT is the special case that rides on **Article 323A**).
2. The **Lokpal and Lokayuktas Act, 2013** creates a Chairperson and up to **eight** members, with **half** judicial and **half** from SC/ST/OBC (अन्य पिछड़ा वर्ग)/minorities/women. Term is **five years or age 70**. Removal is like a Supreme Court judge.
3. Lokpal's Selection Committee is the **Prime Minister, Lok Sabha (लोकसभा) Speaker, Leader of Opposition in the Lok Sabha**, the **CJI or nominee**, and an **eminent jurist**. The **Chairman of the Rajya Sabha** is **not** on that panel. Search Committee and Selection Committee are different bodies.
4. The first Lokpal was **Justice P.C. Ghose (2019)**. Complaints ordinarily cover acts within about **seven years** and follow a prescribed form. **Lokayukta (लोकायुक्त)** is a **State Act** office; **Maharashtra (1971)** was first; Uttar Pradesh (उत्तर प्रदेश) has a 1975 Act with an Up-Lokayukta.
5. The **Central Vigilance Commission** began from the Santhanam idea (**1962**), became executive in **1964**, and gained statutory status under the **CVC Act, 2003** after **Vineet Narain**. It has **no constitutional article**. Composition is Chairperson plus **two** Vigilance Commissioners.
6. CVC members are selected by the **Prime Minister, Home Minister, and Leader of Opposition**, for **four (चातुर्यम) years or age 65**. The CVC has superintendence over the CBI in Prevention of Corruption cases, but the CVC itself is **not** a police force. The CBI Director panel is **PM + LoP (LS) + CJI**, not the CVC.
7. The **RTI Act, 2005** (in force **12 October 2005**) creates the CIC and SICs. Normal reply time is **30 days (48 hours)** where life or liberty is at stake. PIO penalty can go up to **₹25,000**. The 2019 amendment lets the Centre prescribe term and salary.
8. CIC selection involves the **Prime Minister, Leader of Opposition, and a Union Cabinet Minister (कैबिनेट मंत्री)**. The RTI movement's grassroots fact is often traced to **MKSS**. Section **8** lists exemptions; section **4** demands suo motu disclosure.
9. The **NHRC (राष्ट्रीय मानव अधिकार आयोग)** is under the **Protection of Human Rights Act, 1993**. It is **statutory**, not Article **338**. Its recommendations are recommendatory. Complaints are ordinarily within **one year**. After 2019, the Chair may be a retired **CJI or Supreme Court judge**; term is **three years or age 70**.
10. An **SHRC** Chair is typically a retired High Court Chief Justice; after 2019 a retired High Court judge may also qualify. Do not treat NHRC/SHRC as constitutional commissions under 338–338B.
11. The **National Green Tribunal (2010)** covers scheduled environment (पर्यावरण) Acts; the **Wildlife Protection (वन्यजीव सुरक्षा) Act** is **not** on that schedule. The Chair is an SC or HC judge; the Principal Bench is in **Delhi**; appeal lies to the Supreme Court; disposal aim is about **six months**.
12. NGT decides with the principles of **sustainable development, polluter pays**, and the **precautionary** principle. It is created by the NGT Act, not by Article 323A.
13. The **National Commission for Women Act** is **1990**. The **National Commission for Minorities Act** is **1992** (Jains notified in **2014**). NCM is **not** the Special Officer under **350B** (अनु. 350B).
14. **NCPCR (2005)** deals with children below **18** and works with State Commissions. The **National Commission for Safai Karamcharis** is statutory (**1993** lineage; PEMSR **2013**) and is **not** Article 338.
15. **NDMA** sits under the **Disaster Management Act, 2005**. The **Prime Minister** chairs NDMA; the **Chief Minister** chairs SDMA; the **District Magistrate** chairs DDMA. The National Executive Committee is headed by the **Cabinet Secretary**.
16. The **Competition Commission of India** works under the Competition Act, **2002** (operations from **2009**). It replaced the old MRTP regime. Appeals go to **NCLAT**. Focus sections include anti-competitive agreements, abuse of dominance, and combinations.
17. **SEBI** began as an executive body in **1988** and became statutory under the **SEBI Act, 1992**. Headquarters is in **Mumbai**. Appeals go to the **Securities Appellate Tribunal**.
18. The **RBI** follows the Hilton Young idea (**1926**), the RBI Act **1934**, and started on **1 April 1935**; it was nationalised in **1949**. Currency notes are an RBI function, but **₹1 notes and coins (रूपक)** are Government of India. The **Monetary Policy Committee** dates to **2016**.
19. The **National Housing Bank Act** is **1987**. From **2019**, the **RBI** regulates housing finance companies while the Government owns NHB — a classic ownership-versus-regulation split.
20. **CAT** was created by the Administrative Tribunals Act, **1985**, with Principal Bench at Delhi, under **Article 323A**. High Court writ power under **226** survives after **L. Chandra Kumar (एल चंद्र)**. Armed forces use the **Armed Forces Tribunal (2007)**, not CAT.
21. **NITI Aayog (नीति आयोग)** began by Cabinet Resolution on **1 January 2015**. It is **neither constitutional nor statutory**. The **Prime Minister** is Chair; the first Vice-Chair was **Arvind Panagariya**. It is a think-tank and does **not** replace the Finance Commission (वित्त आयोग).
22. NITI's Governing Council includes Chief Ministers and Lieutenant Governors. It is the **SDG nodal** body. It runs AIM, DMEQ, and Aspirational Districts. It does **not** allocate the old Planning Commission Plan funds.
23. The old **Planning Commission (योजना आयोग)** began on **15 March 1950**. The **National Development Council** began on **6 August 1952** (PM plus Chief Ministers) and approved Five-Year Plans. NITI replaced the Planning Commission, not the NDC's entire political history (इतिहास) overnight, but Plan-era machinery changed.
24. The **CBI** was set up by an MHA resolution on **1 April 1963**. Its investigation power rides on the **Delhi Special Police Establishment Act, 1946**. It is **not** statutory in the same way as the CVC Act body. It needs **State consent** under section **6** unless a High Court or the Supreme Court orders otherwise.
25. CBI is India's National Central Bureau for **Interpol** and runs **BHARATPOL**. The Academy is at **Ghaziabad**. Administrative control links include **DoPT**.
26. The **NIA** was created by the **NIA Act, 2008** after 26/11. It investigates scheduled offences and does **not** need State consent in the CBI sense. The **2019** amendment widened its reach.
27. The **Intelligence Bureau (1887)** is the oldest, for **internal** intelligence under the Home Ministry. **RAW (21 September 1968)**, founded under **R.N. Kao**, handles **external** intelligence under the Cabinet Secretariat. The **Enforcement Directorate (1956)** under the Department of Revenue works FEMA and PMLA.
28. The **National Security Council (1998)** is chaired by the **Prime Minister**. The first National Security Adviser was **Brajesh Mishra**. Related structures include SPG, NSAB, and NSCS.
29. **Zonal Councils** are **statutory** under the **States Reorganisation Act, 1956** (five zones). The **Union Home Minister** is the common chair. Uttar Pradesh sits in the **Central** Zonal Council (HQ Prayagraj). The **North Eastern Council** is a separate **1971** Act body — not a sixth Zonal Council.
30. The **Law Commission of India** is an **executive / extra-constitutional** advisory body (usually a **three-year** term under the Ministry of Law and Justice). The first Law Commission of independent India (**1955**) was chaired by **M.C. Setalvad**. It is **not** a constitutional body and **not** created by a standing statute.

### Must-score facts — Lokpal, CVC, RTI, NITI

#### Constitutional vs statutory vs executive

| Type                             | Look                                            |
|----------------------------------|-------------------------------------------------|
| Constitutional                   | Created by Constitution                         |
| Statutory                        | Created by <b>Act</b>                           |
| Executive / extra-constitutional | Created by resolution / order (e.g. NITI Aayog) |

Body ↔ tag

| Body             | Lock                                                                        |
|------------------|-----------------------------------------------------------------------------|
| Lokpal           | Act <b>2013</b> ; Chair + ≤8; half judicial; first <b>P.C. Ghose (2019)</b> |
| Lokpal selection | PM, LS Speaker, LoP LS, CJI (or nominee), eminent jurist                    |
| CVC              | Santhanam idea; statutory <b>2003</b> ; 4 years / age 65                    |
| CVC selection    | PM, HM, LoP                                                                 |
| CIC / SIC        | RTI Act <b>2005</b> (in force <b>12 Oct 2005</b> ); reply <b>30 days</b>    |
| NITI Aayog       | <b>1 Jan 2015</b> ; replaced Planning Commission; <b>not</b> constitutional |
| NHRC             | PHRA <b>1993</b> ; 1-year complaint limit                                   |

Topic 14 — Elections

Consolidated — 28 Must-Score Facts

- 1. **Article 324** gives the Election Commission superintendence over elections to Parliament, State legislatures, the President, and the Vice-President. It does **not** cover the Speaker's election inside the House or Panchayat/ULB polls (those are **SEC**).
- 2. **Article 327** lets Parliament make election law; **Article 328** lets States legislate subject to Parliament. **RPA 1950** covers rolls, seats, and delimitation machinery; **RPA 1951** covers conduct, nominations, corrupt practices, and petitions.
- 3. Bye-elections are ordinarily held within **six months**, but may be skipped if the remainder of the term is less than **one year**.
- 4. **Article 326** is universal adult suffrage. The voting age moved from **21 to 18** by the **61st Amendment (1988)**, in force from **1989**. **Article 325** creates one general electoral roll and forbids communal rolls.
- 5. A person in prison under a sentence of imprisonment generally **cannot vote** under RPA section **62(5)**. A person in **preventive detention** may still be able to vote — do not collapse the two.
- 6. **First Past the Post** elects the Lok Sabha (लोकसभा) and Vidhan Sabhas: most votes win, not proportional representation. Double-member constituencies ended in **1961**. Lok Sabha elected strength is **543**; Anglo-Indian nomination under **331** ended with the **104th Amendment**.
- 7. **Proportional Representation by Single Transferable Vote** is used for the **President, Vice-President, Rajya Sabha (राज्यसभा), and Legislative Councils**. Rajya Sabha party voting uses an **open ballot (2003)**; President and Vice-President use a **secret** ballot.
- 8. An MLA's vote value for the Presidential election uses the **1971** population (जनसंख्या) formula: State population ÷ (elected MLAs × **1000**). Keep 1971 as the freeze year in that formula.
- 9. The **Model Code of Conduct** is an Election Commission **convention**, not a statute. It starts from announcement of the schedule. The **48-hour silence** period is both MCC practice and statutory under RPA section **126**.
- 10. **National Voters' Day** is **25 January** — the day the Election Commission was founded in **1950**. The first National Voters' Day was celebrated in **2011**.
- 11. The **Delimitation Commission** is a **statutory** body separate from the Election Commission, even if the CEC sits on it. Major Delimitation Acts include **1952, 1962, 1972, and 2002**.
- 12. The **42nd (42वाँ) Amendment** froze Lok Sabha seat allocation on the **1971** census until **2000**. The **84th Amendment** extended the freeze until the first census after **2026**. The **87th Amendment** allowed redrawing on the **2001** census **without** changing State-wise Lok Sabha totals.
- 13. A delimitation order has the force of law, and **Article 329** bars courts from questioning delimitation. Election petitions for House seats also live under the **329** bar-and-petition scheme.
- 14. **Article 330** reserves Lok Sabha seats for SC/ST; **332** does the same for Assemblies. All voters in that constituency vote; only SC/ST candidates contest the reserved seat.
- 15. The **104th Amendment (2019)** extended SC/ST reservation to **25 January 2030** and **ended** Anglo-Indian nomination in the Lok Sabha and Assemblies. The **106th Amendment (2023)** reserves **one-third** of seats for women in the Lok Sabha and Assemblies, but only **after** the next delimitation.
- 16. Uttar Pradesh (उत्तर प्रदेश) has the largest Lok Sabha contingent (**80** seats) and an Assembly of **403**. Local body polls in UP are run by the **UP State Election Commission**, not the ECI.
- 17. Political party **registration** is under RPA section **29A**. **Recognition** as a national or State party follows the **Symbols Order, 1968**. National-party tests include vote share across States or Lok Sabha seat share thresholds.
- 18. Anti-defection is in the **10th Schedule**, inserted by the **52nd Amendment (1985)**. The **91st Amendment (2003)** removed the one-third split escape and kept merger only at **two-thirds** (दो-भाग). The Speaker decides; *Kihoto Hollohan* allows limited judicial review.
- 19. A recognised party may name up to **40** star campaigners; an unrecognised party may name **20** (RPA section **77** expenditure rules).
- 20. An election petition for an MP or MLA goes to the **High Court** within **45 days**. Appeal lies to the Supreme Court. Corrupt practices are listed in RPA section **123**. President/VP election disputes stay under **Article 71**.
- 21. **EVMs** were first used in Kerala in **1982** and covered all booths by **2004**. They are made by **BEL** and **ECIL**. **VVPAT** was first used at **Noksen (Nagaland) on 4 September 2013** and nationwide by **2019**; the Supreme Court required verification of **five** VVPAT slips per Assembly constituency.
- 22. **NOTA** came from **PUCCL (2013)**. **NOTA** does **not** force a re-poll even if it "wins."
- 23. A useful chronology fact is **EVM (1982) → EPIC (1993) → VVPAT → NOTA**. Keep the order; do not invent a reverse sequence.
- 24. India ran **simultaneous** elections from **1951–67**. The Kovind panel (**2023–24**) studied a return; implementing it would need changes around Articles such as **83, 85, 172, and 174**. It is **not yet law**.
- 25. **Electoral bonds** (2018 scheme) were **struck down** by the Supreme Court in **February 2024**. Do not treat the scheme as still valid.
- 26. Free and fair elections are part of the Constitution's basic electoral design through **324–329**, adult suffrage, one roll, and independent machinery. Delimitation freezes and reserved seats are separate but related facts.
- 27. The Election Commission's multi-member form and the CEC's harder removal protect independence, but day-to-day election law still comes from the **RPA**s and Rules — **Article 324** is not a blank cheque to ignore statute.
- 28. Reserved constituencies change only through delimitation and constitutional extension dates. Women's reservation under the **106th** waits for post-census delimitation; SC/ST reservation currently runs to **2030** under the **104th**.

Must-score facts — suffrage, systems, RPA

Articles

| Article   | Lock                                               |
|-----------|----------------------------------------------------|
| 324       | EC superintendence                                 |
| 326       | Universal adult suffrage                           |
| 327 / 328 | Parliament / State election law                    |
| 329       | Bar on court interference (election petition path) |
| 61st      | Voting age <b>21 → 18</b>                          |

Systems

| System              | Used for                                   |
|---------------------|--------------------------------------------|
| First Past the Post | Lok Sabha; Vidhan Sabha (विधानसभा)         |
| PR-STV              | President; VP; Rajya Sabha; State Councils |

Quick locks

| Item                        | Lock                                                           |
|-----------------------------|----------------------------------------------------------------|
| Prisoner vote               | Generally <b>no</b> (RPA 62(5)); undertrial nuance in teaching |
| Bye-election                | Ordinarily within <b>6 months</b>                              |
| Presidential MLA vote value | <b>1971</b> population formula                                 |
| Model Code                  | EC-enforced; not in Constitution text                          |

Topic 15 — Emergency Provisions

Consolidated — 26 Must-Score Facts

- 1. Emergency Provisions sit in **Part XVIII (Articles 352–360)**. There are three proclamations: **National Emergency (352)**, **President’s Rule (356)**, and **Financial Emergency (360)**.
- 2. National Emergency under **352** may be proclaimed for **war, external aggression, or armed rebellion**. The **44th Amendment** replaced the old phrase “**internal disturbance**” with **armed rebellion**.
- 3. A 352 proclamation needs **written advice of the Union Cabinet**, not the Prime Minister alone — a direct lesson from **1975**. Parliamentary approval must come within **one month** by **special majority** in both Houses (majority of total membership (सदन की कुल सदस्य संख्या का) plus two-thirds (ते-भाग) of those present and voting (गणपूर्ति)).
- 4. Once approved, a National Emergency continues for **six months** at a time with fresh approvals. The Lok Sabha (लोकसभा) can force revocation by passing a disapproval resolution. One-tenth of Lok Sabha members can compel a sitting (बैठक) within **fourteen days**.
- 5. National Emergency has been used in **1962** (China), **1971** (Pakistan), and **1975–77** (the Internal Emergency, **25 June 1975 to 21 March 1977**).
- 6. Under **Article 358, Article 19** automatically suspends only when the Emergency is on grounds of **war or external aggression** — **not** for armed rebellion alone. Under **359**, the President may suspend enforcement of named Fundamental Rights, but **Articles 20 and 21** can **never** be suspended (44th Amendment; contrast *ADM Jabalpur*).
- 7. After the 44th Amendment, laws or executive action during Emergency need a real **emergency nexus (358(2) / 359)**. Blanket misuse without nexus is not protected.
- 8. **President’s Rule** uses **Article 356** (अनुच्छेद 356), linked to the Union’s duty under **355** and the directions-gateway under **365**. Parliamentary approval is needed within **two months** by **simple majority** in both Houses.
- 9. President’s Rule runs in **six-month** slices. Beyond **one year**, continuation needs a National Emergency in force in India or that State **and** an Election Commission (निर्वाचन आयोग) certificate that elections cannot be held. Maximum is normally **three years**.
- 10. *S.R. Bommai* (**1994**) made 356 justiciable, insisted on majority on the **floor of the House**, and warned against dissolving the Assembly before Parliament approves the proclamation. The President **cannot** assume High Court powers under 356.
- 11. The first use of President’s Rule was in **Punjab in 1951**. Mass misuse is especially remembered around **1977** and **1980**.
- 12. **Financial Emergency (360)** is for a threat to India’s financial stability or credit. It has **never been used**. Approval window is **two months** by simple majority; it then continues until revoked — there is **no** six-month renewal clock like 352/356.
- 13. During a Financial Emergency the Centre may give directions on financial propriety, reduce salaries even of judges, and require State money bills to be reserved.
- 14. **Martial law** is military control in a locality, with indemnity possible under **Article 34**. It is **not** a substitute for National Emergency. Under 352 the civilian Constitution continues with emergency overlays.
- 15. While a National Emergency is on, **Article 250** lets Parliament legislate on the **State List** (राज्य सूची). Under **353** the Union may direct States on almost any matter — a strong unitary tilt. **354** lets the President modify Centre–State revenue sharing during 352.
- 16. State Assembly life can be extended by **one year at a time** during a National Emergency (**Article 172**), subject to the usual outer limits after Emergency ends.
- 17. Election petitions and the **Article 329** bar continue to matter even in Emergency contexts — Emergency does not invent a free-for-all over electoral disputes.
- 18. Special majority for **352** approval is harder than the **simple majority** used for **356** and **360**. Approval time is **one month** for 352 and **two months** for 356/360.
- 19. Textbook labels “National Emergency” and “State Emergency” map to **352** and **356**; the Constitution itself does not use the phrase “State Emergency.”
- 20. External Emergencies (1962, 1971) rest on war or external aggression. The 1975 proclamation was still under the older **internal disturbance** language before the 44th rewrite.
- 21. **Article 355** is the Union’s **duty** to protect States against external aggression and internal disturbance and to ensure that State government runs with the Constitution. **356** is the **proclamation** that takes over when that machinery fails.
- 22. During 356 the President (through the Governor) can assume State executive powers and Parliament/State law roles as provided, but judicial independence of the High Court is ring-fenced — no takeover of **High Court** powers.
- 23. Financial Emergency directions can reach salary cuts for government servants and judges and can force reservation of money bills — facts that do not appear under ordinary 356 politics.
- 24. The Emergency FR map is simple if memorised as a triangle: **358** auto-hits **19** (war/external only); **359** can suspend enforcement of other named rights by order; **20 and 21** stay awake.
- 25. Cabinet written advice, armed rebellion wording, unsuspendable 20/21, and emergency nexus are the four (चातुर्याम) **44th Amendment** knives every prelims answer should recall together.
- 26. Punchhi (पुंछी आयोग) later suggested **localising** 356 rather than dismissing a whole State government for a local breakdown — useful for mains, while *Bommai* remains the judicial fact for prelims.

Must-score facts — 352, 356, 360

Three Emergencies

| Type             | Article    | Grounds / tag                                            |
|------------------|------------|----------------------------------------------------------|
| National         | <b>352</b> | War, external aggression, armed rebellion                |
| President’s Rule | <b>356</b> | Failure of constitutional machinery (linked <b>355</b> ) |
| Financial        | <b>360</b> | Threat to financial stability / credit                   |

National Emergency locks

| Item     | Lock                                                                                               |
|----------|----------------------------------------------------------------------------------------------------|
| Advice   | <b>Written Cabinet</b> advice (not PM alone) — 44th lesson                                         |
| Duration | <b>6 months</b> slices with approval; LS can disapprove                                            |
| Used     | <b>1962, 1971, 1975–77</b>                                                                         |
| Art. 358 | Auto-suspends <b>Art. 19</b> only for war/external (not armed rebellion alone in refined teaching) |
| Art. 359 | Can suspend enforcement; <b>20 &amp; 21 never</b>                                                  |

President’s Rule

| Item       | Lock                              |
|------------|-----------------------------------|
| Floor test | <i>Bommai</i> — majority in House |

| Item     | Lock                                          |
|----------|-----------------------------------------------|
| Approval | Parliament within <b>2 months</b> ; renewable |

Topic 16 — Constitutional Amendments

Consolidated — 28 Must-Score Facts

- 1. Amendment power sits in **Part XX, Article 368** (अनुच्छेद 368). An amendment Bill may start in **either House**. There is **no joint sitting** (संयुक्त बैठक). After the **24th Amendment**, the President **shall** assent.
- 2. There are **three lanes**: **simple majority** changes that are **not** “under 368” (new States, Article 169 Councils, Schedules 5/6 matters, and similar); **special majority** under **368(2)** (majority of total membership (सदन की कुल सदस्य संख्या का) plus two-thirds (ते-भाग) present and voting (गणपूर्ति)); and **special majority plus ratification by half the States** for federal provisions.
- 3. Federal provisions needing State ratification include Presidential election, extent of executive power (**73/162**), Supreme Court and High Courts, the **7th Schedule, Article 368** (अनुच्छेद 368) itself, and State representation in the Rajya Sabha (राज्यसभा).
- 4. The basic-structure chain runs **Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th Amendment (1971) → Kesavananda (1973) → 42nd (1976) → Minerva Mills (1980)**. *Kesavananda* held that Parliament can amend Fundamental Rights (मौलिक अधिकार) but **not** destroy basic structure.
- 5. A shorter chronology trap is **Golaknath → 24th → Kesavananda → 42nd**. *Golaknath* said Fundamental Rights could not be amended; the **24th** asserted Parliament’s power; *Kesavananda* balanced power with basic structure.
- 6. The **1st Amendment (1951)** added **15(4)**, widened **19(2)** for public order, and inserted **31A/31B** with the **9th Schedule** (9वीं अनुसूची) shield for certain laws.
- 7. The **7th Amendment (1956)** reorganised States and added **350A (अनु. 350A)/350B (अनु. 350B)**. Linguistic-minority Articles **350A/350B** are **7th, not 9th**. The **9th Amendment** (9वां संशोधन) is the Berubari boundary amendment.
- 8. The **24th Amendment (1971)** affirmed that Parliament can amend Part III (मौलिक अधिकार) and that the President shall assent. The **25th** inserted **31C** linked to Articles **39(b)/(c)** and spoke of “amount” rather than market value for compensation. The **26th** abolished **privy purses**.
- 9. The **36th Amendment (1975)** made **Sikkim** a State (**371F**). The earlier **35th** had made Sikkim an “associate” State with an old Tenth Schedule device — do not confuse 35th and 36th.
- 10. The **42nd Amendment (1976)** is the **Mini-Constitution**: it added **Socialist, Secular, and Integrity** to the Preamble; inserted Fundamental Duties (मौलिक कर्तव्य) (**51A**); added DPSPs **39A, 43A, 48A**; and moved **five** subjects to the Concurrent List (समवर्ती सूची).
- 11. The 42nd also tried to immunise amendments from review through **368(4)/(5)** and to widen **31C** to all DPSPs — both struck in *Minerva Mills*. The **43rd Amendment (1977)** undid judicial bars such as **32A/131A**.
- 12. The **44th Amendment (1978)** moved property to **Article 300A**, made **Articles 20 and 21** unsuspendable, rewrote Emergency rules (written Cabinet advice, armed rebellion, nexus), and added **38(2)** and **361A**.
- 13. The **39th Amendment (1975)** tried to place the Prime Minister’s election beyond judicial reach; the Supreme Court struck that device in the *Indira Gandhi* (गांधी) election case.
- 14. The **52nd Amendment (1985)** inserted the **present Tenth Schedule** (anti-defection). An earlier Sikkim-related Tenth Schedule had already gone. The **91st Amendment (2003)** killed the one-third split escape, set Council of Ministers size caps (**15%**, Delhi **10%**), and added **361B**.
- 15. The **61st Amendment** lowered voting age to **18** (in force **1989**). Do not confuse it with a **62nd**-style extension of reservation timelines under **334**.
- 16. The **69th Amendment (1991)** created **NCT Delhi** under **239AA**. The **70th** put NCT into the Presidential electoral college. Neither is the same as the wider NCR planning belt.
- 17. The **73rd and 74th Amendments (1992)** created **Parts IX and IXA (नगरपालिका)**. They came into force in **1993 — 24 April** for Panchayats and **1 June** for Municipalities.
- 18. The **86th Amendment (2002)** inserted **Article 21A** (RTE), recast **Article 45**, and added duty **51A(k)**. The RTE Act **2009** took effect on **1 April 2010**.
- 19. The **97th Amendment (2011)** constitutionalised cooperatives (**43B, 19(1)(c), Part IXB**). Part IXB was later held **inoperative for State cooperatives (2021)**.
- 20. The **101st Amendment (2016)** introduced GST (**246A, 279A**), live from **1 July 2017**. The **102nd (2018)** constitutionalised NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) (**338B**) and the Central SEBC list logic (**342A**).
- 21. The **103rd Amendment (2019)** created **EWS** reservation of **10%** through **15(6)/16(6)**; *Janhit Abhiyan* (**2022**) upheld it. The **105th (2021)** restored States’ power to identify their own SEBCs.
- 22. The **104th Amendment** ended Anglo-Indian nomination and extended SC/ST reservation to **2030**. The **106th (2023)** reserves **one-third** seats for women in the Lok Sabha and Assemblies, but only **after** the next delimitation — it is **not yet in force** as seat reservation on the ground.
- 23. The **96th Amendment (2011)** changed **Oriya** to **Odia** in the Eighth Schedule — a pure year-and-name match.
- 24. Simple-majority changes outside Article 368 look ordinary but can still remake the map of States. Special-majority-plus-States is the federal fact when the question names the 7th Schedule or Article 368 itself.
- 25. *Minerva Mills* restored judicial review of amendments and struck the attempt to give DPSPs complete supremacy over Fundamental Rights through an overbroad **31C**.
- 26. Ninth **Schedule** (from the 1st Amendment) is a protective list of laws; Ninth **Amendment** is Berubari. Mixing Schedule and Amendment number is a classic trap.
- 27. Local-government amendments are the pair **73rd + 74th**. Rights-education is **86th**. Goods and services tax is **101st**. EWS is **103rd**. Women reservation awaiting delimitation is **106th**.
- 28. The **42nd (1976)** added **Socialist** and **Secular** to the Preamble. The **44th (1978)** unwound Emergency excesses and moved property out of Part III to **Article 300A**.

Must-score facts — 368 lanes, landmark Amendments

Amendment lanes (Art. 368 / outside)

| Lane                              | Lock                                                           |
|-----------------------------------|----------------------------------------------------------------|
| Simple majority (not “under 368”) | Arts. 2–4; Art. 169 Councils, etc.                             |
| Special majority (368)            | Most amendments                                                |
| Special + half States             | Federal provisions (election of President, Lists, SC/HC, etc.) |

Basic-structure chain

Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th (1971) → Kesavananda (1973) → Indira Gandhi (1975) → 42nd (1976) → Minerva Mills (1980)

Landmark Amendments

| Amd        | Lock                                 |
|------------|--------------------------------------|
| 1st (1951) | 15(4); 19(2); 31A/31B + 9th Schedule |
| 7th (1956) | States reorganisation; 350A/350B     |

| Amd         | Lock                                                  |
|-------------|-------------------------------------------------------|
| 24th (1971) | Parliament can amend Part III; President shall assent |
| 42nd (1976) | Mini-Constitution; Socialist/Secular; Duties          |
| 44th (1978) | Property out of FR; Emergency safeguards              |
| 61st        | Voting age 18                                         |
| 73rd / 74th | Panchayats / Municipalities                           |
| 86th        | 21A + Duty 51A(k)                                     |
| 101st       | GST                                                   |
| 103rd       | EWS                                                   |
| 104th       | Anglo-Indian LS nomination ended                      |

Topic 17 — Language & Special Provisions

Consolidated — 28 Must-Score Facts

- 1. Part XVII (Arts. 343–351) deals with official language. The Constitution **never** names a **national language** (राष्ट्रभाषा).
- 2. The Union official language (संघ राजभाषा) is **Hindi in Devanagari**. The international form of Indian numerals is used for official purposes of the Union.
- 3. The Constitution gave English **fifteen years** from 26 January 1950. The Official Languages Act **1963** (amended **1967**) keeps English in use **with** Hindi without a sunset.
- 4. Article **344** creates an Official Language Commission at **five years** and again at **ten years** from 1950. It is **not** a standing body. A parliamentary committee of **30 MPs (20 Lok Sabha (लोकसभा) + 10 Rajya Sabha (राज्यसभा))** examines its report.
- 5. The **1976** Committee of Parliament on Official Language is a **statutory** standing body chaired by the **Home Minister**. It is **not** the Article 344 Commission (अनु. 344 आयोग).
- 6. A State may adopt one or more languages, or Hindi, as its official language under Article **345**. Under Article **347**, the **President** may direct that a language spoken by a section of the population (जनसंख्या) be officially recognised in that State.
- 7. Until Parliament otherwise provides, the authoritative texts of Acts and proceedings in the Supreme Court and High Courts are in **English** (Article **348**).
- 8. Article **351** places a Union duty to promote Hindi as a medium of expression for India’s composite culture, drawing vocabulary from Eighth Schedule (आठवीं अनुसूची) languages.
- 9. Article **350** lets any person submit a grievance representation in any language used in the Union or the State. Article **350A** (Seventh Amendment) requires States to provide mother-tongue instruction at the **primary** stage.
- 10. Article **350B** creates **one** Special Officer for Linguistic Minorities for the whole of India. It was inserted by the **Seventh** Amendment, **not** the Ninth. It is **not** a per-State office.
- 11. The Eighth Schedule began with **14** languages. **Sindhi** made it **15** (21st Amendment, 1967). **Konkani, Manipuri (मणिपुरी), and Nepali** made it **18** (71st, 1992). **Bodo, Dogri, Maithili, and Santhali** made it **22** (92nd, 2003). The 96th Amendment (2011) renamed **Oriya** as **Odia**.
- 12. **Bhojpuri, English, Rajasthani, Tulu, and Khasi (खासी)** are **not** in the Eighth Schedule. Being in the Eighth Schedule does **not** make a language the Union official language.
- 13. Classical language (शास्त्रीय भाषा) is an **executive** tag, not a constitutional list. **Tamil** was the first (2004). After the 3 October 2024 notifications there are **eleven** classical languages.
- 14. In Uttar Pradesh (उत्तर प्रदेश), **Hindi** is the official language and **Urdu** is the second official language (from **1989**). Under the Official Language Rules **1976**, Uttar Pradesh falls in **Region A**.
- 15. Hindi Diwas is observed on **14 September** (Munshi–Ayyangar formula, 1949). The **58th** Amendment / Article **394A** provides for an authoritative **Hindi** text of the Constitution.
- 16. Parliament may provide for continued English under Articles **343(3), 120, and 348** by **ordinary** law (simple majority). Changing the **text** of Article 343 itself needs Article **368** special majority and is **not** on the federal-consent list.
- 17. Part **X** maps Scheduled and Tribal Areas: Article **244(1)** → Fifth Schedule; Article **244(2)** → Sixth Schedule (Assam, Meghalaya (मेघालय), Tripura, Mizoram).
- 18. Uttar Pradesh has Scheduled Tribes but **no** Fifth Schedule area, so **PESA does not apply** in UP.
- 19. The Fifth Schedule covers **ten** States. A Tribes Advisory Council has up to **20** members with **three-fourths** Scheduled Tribe (अनुसूचित जनजाति) MLAs. **PESA 1996** (पेसा) applies only to Fifth Schedule areas.
- 20. The Sixth Schedule creates Autonomous District Councils. It does **not** cover **Nagaland, Sikkim, Arunachal Pradesh, Manipur, or Ladakh**. Tripura **is** a Sixth Schedule State; Nagaland is **not**.
- 21. Article **371A** (अनु. 371A) protects Nagaland’s land and customary law. Article **371I** (अनु. 371I) requires Goa (गोवा)’s Assembly to have at least **thirty** seats. Article **371J** covers the **Kalyana-Karnataka** (Hyderabad-Karnataka) region with a development board and local preference.
- 22. Article **370** was made inoperative from **6 August 2019**. Article **35A** was a **1954** Presidential Order on permanent residents; it was **not** a constitutional amendment.
- 23. From **31 October 2019**, Jammu & Kashmir and Ladakh became separate Union Territories. Jammu & Kashmir later held Assembly elections in **2024**.
- 24. The Inner Line Permit system is a **neighbour** control regime for selected north-eastern areas; it is **not** itself a Fifth or Sixth Schedule clause.
- 25. Fifth Schedule = Tribes Advisory Council + PESA path. Sixth Schedule = Autonomous District Councils for AMTM States. Do not swap the tools.
- 26. Linguistic minorities are protected through Articles **350–350B**. The National Commission for Minorities (1992) is a **statutory** body for **religious** minorities — not a substitute for the 350B officer (भाषाई अल्पसंख्यक अधिकारी).
- 27. Classical languages may overlap with Eighth Schedule names, but the tags are **not** one-to-one: classical status does not add a language to the Eighth Schedule, and Eighth Schedule listing does not create classical status.
- 28. Special provisions for States sit mainly in Part **XXI** (Arts. **371–371J**). Memorise the letter facts (**371A** Nagaland, **371I** Goa seats, **371J** Kalyana-Karnataka) rather than treating “371” as one generic article.

Must-score facts — official language, 8th Schedule, 371

Official language (Part XVII)

| Item                        | Lock                                                                |
|-----------------------------|---------------------------------------------------------------------|
| National language           | Constitution <b>never</b> names one                                 |
| Union official              | <b>Hindi in Devanagari</b>                                          |
| English                     | 15 years from 1950; continued by Official Languages Act <b>1963</b> |
| Art. 344                    | Official Language Commission (5 yrs / 10 yrs)                       |
| Art. 345                    | State official language(s)                                          |
| Art. 351                    | Union duty to promote Hindi (composite culture)                     |
| SC / HC authoritative texts | English until Parliament otherwise provides                         |

Eighth Schedule / special

| Item      | Lock                           |
|-----------|--------------------------------|
| Languages | <b>22</b>                      |
| In        | Nepali, Dogri, Bodo, etc.      |
| Out       | <b>Bhojpuri</b> (classic trap) |

| Item           | Lock                                 |
|----------------|--------------------------------------|
| Special States | <b>371–371J</b> (Part XXI)           |
| UP             | <b>No</b> 371-series special article |

Topic 18 — Political Parties & Pressure Groups

Consolidated — 26 Must-Score Facts

- 1. The Constitution barely names parties. The main hooks are Article **19(1)(c)** (association), the **Tenth Schedule** (defection), and Article **324** (elections). Parties were largely **extra-constitutional** until the **52nd** Amendment.
- 2. Registration of a political party (राजनीतिक दल) is under **section 29A** of the Representation of the People Act, 1951 (Registered Unrecognised Political Party). **Recognition** as a National or State party is under the Election Symbols Order **1968**. Do not merge the two steps.
- 3. A party becomes a **National** party by any one route: **6% votes in four** (चातुर्याम) States plus **four** Lok Sabha (लोकसभा) seats; or **2% of Lok Sabha seats** from at least **three** States; or State-party status in **four** States.
- 4. A party becomes a **State** party in that State by any one route: **6% votes plus two MLAs or one MP**; or **3% of Assembly seats or three seats** (whichever is higher); or **one** Lok Sabha seat per **25** Assembly seats; or **8% of votes** even with zero seats.
- 5. As of 2024–26 there are **six** national parties: **AAP** (broom), **BSP** (elephant), **BJP** (lotus), **CPI(M)** (hammer-sickle-star), **INC** (hand), and **NPP** (book). **CPI** lost national status in **2023**. **NPP** was the first north-eastern national party (**2019**).
- 6. Reserved symbols go to recognised parties. Free symbols go to unrecognised parties and independents.
- 7. A standard founding-year order is **TDP 1982 → BSP 1984 → SP 1992 → TMC 1998**.
- 8. India has a **multi-party** system, not a classic two-party system. After the Congress-system decades, **1967** brought large state coalitions; **1989–2014** was a long coalition era at the Centre; **2014** returned a single-party majority; **2024** again produced an **NDA coalition** with the BJP on **240** seats.
- 9. A **hung** House means no single party has a majority. A **coalition** means two or more parties govern together. A hung House (त्रिशंकु सदन) may still produce a coalition.
- 10. After *Bommai*, majority is tested on the **House floor**, not by Raj Bhavan arithmetic alone. The President or Governor invites whoever can command confidence.
- 11. Sarkaria (सरकारिया आयोग)'s invite order for a hung House is: **pre-poll alliance → largest single party → post-poll alliance**, then a floor test.
- 12. A **political party** contests elections and seeks office. A **pressure group** (दबाव समूह) usually does not contest and seeks to **influence** policy. An **interest group** (हित समूह) becomes a pressure group when it presses the State.
- 13. The first trade union in India is commonly locked as the **Madras Labour Union (1918)**. **AITUC** (एटक) was formed in **1920** with Lala Lajpat Rai (लाला लाजपत राय) as president and is linked to the **CPI**.
- 14. **INTUC** (इंटक) (**1947**) is linked to the **Congress** (कांग्रेस). **BMS** (बीएमएस) (**1955**) is linked to the **BJP/RSS**. **CITU** (सीटू) (**1970**) is linked to the **CPI(M)**. **UTUC** (यूटीयूसी) (**1949**) is linked to the **RSP**.
- 15. The right to **form** associations and unions is under Article **19(1)(c)**. The right to **strike** is **not** a Fundamental Right.
- 16. Indian party-system features often tested are multi-party competition, weak ideology, dynasty politics, regionalisation after **1967**, weak inner-party democracy, and extra-constitutional origin of parties.
- 17. National parties get an all-India reserved symbol (आरक्षित प्रतीक). State parties get a reserved symbol **only in that State**.
- 18. Electoral bonds were struck down in **February 2024** (*Association for Democratic Reforms*). Party funding transparency remains a live neighbour to registration and recognition.
- 19. Pressure groups include business associations, farmer bodies, trade unions, and professional lobbies. They work through persuasion, media, litigation, and access — not through forming the ministry.
- 20. Do not confuse **AITUC (CPI)** with **CITU (CPI-M)**, or **INTUC (Congress)** with **BMS (BJP/RSS)**.
- 21. Recognition criteria use **votes share and seats**, not merely “old party” or “famous leader.” A registered party without recognition remains a RUPP with a free symbol (मुक्त प्रतीक).
- 22. Coalition governments rest on a common programme and support arithmetic. Withdrawal of support can trigger a floor test and possible change of government.
- 23. In Uttar Pradesh (उत्तर प्रदेश), party founding years for **BSP** and **SP**, and union–party match lists, are high-yield. Keep the national roster and the UP regional set separate.
- 24. The Tenth Schedule punishes defection; it does not itself create the Election Commission (निर्वाचन आयोग)'s recognition rules. Registration, recognition, and defection are three different tools.
- 25. A hung Assembly does not automatically mean President’s Rule. The constitutional path is invitation based on likely majority, then floor test; Article **356** is a last resort, not the first step.
- 26. Multi-party democracy can still produce stable majorities. “Multi-party” describes the system type; it does not mean every election must end in a coalition.

Must-score facts — recognition, symbols, defection

Hooks in Constitution / law

| Item           | Lock                  |
|----------------|-----------------------|
| Association    | Art. <b>19(1)(c)</b>  |
| Anti-defection | <b>Tenth Schedule</b> |
| Registration   | RPA s.29A             |

Statutory Criteria for Recognition (Election Symbols Order, 1968)

A party registered under **Section 29A of RPA 1951** is initially a *Registered Unrecognised Political Party (RUPP)*. It gains **recognition** solely by meeting performance thresholds in general elections:

1. Conditions for Recognition as a NATIONAL PARTY (राष्ट्रीय दल)

(A party must fulfill ANY ONE of the following 3 conditions): 1. **Votes + Seats Route**: Polling at least **6% of total valid votes** in **4 or more States** in a Lok Sabha or State Assembly election, **AND** winning at least **4 seats in the Lok Sabha** from any State or States. 2. **Lok Sabha Seats Route**: Winning at least **2% of total seats in the Lok Sabha** (i.e.,  $543 \times 2\% = \lceil 11 \rceil$  seats), and these elected members must represent **at least 3 different States**. 3. **Multi-State Recognition Route**: Being recognized as a **State Party in at least 4 States**.

(Current 6 National Parties in 2024–26: *BJP, INC, BSP, CPI(M), AAP, NPP*; *CPI, TMC, and NCP* lost national status in April 2023).

2. Conditions for Recognition as a STATE PARTY (राज्य / क्षेत्रीय दल)

(A party must fulfill ANY ONE of the following 5 conditions in the concerned State): 1. **6% Votes + 2 MLAs**: Polling at least **6% of valid votes** in the State Assembly election **AND** winning at least **2 Assembly seats (MLAs)**. 2. **6% Votes + 1 MP**: Polling at least **6% of valid votes** in the State during a Lok Sabha election **AND** winning at least **1 Lok Sabha seat (MP)** from that State. 3. **3% Seats or 3 MLAs**: Winning at least **3% of the total Assembly seats** or **3 seats in the Legislative Assembly**, whichever is higher. 4. 1

**MP per 25 LS Seats:** Winning at least **1 Lok Sabha seat for every 25 seats** allotted to that State (or any fraction thereof). 5. **8% Vote-Share Alone (2011 Rule):** Polling at least **8% of the total valid votes** in the State in an Assembly or Lok Sabha election, **even if it wins ZERO seats**.

**Master Table — Indian Political Parties (Founding Year, Founder & Symbol)**

(High-yield for chronological arrangement & match-the-column PYQs like UPPCS 2022 Q53)

| Party Name (दल)              | Abbr.    | Founded (वर्ष) | Key Founder(s) (संस्थापक)            | Official Symbol (प्रतीक) | Level / Status                       |
|------------------------------|----------|----------------|--------------------------------------|--------------------------|--------------------------------------|
| Indian National Congress     | INC      | 1885 (28 Dec)  | A.O. Hume, W.C. Bonnerjee            | Hand (हाथ का पंजा)       | National Party                       |
| Shiromani Akali Dal          | SAD      | 1920 (14 Dec)  | Master Tara Singh, Baba Kharak Singh | Scales (तेराजू)          | State Party (Punjab)                 |
| Communist Party of India     | CPI      | 1925 (26 Dec)  | M.N. Roy, S.V. Ghatge (Kanpur)       | Ears of Corn and Sickle  | State Party (lost Nat. status 2023)  |
| J&K National Conference      | JKNC     | 1932/1939      | Sheikh Abdullah                      | Plough (हल)              | State Party (J&K)                    |
| Dravida Munnetra Kazhagam    | DMK      | 1949 (17 Sep)  | C.N. Annadurai, Periyar legacy       | Rising Sun (उगता सूरज)   | State Party (TN, Puducherry)         |
| CPI (Marxist)                | CPI(M)   | 1964 (7 Nov)   | P. Sundarayya, E.M.S., Jyoti Basu    | Hammer, Sickle and Star  | National Party                       |
| Shiv Sena                    | SS       | 1966 (19 Jun)  | Bal Thackeray                        | Bow and Arrow (मूल)      | State Party (Maharashtra)            |
| AIADMK                       | AIADMK   | 1972 (17 Oct)  | M.G. Ramachandran (MGR)              | Two Leaves (दो पत्तियाँ) | State Party (TN, Puducherry)         |
| Jharkhand Mukti Morcha       | JMM      | 1972 (15 Nov)  | Shibu Soren, Binod Bihari Mahato     | Bow and Arrow (झारखंड)   | State Party (Jharkhand)              |
| Bharatiya Janata Party       | BJP      | 1980 (6 Apr)   | Atal Bihari Vajpayee, L.K. Advani    | Lotus (कमल)              | National Party                       |
| Telugu Desam Party           | TDP      | 1982 (29 Mar)  | N.T. Rama Rao (NTR)                  | Bicycle (साइकिल - AP)    | State Party (AP, Telangana)          |
| Bahujan Samaj Party          | BSP      | 1984 (14 Apr)  | Kanshi Ram                           | Elephant (हाथी)          | National Party                       |
| Asom Gana Parishad           | AGP      | 1985 (14 Oct)  | Prafulla Kumar Mahanta               | Elephant (असम राज्य)     | State Party (Assam)                  |
| Samajwadi Party              | SP       | 1992 (4 Oct)   | Mulayam Singh Yadav                  | Bicycle (साइकिल - UP)    | State Party (UP)                     |
| Rashtriya Janata Dal         | RJD      | 1997 (5 Jul)   | Lalu Prasad Yadav                    | Hurricane Lamp (लालटेन)  | State Party (Bihar, Jharkhand)       |
| Biju Janata Dal              | BJD      | 1997 (26 Dec)  | Naveen Patnaik                       | Conch (शंख)              | State Party (Odisha)                 |
| All India Trinamool Congress | AITC/TMC | 1998 (1 Jan)   | Mamata Banerjee                      | Flowers and Grass        | State Party (lost Nat. status 2023)  |
| Nationalist Congress Party   | NCP      | 1999 (10 Jun)  | Sharad Pawar, P.A. Sangma            | Clock (घड़ी)             | State Party (lost Nat. status 2023)  |
| BRS (formerly TRS)           | BRS      | 2001 (27 Apr)  | K. Chandrashekar Rao (KCR)           | Car (कार)                | State Party (Telangana)              |
| YSR Congress Party           | YSRCP    | 2011 (12 Mar)  | Y.S. Jagan Mohan Reddy               | Ceiling Fan (पंखा)       | State Party (AP)                     |
| Aam Aadmi Party              | AAP      | 2012 (26 Nov)  | Arvind Kejriwal                      | Broom (झाड़ू)            | National Party (gained 2023)         |
| National People's Party      | NPP      | 2013 (6 Jan)   | P.A. Sangma                          | Book (किताब)             | National Party (1st North-East 2019) |

**UPPCS Classic Trap Sequence: TDP (1982) → BSP (1984) → SP (1992) → TMC (1998).**

## Topic 19 — Acts & Governance

### Consolidated — 32 Must-Score Facts

- Under the Disaster Management Act **2005**, the **NDMA** is chaired by the **Prime Minister**, the **SDMA** by the **Chief Minister**, and the **DDMA** by the **District Magistrate**. The **NEC** is chaired by the **Cabinet Secretary**. The nodal ministry is **Home**.
- NDRF** as a **force** is not the same as the National Disaster **Response Fund**. Do not swap the two.
- The RTI Act **2005** (assent **15 June 2005**; in force from **12 October 2005**) grew from the MKSS campaign. The fee is **₹10** (BPL free). Reply is due in **30 days (48 hours if life or liberty is at stake)**. First appeal is **30 days**; second appeal **90 days**. Penalty can run **₹250** a day up to **₹25,000**.
- RTI section **22** makes RTI override the Official Secrets Act to that extent; it does **not** repeal the Official Secrets Act.
- The RTE Act **2009** (in force **1 April 2010**) covers ages **6–14**. Neighbourhood norms are about **1 km** (primary) and **3 km** (upper primary). Private schools reserve **25%** under section **12(1)(c)**. School Management Committees must be **three-fourths** parents. PTR is **1:30**.
- The National Food Security Act **2013** covers up to **75%** of the rural and **50%** of the urban population (जनसंख्या). Prices are **₹3 / ₹2 / ₹1** for rice, wheat, and coarse grains. Antyodaya gets **35 kg** per household. A woman aged **18 or more** is treated as household head. Do **not** date NFSA as **5 September 2010**.
- The Forest Rights Act **2006** starts recognition (मान्यता) at the **Gram Sabha** (ग्राम सभा). Eligible groups include Scheduled Tribes and Other Traditional Forest Dwellers with a **75-year** occupation test as on **13 December 2005**. Individual rights are capped around **4 hectares**. The nodal ministry is **Tribal Affairs**.
- The Protection of Human Rights Act **1993** has a **one-year** limitation for complaints. After the **2019** change, the NHRC (राष्ट्रीय मानव अधिकार आयोग) Chair must be a **retired Supreme Court judge**. NHRC recommendations are **recommendatory**.
- The Consumer Protection Act **2019** lists **six** consumer rights, creates the **CCPA**, adds product liability and e-commerce coverage, and uses district pecuniary jurisdiction up to **₹50 lakh**. World Consumer Rights Day is **15 March**; National Consumer Day is **24 December**.
- The Whistle Blowers Protection Act **2014** makes identity revelation an offence for disclosures about a **public authority**. It is **not** the same as RTI, Lokpal (लोकपाल), or the PIDPI resolution.
- PESA 1996** (पेसा) (notified **24 December**) extends Part IX (भाग IX) to **Fifth Schedule** (5वीं अनुसूची) areas in **ten** States. It strengthens Gram Sabha control over land, minor forest produce, minerals, and intoxicants. It does **not** apply where there is no Fifth Schedule area.
- The SC/ST (Prevention of Atrocities) Act **1989** (in force **30 January 1990**) uses exclusive special courts (strengthened **2015**). Anticipatory bail bar under sections **18 / 18A** was restored in **2018**.
- POCSO 2012** (पॉक्सो) covers sexual offences against children **under 18**. Section **19** makes reporting mandatory. Investigation has a **two-month** push. Trials are in-camera. The nodal ministry is **Women and Child Development**.
- The Prevention of Corruption Act **1988** (amended **2018**) criminalises **giving** a bribe as well as taking one. Section **17A** needs prior approval for inquiry. Corporate bribery is covered. Trial is aimed at **two years**.
- The Citizenship Act **1955** lists five ways to acquire and three ways to lose citizenship. Naturalisation normally needs **eleven years**; CAA shortens that path for notified groups from Afghanistan, Bangladesh, and Pakistan who entered by **31 December 2014**. **OCI is not dual citizenship**.
- The four (चातुर्थी) Labour Codes are **Wages (2019)** plus **IR, OSH, and Social Security (2020)**. The Wages Code merges minimum wages, payment of wages, bonus, and equal remuneration. It does **not** swallow the old Contract Labour Act as a one-line synonym.
- RPA 1950** covers electoral rolls and seat allocation. **RPA 1951** covers conduct of elections, election petitions, and party registration under section **29A**.
- E-governance modes are **G2C (जी2सी)**, **G2B, G2G (जी2जी)**, and **G2E**. NeGP (**2006**) grew into Digital India's **e-Kranti** pillar. ICT should **cut cost** and **raise citizen input**, not increase red tape.
- Citizen Charters began in the UK (**1991**, John Major). India's Action Plan is **1997** (DARPG). A charter is a **promise document**, not a justiciable Union statute. Right-to-service laws (Madhya Pradesh **2010**, UP Janhit Guarantee **2011**) are **State statutes** with officer liability.
- Good Governance Day is **25 December** (Atal Bihari Vajpayee) from **2014**. UNDP (यूएनडीपी)'s eight principles and the World Bank's 1990s framing are the usual theory facts.
- Transparency** is not the same as **accountability**. Social audit under MGNREGA section **17** is Gram Sabha-led. Meghalaya (मेघालय) (**2017**) passed the first State social-audit Act. Social audit is **not** a CAG (भारत के नियंत्रक-महालेखापरीक्षक) audit (केग लेखापरीक्षा).
- Sevottam** (**2006**, DARPG) has three modules: Citizen Charter, Grievance Redress, and Capability Building. It uses the Charter; it is not merely another name for the Charter.
- Digital India launched on **1 July 2015** under **MeitY**, with three vision areas and **nine** pillars. **e-Kranti** is pillar **5**. Neighbours include UMANG (**2017**), DigiLocker, BharatNet, CSCs, GeM (**2016**), and MyGov (**2014**).
- Mission Karmayogi (**NPCSCB, 2 September 2020**) uses iGOT, the Capacity Building Commission (**2021**), and Karmayogi Bharat SPV. **Adi Karmayogi (2025)** is a **Ministry of Tribal Affairs** drive — **not** the DoPT Mission Karmayogi programme.
- Civil-service neutrality rests on anonymity, permanence, and non-partisanship under the CCS (सुरक्षा कैबिनेट समिति) Conduct Rules **1964**. It is **not** the same as a "committed bureaucracy" slogan.
- A **Code of Conduct** is enforceable rules (CCS **1964**). A **Code of Ethics** (नैतिक संहिता) is values (Nolan seven principles; Second ARC fourth report). Do not swap them.
- Lateral entry (from **2018**) brings specialists at Joint Secretary level on short contracts through DoPT/UPSC (संघ लोक सेवा आयोग). It supplements, and does not replace, the civil services examination stream.
- The **Second ARC** (Veerappa Moily, **2005–09**) issued **15** reports. Report **4** is Ethics; **11** is e-Governance; **12** is citizen-centric administration / Sevottam. The **First ARC** (Morarji Desai (आमिल), then Hanumanthaiah, **1966–70**) issued **20** reports and recommended a Lokpal.
- PRAGATI** (प्रगति) (**25 March 2015**) is a PMO ICT review platform. It is **not** a Digital India pillar. **CPGRAMS** (सीपीजीआरएएमएस) (DARPG) is not the same as the older Cabinet Secretariat **DPG** (लोक शिकायत निदेशालय) window (**1988**).
- ECO Mark (**1991**) is an **environment** (पर्यावरण) label for products. Do not treat it as a consumer-forum hierarchy fact under CPA 2019.
- POSH **2013** is workplace sexual harassment (Internal Committee if **ten or more** workers). POCSO **2012** is child sexual offences under **eighteen**. Keep the two Acts apart.
- The Environment (Protection) Act **1986** is the umbrella environment statute. The National Green Tribunal Act **2010** creates the green tribunal. Match the year to the institution, not the slogan.

### Must-score facts — key Acts & chairs

#### Act ↔ lock

| Act                            | Lock                                                                        |
|--------------------------------|-----------------------------------------------------------------------------|
| DM Act 2005                    | NDMA = <b>PM</b> ; SDMA = <b>CM</b> ; NDRF ≠ Response <b>Fund</b>           |
| RTI 2005 (आरटीआई 2005)         | Assent 15 Jun; force <b>12 Oct 2005</b> ; s.22 overrides OSA to that extent |
| RTE 2009 (आरटीई 2009)          | Force <b>1 Apr 2010</b> ; ages <b>6–14</b>                                  |
| NFSA 2013 (खाद्य सुरक्षा 2013) | Up to <b>75%</b> rural / <b>50%</b> urban                                   |

| Act             | Lock                                            |
|-----------------|-------------------------------------------------|
| FRA 2006        | Starts at <b>Gram Sabha</b>                     |
| PHRA 1993       | NHRC; <b>1-year</b> complaint limit             |
| Lokpal Act 2013 | Statutory anti-corruption apex                  |
| CAA 2019        | Selected minorities; cut-off <b>31 Dec 2014</b> |

#### Governance tags

| Item                          | Lock                                                        |
|-------------------------------|-------------------------------------------------------------|
| NITI (नीति) Aayog (नीति आयोग) | 2015; think-tank; replaced Planning Commission (योजना आयोग) |
| GST (वस्तु एवं सेवा कर)       | 101st Amd; GST Council (जीएसटी परिषद)                       |

Topic 20 — Internal Security

Consolidated — 30 Must-Score Facts

- 1. Police and public order are **State List** (राज्य सूची) subjects. The Union still has a duty under Article **355** to protect States against external aggression and internal disturbance. The **Ministry of Home Affairs** is the internal-security nodal ministry.
- 2. The Army (सेना), Navy, Air Force, and Coast Guard (तटरक्षक बल) sit under the **Ministry of Defence**. CAPFs sit under **Home**. Do not put Coast Guard in the CAPF list.
- 3. The **Intelligence Bureau (1887)** is India's internal intelligence agency under **MHA**. The Multi-Agency Centre sits with the IB. **NATGRID** is also under MHA.
- 4. **RAW** was formed on **21 September 1968** under **R.N. Kao**. It handles **external** intelligence and reports through the **Cabinet Secretariat / NSA** line — **not** MHA.
- 5. The **NIA** was created by the NIA Act **2008** after 26/11. It investigates scheduled offences **without** State consent (unlike CBI under DSPE section **6**). The **2019** amendment strengthened extra-territorial reach.
- 6. India's Interpol National Central Bureau is the **CBI**. **BHARATPOL** is the CBI-linked Interpol channel — not a separate CAPF.
- 7. The **National Security Council (1998)** is chaired by the **Prime Minister**. The first NSA was **Brajesh Mishra**. NSC's Strategic Policy Group is **not** the Special Protection Group.
- 8. The **Cabinet Committee on Security** is a Cabinet committee. The **NSC** is an extra-constitutional security council. Do not treat them as one body.
- 9. The **Special Protection Group Act 1988** protects the Prime Minister (and, after **2019**, the PM's family, with ex-PM cover for **five years**). It is close protection — not the NSC's Strategic Policy Group.
- 10. The **NSG** ("Black Cats") was raised after **1984** and given a statute in **1986**. It has SAG (Army) and SRG (CAPF) components, trains at Manesar, and works under MHA.
- 11. CAPFs under MHA include **CRPF (1939)**, **BSF (1 December 1965)** for Pakistan and Bangladesh borders, **CISF (1969)** for industry/airports, **ITBP (1962)** for the China / LAC belt, and **SSB (1963/2001)** for Nepal and Bhutan borders.
- 12. **Assam Rifles (1835)** is the oldest central paramilitary force. Administration is with **MHA**; operations are with the **Army**. Its north-east HQ is **Shillong**.
- 13. Coastal security is three-tier: marine police → **Indian Coast Guard** → **Navy**. Coast Guard (**1978**) is **MoD**, not a CAPF.
- 14. **NDRF** is a disaster-response force under the Disaster Management Act **2005**. **RPF** belongs to the Railways. Neither is a classic border CAPF.
- 15. **CERT-In (2004)** is under **MeitY** and draws power from IT Act section **70B**. It handles cyber incident response. **2022** directions require reporting in **six hours** and log retention for **five years**.
- 16. **NCIIPC** (राष्ट्रीय महत्वपूर्ण सूचना अवसंरचना) (section **70A**) protects Critical Information Infrastructure and sits under the **NTRO** line. It is **not** CERT-In.
- 17. **I4C** (MHA, **2018/20**) runs the cybercrime.gov.in ecosystem (पारिस्थितिकी तंत्र) and a National Cybercrime Training Centre. That training centre is **not** the never-born counter-terror **NCTC** (एनसीटीसी).
- 18. Proposed **NCTC** (counter-terror) was **never** stood up. **MAC (2001)** lives inside the IB and is the working multi-agency coordination fact.
- 19. IT Act section **66A** was struck down in **2015**. Section **66F** covers cyber-terrorism. Sections **69 / 69A** cover interception and blocking. India's National Cyber Security Policy is **2013** (MeitY). India is **not** a party to the Budapest Convention.
- 20. **UAPA 1967** is the living anti-terror criminal statute. **POTA** was repealed in **2004** and its teeth largely folded into UAPA. After **2019**, individuals can be designated terrorists (Fourth Schedule). Bail is hard under section **43D(5)**.
- 21. **NSA 1980** (रासुका) is a **preventive detention** law (Article **22** track). UAPA is a **criminal trial** statute often used with the NIA. Do not swap them.
- 22. **AFSPA 1958** (अफ़सा 1958) applies in a notified **disturbed area** in the north-east. Section **3** notifies; section **4** gives fire/arrest/search powers; section **6** needs Central sanction for prosecution. Jammu & Kashmir uses a **separate 1990** AFSPA statute.
- 23. AFSPA was lifted from Tripura (**2015**), Meghalaya (मैघालय), and large parts of Assam (**2022**). It still applies in parts of Nagaland, Manipur, Arunachal Pradesh, and under the J&K Act.
- 24. The Jeevan Reddy Committee (**2005**) recommended repeal of AFSPA; that recommendation was **not** enacted. **NPMHR (1997)** upheld AFSPA with limits. Fake encounters are not a licence under later rulings.
- 25. **Left-Wing Extremism (LWE / Naxal)** is fought mainly by **State police** plus **CRPF / CoBRA**, with State units such as Chhattisgarh's **DRG** (Maharashtra's comparable unit is often **C-60**). MHA's **SAMADHAN (2017)** is the LWE strategy acronym — not a new CAPF. In April **2024**, the high-yield district fact is **Kanker (Chhattisgarh)**, not Gadchiroli.
- 26. The Defence Cyber Agency (**2019**) is under **MoD**. Cyber Swachhta Kendra sits with CERT-In. Keep ministry lines clear when matching institutions.
- 27. India's nuclear and cyber neighbours in this chapter are policy facts: strategic forces under Defence, cyber civilian response under MeitY, cybercrime under MHA, and critical infrastructure under NCIIPC/NTRO.
- 28. **TADA (1985–95)** lapsed. **POTA (2002)** was repealed. The living central terror-trial tool for scheduled offences is **UAPA**, often with **NIA**.
- 29. CRPF is the main internal mobile force (including RAF and CoBRA for LWE). BSF holds the western and eastern international land borders. CISF holds static industry and airport security. Do not swap roles.
- 30. Emergency Articles **352, 356, and 360** are constitutional emergency tools. Internal security day-to-day work still runs through police, CAPFs, intelligence, and special statutes — not only through Emergency proclamations.

Must-score facts — agencies, CAPF, NSC

Division of labour

| Item                  | Lock                       |
|-----------------------|----------------------------|
| Police / public order | <b>State List</b>          |
| Union duty            | Art. <b>355</b>            |
| Defence forces        | Ministry of <b>Defence</b> |
| CAPFs                 | Ministry of <b>Home</b>    |

Agency ↔ tag

| Agency | Lock                                                                                   |
|--------|----------------------------------------------------------------------------------------|
| IB     | Internal intel; <b>1887</b> ; under MHA                                                |
| RAW    | External; <b>21 Sep 1968</b> ; <b>R.N. Kao</b>                                         |
| NIA    | Act <b>2008</b> (post 26/11); scheduled offences without State consent in listed cases |
| CBI    | Interpol NCB India; BHARATPOL channel                                                  |
| NSC    | <b>1998</b> ; Chair <b>PM</b> ; first NSA <b>Brajesh Mishra</b>                        |

| Agency                      | Lock                      |
|-----------------------------|---------------------------|
| CCS (सुरक्षा कैबिनेट समिति) | Cabinet committee (≠ NSC) |

Topic 21 — International Relations

Consolidated — 33 Must-Score Facts

- 1. India's foreign policy rests on **independent judgment** — historically called non-alignment and later strategic autonomy. It is **not** isolation and was **not** joining a US or USSR military camp in the Cold War textbook sense.
- 2. **Panchsheel** was signed on **29 April 1954** in the India–China Tibet trade (पञ्चावधि) agreement. The five principles are mutual respect for sovereignty, non-aggression, non-interference, equality and mutual benefit, and peaceful coexistence.
- 3. **Bandung 1955** echoed the same five principles at the Afro-Asian conference. Panchsheel is the India–China five; Bandung is the wider conference that used them.
- 4. **Non-alignment** is a **policy**. **NAM** is a **movement**, founded at **Belgrade 1961** by Nehru (नेहरू), Nasser, Tito (with Sukarno and Nkrumah). India hosted the **7th Summit** in Delhi (**1983**). NAM is **not** a military alliance and is **not** NATO.
- 5. The UN Security Council has **15** members: **P5** (China, France, Russia, UK, USA) plus **10** elected for **two** years. A P5 **veto** blocks substantive drafts. India has been elected **eight** times; the last term was **2021–22**.
- 6. The **G4** (India, Japan, Germany, Brazil) seek permanent seats. The **Uniting for Consensus** (Coffee Club) group resists easy expansion of permanent membership.
- 7. **NATO** was founded on **4 April 1949** in Washington. Article **5** is collective defence. HQ is **Brussels**. Membership is **32** after Finland (**2023**) and Sweden (**2024**). India is **not** a member.
- 8. **AUKUS** (**2021**) is Australia–UK–US (nuclear submarines). **QUAD** is India–Japan–US–Australia as a **dialogue**. Do not merge AUKUS with QUAD.
- 9. The **Djibouti Code of Conduct** (**2009**, IMO) targets piracy in the Western Indian Ocean and Gulf of Aden. The **Jeddah Amendment** (**January 2017**) widens the focus to broader maritime crime. **ReCAAP** (**2006**, Singapore) is the Asian piracy neighbour — not the same instrument.
- 10. Look East (**1991**, Narasimha Rao) became **Act East** (**2014**). **SAGAR** (**2015**) frames Indian Ocean outreach. **Neighbourhood First** and **Gujral Doctrine** (**1996**, non-reciprocity with smaller neighbours) are core neighbourhood lines.
- 11. Foundational US defence pacts with India include **GSOMIA 2002**, **LEMOA 2016**, **COMCASA 2018**, and **BECA 2020**. The civil nuclear **123 Agreement** and NSG waiver came in **2008**.
- 12. India is **not** a signatory to the **NPT** or **CTBT**. **No First Use** is a national doctrine, not a UN treaty India signed.
- 13. **Uniting for Peace** (GA Resolution **377(V)**, **1950**) lets the General Assembly recommend action if a veto paralyses the Security Council. Abstention is **not** a veto. The PRC replaced the ROC in China's UN seat in **1971**.
- 14. Collective **security** is the UN Chapter **VII** idea. Collective **defence** is NATO Article **5**. Swiss-style neutrality is **not** the same as non-alignment.
- 15. The UN has **six** principal organs: General Assembly, Security Council, ECOSOC, ICJ, Secretariat, and Trusteeship Council (inactive since **1994**). HQ is New York except the **ICJ at The Hague**.
- 16. **Bretton Woods 1944** created the **IMF** and **IBRD (World Bank)**. **Both** have headquarters in **Washington, D.C.** The World Bank is **not** headquartered in New York.
- 17. The **WTO** began in **1995** at Geneva (from GATT **1947**). Core trade facts are **MFN** and **National Treatment**.
- 18. **WHO** is Geneva (**1948**). **UNESCO** is Paris (**1945**). **ILO** is Geneva (**1919**, tripartite). **ICJ** has **15** judges for **nine**-year terms at The Hague. India is **not** a party to the Rome Statute **ICC**.
- 19. **SAARC** has **eight** members (1985 Dhaka; HQ **Kathmandu**) and includes Pakistan and Maldives. **ASEAN** has **ten** members (HQ **Jakarta**); India is **not** a member. **BIMSTEC** has **seven** members (**1997**) and does **not** include Indonesia, Pakistan, China, or Maldives.
- 20. **G20** is **19 + EU + AU (from 2023)**. India held the presidency (प्रेसीडेंसी) in **2022–23**. The New Delhi logo's lotus with **seven** petals stands for **seven continents**. UP G20 venues included Agra, Varanasi, Greater Noida, and Lucknow — **not** Kanpur.
- 21. **BRICS** leaders' summits began in **2009**; South Africa joined around **2010/11**. The **NDB** is in **Shanghai**. The **10th** summit was Johannesburg **2018**. **2024** expansion brought in Egypt, Ethiopia, Iran, and UAE (Saudi Arabia invited).
- 22. The **SCO** grew from the **Shanghai Five** (**1996**) — China, Russia, Kazakhstan, Kyrgyzstan, Tajikistan (**no Uzbekistan** then). Uzbekistan joined at SCO's **2001** birth. India and Pakistan joined in **2017**; Iran in **2023**. RATS is in **Tashkent**; the Secretariat is in **Beijing**.
- 23. **IORA** HQ is in **Mauritius**. The **Commonwealth** has about **56** members with a London base; republics can remain members after **1949**. India is **out** of **APEC** and **OECD**.
- 24. UN Day is **24 October**. The UN has **six** official languages. Vijaya Lakshmi Pandit was UNGA President in **1953**. **UNDP / UNICEF** are programmes, not specialised agencies. **HDI** is a **UNDP** (यूएनडीपी) product, not an IMF product.
- 25. India's WHO Global Centre for Traditional Medicine is at **Jamnagar** (**2022**). The *Jadhav* case is an **ICJ** matter, not an ICC matter.
- 26. SAARC's last summit was Kathmandu **2014**. India walked out of **RCEP** in **November 2019**. India is **not** in the **G7** (guest only).
- 27. **NDB** (BRICS, Shanghai) is not **AIIB** (Beijing, China-led). India is a member of AIIB but NDB is the BRICS bank fact.
- 28. East Asia Summit includes India. Do not confuse EAS membership with ASEAN membership. ASEAN remains a ten-member club without India.
- 29. OIC membership does **not** include India. The League of Nations saw the US Senate refuse membership — a classic US foreign-policy trap.
- 30. **Five Eyes** is US–UK–Canada–Australia–New Zealand intelligence sharing. **CSTO** is Russia-led. **SEATO / CENTO** are dead. Warsaw Pact ended with the Cold War.
- 31. US foreign-policy milestones often asked are Monroe (**1823**), Truman containment (**1947**), NATO (**1949**), Nixon's China opening (**1972**), unipolar moment (**1991**), Pivot to Asia (**2011**), and later America First / AUKUS–Quad framing.
- 32. Connect Central Asia (**2012**) and the **2+2** format with the US, Japan, Australia, and Russia are standard India outreach facts beside Look/Act East and SAGAR.
- 33. **Article 51** (DPSP) directs the State to promote **international peace and security**, just and honourable relations, respect for international law and treaty obligations, and settlement of disputes by arbitration — the constitutional footing for foreign-policy ideals, not a Fundamental Right.

Must-score facts — Panchsheel, UN, groupings

India doctrine tags

| Item          | Lock                                                    |
|---------------|---------------------------------------------------------|
| Panchsheel    | <b>29 Apr 1954</b> India–China Tibet trade              |
| Bandung       | <b>1955</b> Afro-Asian echo                             |
| NAM           | Movement; <b>Belgrade 1961</b> (Nehru, Nasser, Tito...) |
| Non-alignment | <b>Policy</b> (≠ NAM the movement)                      |

UN / alliances

| Item | Lock                                  |
|------|---------------------------------------|
| UNSC | <b>15</b> = P5 + 10 elected (2 years) |

| Item  | Lock                                    |
|-------|-----------------------------------------|
| G4    | India, Japan, Germany, Brazil           |
| NATO  | <b>4 Apr 1949</b> ; Art. 5; HQ Brussels |
| QUAD  | India–Japan–US–Australia (dialogue)     |
| AUKUS | Australia–UK–US <b>2021</b> (subs)      |

Topic 22 — Constitutional Philosophy

Consolidated — 30 Must-Score Facts

- 1. The Preamble counts are **Justice 3, Liberty 5, Equality 2**, and **Fraternity 1**. The word **Federal** is **not** in the Preamble. The **42nd** Amendment added **Socialist, Secular**, and **integrity**.
- 2. **Constitutionalism** means limited government under a higher law. Merely having a written constitution booklet is **not** enough by itself.
- 3. **Constitutional morality** (Ambedkar (अम्बेडकर) in the Constituent Assembly (संविधान सभा)) means fidelity to constitutional norms, not whatever the street calls “morality.” It is **not** the same as “public morality” in Articles **19 / 25**.
- 4. Dicey’s Rule of Law has three limbs: no arbitrary power, equality before law, and (in the UK) rights from ordinary law rather than a special Bill of Rights. India takes the first two (Article **14**, judicial review, Articles **32 / 226**) and **rejects** the third.
- 5. Rule of Law itself is part of the **Basic Structure** (*Indira Gandhi, 1975*). PIL is often treated as a practical path that helps weaker sections reach the courts.
- 6. Article **21**’s text is “**procedure established by law**” (Japan source). The US model is **due process** (5th/14th Amendments). India’s text was never rewritten to say “due process.”
- 7. *A.K. Gopalan (1950)* read Article 21 (अनुच्छेद 21) as any procedure in a valid law, with Fundamental Rights (मौलिक अधिकार) in silos. *Maneka Gandhi (1978)* requires a procedure that is **fair, just, and reasonable**, reading (रीडिंग) Articles **14, 19, and 21** together (the golden triangle).
- 8. After *Maneka*, Article 21 review is both **procedural** and **substantive**. Natural justice (*audi alteram partem, nemo judex*) is poured into Article 21 even though the text still says procedure established by law.
- 9. **Separation of powers** comes from Montesquieu. Vesting lines include Article **53** (executive), **79** (Parliament), and **124** (Supreme Court). The USA is rigid; India is **functional** with **fusion** of executive and legislature (Cabinet in the House).
- 10. *Ram Jawaya Kapur (1955)* rejected American-style rigid separation for India. Article **50** (DPSP (राज्य के नीति निर्देशक तत्व)) separates judiciary from executive in the **public services** only. Separation of powers is Basic Structure.
- 11. **Checks and balances** are the restraining teeth: judicial review, impeachment, no-confidence (अविश्वास प्रस्ताव), and the rule that ordinances must return to the House. CAG (भारत के नियंत्रक-महालेखापरीक्षक), Election Commission (निर्वाचन आयोग), and UPSC (संघ लोक सेवा आयोग) are constitutional brakes, not “extra-constitutional” toys.
- 12. The UK classic is **Parliamentary sovereignty**. The US *Marbury* line is strong judicial review. India follows **Constitutional supremacy**: the Constitution’s word is last.
- 13. The **24th** Amendment inserted Article **13(4)** so that a **368** amendment is not “law” under Article 13. The **42nd** tried to bar review of amendments through Articles **368(4)/(5)**; *Minerva Mills (1980)* struck that attempt.
- 14. **Judicial review** tests statutes, executive action, and constitutional amendments against the Constitution (including Basic Structure). It is **not** the same claim as “judicial supremacy.”
- 15. A **welfare state** pursues socio-economic goals; a **police state** stops at law and order. Article **38** (with **38(2)** via the 44th) and Part **IV** are the main welfare instruments. Article **37** makes DPSPs fundamental in governance though not directly enforceable.
- 16. High-yield DPSP facts include Article **40** (panchayats), **44** (UCC), **45** (early childhood), **47** (prohibition (प्रतिषेध)), **48** (cattle), and **48A** (environment (पर्यावरण)).
- 17. **Socialism** was named in the Preamble by the **42nd**, but Part IV already carried socialist content. Indian socialism is **democratic / mixed-economy**, not a USSR one-party textbook model. The **1991** reforms did not delete the Preamble word.
- 18. **Secularism** was named by the **42nd**, but Articles **25–28** already operated from 1950. Indian secularism is **positive** — equal respect, with Article **25(2)** reform power. *Bommai (1994)* treats secularism as Basic Structure. It is not theocracy and not a hard US “wall.”
- 19. **Democracy** means rule by the people with universal adult franchise and free and fair elections (Basic Structure). A **republic** means an **elected** Head of State (Article **54**), not a hereditary monarch. The UK can be a democracy without being a republic.
- 20. Preamble **Justice** is social, economic, and political. Social maps to Articles **15 / 17**; economic to Article **39**; political to Article **326**.
- 21. Preamble **Liberty** is five words: thought, expression, belief, faith, and worship. It is **not** the same list as Article **19**’s six freedoms, and it is **not** “liberty of person” under Article **21**.
- 22. Preamble **Equality** is equality of **status** and of **opportunity**. Status links to Articles **14 / 15 / 17**; opportunity links to Article **16**.
- 23. **Fraternity** assures dignity of the individual and the unity and integrity of the nation. Ambedkar warned that without fraternity, liberty and equality stay incomplete. The **42nd** added **integrity**. Duties in Article **51A(c)/(e)** echo the theme.
- 24. **Political sovereignty** rests with the people (“We, the People”). **Legal sovereignty** in India rests with the **Constitution**, which is why India is not a Dicey-UK parliamentary-sovereignty state.
- 25. **Sovereign** in the Preamble covers both internal supremacy and external independence. It is the first word in the SSSDR chain.
- 26. The French triad is Liberty, Equality, Fraternity. India prefixes **Justice** and keeps the three. Secular character was already in Basic Structure discussion before *Bommai* applied it to Article **356**.
- 27. Constituent power under Article **368** is not ordinary legislative power under Article **245**. Even Article 368 (अनुच्छेद 368) remains under the Basic Structure ceiling.
- 28. After *Maneka*, Article **21** has been read to include livelihood, privacy, health, shelter, and dignity. Privacy was treated as a Fundamental Right in *Puttaswamy (2017)*.
- 29. Indian secularism is often summarised as **Sarva Dharma Sambhava** / equal respect — not a US establishment-clause wall and not State indifference to reform needs.
- 30. Rule by law (ruler uses statutes as a whip) is the trap opposite of Rule of Law (law binds the ruler too). Mark the second.

Must-score facts — Rule of Law, Art. 21, Basic Structure

Keywords / counts

| Item                    | Lock                                        |
|-------------------------|---------------------------------------------|
| Preamble counts         | J3 · L5 · E2 · F1                           |
| Federal in Preamble     | No                                          |
| Constitutionalism       | Limited government under higher law         |
| Constitutional morality | Ambedkar — fidelity to constitutional norms |

Rule of Law / Art. 21

| Item         | Lock                                                                   |
|--------------|------------------------------------------------------------------------|
| Dicey limbs  | No arbitrary power; equality before law; rights from ordinary law (UK) |
| Rule of Law  | Basic Structure ( <i>Indira Gandhi 1975</i> )                          |
| Art. 21 text | “Procedure established by law” (Japan)                                 |

| Item                  | Lock                                             |
|-----------------------|--------------------------------------------------|
| US contrast           | Due process                                      |
| <i>Gopalan</i> (1950) | Any procedure in valid law; rights in silos      |
| <i>Maneka</i> (1978)  | Fair, just, reasonable; procedural + substantive |

Topic 23 — Constitutional & Legal Offices

Consolidated — 30 Must-Score Facts

- 1. The **Attorney General** (महान्यायवादी) (Article **76**) is the Union’s first law officer. Qualification matches a **Supreme Court judge**. Tenure is during the **pleasure of the President**. Removal is **not** by judge-impeachment.
- 2. Under Article **88**, the Attorney General may speak in **both** Houses and their committees but has **no vote**. Private practice is allowed except against the Government of India or in a matter already advised on.
- 3. The Attorney General’s oath is **not** a Third Schedule form. Pay is fixed by the President and is **not** a Second Schedule charged office like the CAG. The first AG was **M.C. Setalvad**.
- 4. The **Solicitor General** is **not** in the Constitution. The SG assists the AG, has **no** Article **88** right by that office, and is regulated by executive / Law Officers rules.
- 5. The **Advocate General** (महाधिवक्ता) (Article **165**) is the State’s first law officer. Qualification matches a **High Court judge**. Appointment and pleasure are of the **Governor**. Article **177** allows speaking in the State House(s) without a vote.
- 6. There is **no** office called “Advocate General of India.” Do not invent a Union AdvG.
- 7. The **CAG** (Articles **148–151**) is appointed by the President for **six years or age 65**, whichever is earlier. Removal is **like a Supreme Court judge**. Article **148(4)** bars further Union or State office after leaving the post.
- 8. The CAG takes a **Third Schedule** oath before the President. Salary is in the **Second Schedule** and charged. Union reports go President → Parliament; State reports go Governor → Legislature (Article **151**).
- 9. The Indian CAG audits **after** expenditure. The classic UK Comptroller could **block** payment first. The Public Accounts Committee examines CAG reports. An **Accountant General** is the CAG’s field officer — not the Advocate General.
- 10. The Third Schedule covers ministers, House candidates/members, Supreme Court and High Court judges, and the CAG. It does **not** cover the President, Vice-President, Governor, AG, SG, Advocate General, or CEC.
- 11. The **Chief Election Commissioner** is appointed by the President. Under the **2023** Act, selection is by the Prime Minister, Lok Sabha (लोकसभा) Leader of Opposition, and a Cabinet Minister. The **CJI** is **not** on this panel (unlike the Lokpal (लोकपाल) panel).
- 12. CEC tenure is **six years or age 65**. The CEC is removed **like a Supreme Court judge**. Other Election Commissioners and Regional Commissioners are removed only on the **CEC’s recommendation**. Votes are equal; removal protection is not.
- 13. The first CEC was **Sukumar Sen**. The first woman CEC was **V.S. Ramadevi (1990)**. An Election Commissioner may become CEC, with combined service capped at six years.
- 14. The **UPSC** (संघ लोक सेवा आयोग) Chairman is appointed by the President for **six years or age 65**. Removal under Article **317** follows a Supreme Court inquiry path. Under Article **319**, a UPSC Chair may take **no** further Union or State office.
- 15. A **State PSC** Chair is **appointed by the Governor** but **removed by the President** (after Supreme Court inquiry on misbehaviour). Extension of SPSC functions under Article **321** is by the **State Legislature**. A Joint PSC needs **Parliament** if the States request it.
- 16. UPPSC headquarters is **Prayagraj** (प्रयागराज). Do not confuse UPPSC with UPSC (Delhi) or with the State Election Commission (निर्वाचन आयोग).
- 17. The **Chief Justice of India** retires at **65**, takes oath before the **President**, and resigns to the **President**. Appointment convention is seniority (broken in **1973** and **1977**). If President and Vice-President are both vacant, the CJI can act as President and then takes the Article **60** oath.
- 18. The Supreme Court Collegium is **CJI + four** (चातुर्गम). The High Court Collegium is **CJI + two**. The **99th** Amendment’s NJAC was struck on **16 October 2015**.
- 19. A High Court Chief Justice retires at **62**, takes oath before the **Governor**, and resigns to the **President**. Article **223** covers an acting Chief Justice. Outsider Chief Justices are a convention, not a constitutional bar.
- 20. Resignation facts: Supreme Court / High Court judges, CJI, High Court CJ, CAG, CEC, and UPSC resign to the **President**. An SPSC member or Advocate General resigns to the **Governor**. High Court **oath** (Governor) is not the same as High Court **resignation** (President).
- 21. The President resigns to the **Vice-President** (Article **56**). The Vice-President resigns to the **President** (Article **67**). A Governor resigns to the **President** (Article **156**). The Lok Sabha Speaker resigns to the **Deputy Speaker** (Article **94**), **not** to the President.
- 22. Article **319** rows: UPSC Chair = total further-office bar; UPSC member may become UPSC Chair or an SPSC Chair; SPSC Chair may become UPSC Chair or another SPSC Chair.
- 23. The State Election Commission under Article **243K** is **not** the Election Commission under Article **324**. Local-body polls are SEC; Parliament and State legislature polls are ECI.
- 24. A 2024 trap mixes Article **324** (ECI) with Article **165** (Advocate General). Keep the numbers with the offices.
- 25. AG and Advocate General hold office during **pleasure**. CAG and judges have hard removal paths. Pleasure is not impeachment.
- 26. Contempt motions under Contempt of Courts Act section **15** may need AG/SG consent in some criminal-contempt paths. That consent power does **not** make the law officer a judge.
- 27. Regional Commissioners under Article **324** share the “removal only on CEC recommendation” fact with other Election Commissioners.
- 28. CAG form of accounts advice sits in Article **150**. Do not invent a separate “Advocate General of accounts.”
- 29. Solicitor General has no Article **88** speaking right by constitutional text. If the SG appears in Parliament contexts, that is not the AG’s Article 88 status.
- 30. Study every office on six axes: appointment, removal, qualification, tenure, oath, and resign-to-whom. One missing axis is the usual prelims trap.

Must-score facts — AG, SG, AdvG, CAG

Union law officers

| Office            | Lock                                               |
|-------------------|----------------------------------------------------|
| Attorney General  | Art. <b>76</b> ; SC-judge qualification            |
| Art. 88           | Speak in both Houses / committees; <b>no vote</b>  |
| AG oath / pay     | Not Third Schedule; pay fixed by President         |
| Solicitor General | <b>Not</b> in Constitution; assists AG; no Art. 88 |

State / audit

| Office           | Lock                                     |
|------------------|------------------------------------------|
| Advocate General | Art. <b>165</b> ; HC-judge qualification |
| “AdvG of India”  | <b>Does not exist</b>                    |
| CAG              | Arts. <b>148–151</b> ; 6 yrs / age 65    |

| Office            | Lock                                     |
|-------------------|------------------------------------------|
| CAG oath / salary | Third Schedule; Second Schedule; charged |

Topic 24 — Important Supreme Court Judgments

Consolidated — 32 Must-Score Facts

- 1. A.K. Gopalan (1950) held that Article 21 is satisfied by any procedure (प्रक्रिया) in a valid law and read Fundamental Rights (मौलिक अधिकार) in silos. Maneka Gandhi (1978) requires a **fair, just, and reasonable** procedure and reads Articles 14, 19, and 21 together.
- 2. ADM Jabalpur (1976) held that habeas corpus (बन्दी प्रत्यक्षीकरण) fails if Article 21 (अनुच्छेद 21) is suspended in Emergency; Justice Khanna dissented. The 44th (44वां संशोधन) Amendment (44वां संशोधन) later blocked suspension of Articles 20 and 21. Puttaswamy (2017) said the Jabalpur majority was wrong.
- 3. Shankari Prasad (1951) upheld the First Amendment and said Article 368 can amend Fundamental Rights. Sajjan Singh (1965) upheld the Seventeenth Amendment; Mudholkar hinted at “basic features.”
- 4. Golaknath (1967, 11-judge, 6:5) held that Fundamental Rights **cannot** be amended, with prospective overruling. It is **not** the Basic Structure case.
- 5. The 24th Amendment (1971) inserted Article 13(4) so a 368 amendment is not “law” under Article 13. It came **before** Kesavananda.
- 6. Kesavananda Bharati (24 April 1973, 13-judge, 7:6) held that Parliament **can** amend Fundamental Rights but **cannot** destroy the **Basic Structure**. This is the Basic Structure fact.
- 7. The four-case amendment order is 1951 → 1965 → 1967 → 1973 (Shankari → Sajjan → Golaknath → Kesavananda).
- 8. Indira Nehru Gandhi (1975) struck the Thirty-ninth Amendment’s Article 329A(4)/(5) election-shield clauses and added Rule of Law / free-fair elections themes to Basic Structure talk.
- 9. Minerva Mills (1980) struck the Forty-second Amendment’s Articles 368(4)/(5) and kept Article 31C limited to Article 39(b)/(c). It locked limited amending power and FR–DPSP (राज्य के नीति निदेशक तत्व) harmony.
- 10. Berubari (1960) held that ceding Indian territory needs a **constitutional amendment**, not an ordinary Act, and then treated the Preamble (प्रस्तावना) as **not** part of the Constitution. Kesavananda later held the Preamble **is** part.
- 11. The **Ninth Schedule** (नौवीं अनुसूची) (First Amendment, 1951) is a list-shield for laws. The **Ninth Amendment** (1960) is the Berubari boundary amendment. Do not swap Schedule and Amendment.
- 12. After 24 April 1973, parking a law in the Ninth Schedule does not save it if it damages Basic Structure (Waman Rao 1981; I.R. Coelho 2007).
- 13. Judges Cases: 1981 First Judges gave executive primacy; 1993 Second Judges created Collegium (CJI + 2); 1998 Third Judges expanded SC Collegium to CJI + 4 and HC to CJI + 2.
- 14. The 99th Amendment’s NJAC was struck on 16 October 2015 (4:1) because judicial independence is Basic Structure. Collegium is judge-made and not written into the original text; NJAC was written and fell.
- 15. S.R. Bommai (1994) made Article 356 justiciable, locked majority to the **floor test**, barred dissolving the Assembly before parliamentary approval, and treated secularism as Basic Structure for misuse of 356.
- 16. Rameshwar Prasad (2006) struck Bihar Assembly dissolution based on a mere fear of horse-trading. Nabam Rebia (2016) held that a Governor cannot scramble the House calendar to help one faction defeat the Speaker.
- 17. Kihoto Hollohan (1992) upheld the Tenth Schedule, struck paragraph 7’s total court ouster, and held that the Speaker’s defection order is judicially reviewable.
- 18. Lily Thomas (2013) struck RPA section 8(4)’s three-month cushion for sitting (बैठक) legislators. A conviction of **two years or more** under section 8(3) brings immediate disqualification.
- 19. Indra Sawhney (1992) upheld 27% OBC (अन्य पिछड़ा वर्ग) reservation, locked a 50% ceiling, excluded the creamy layer, and barred reservation in **promotion**. The 77th Amendment later restored SC/ST promotion via Article 16(4A).
- 20. K.S. Puttaswamy (2017, nine judges) held that **privacy** is a Fundamental Right under Article 21.
- 21. Shreya Singhal (2015) struck IT Act section 66A as vague and as chilling Article 19(1)(a).
- 22. Vishaka (1997) laid workplace sexual-harassment guidelines under Articles 14 / 15 / 19 / 21 until the POSH Act 2013 took over as statute.
- 23. Navtej Singh Johar (2018) held section 377 IPC unconstitutional for consensual adult sex. It is **not** “Article 377” (a transitory CAG (भारत के नियंत्रक-महालेखापरीक्षक) provision).
- 24. Joseph Shine (2018) struck section 497 IPC adultery as a crime. Adultery can still matter as a **civil** matrimonial ground.
- 25. M.C. Mehta Oleum (1986) locked **absolute (निरपेक्ष) liability** for hazardous industry and read a clean environment (पर्यावरण) into Article 21. Absolute liability is stricter than English Rylands strict liability.
- 26. Sikri’s early Basic Structure list included constitutional supremacy, republican and democratic form, secular character, separation of powers, and federal character. Later cases added Rule of Law, judicial review, free and fair elections, limited amending power, FR–DPSP harmony, and judicial independence.
- 27. Golaknath froze Part III (मौलिक अधिकार); Kesavananda restored amending power with a Basic Structure ceiling. Marking Golaknath as “Basic Structure invented” is the classic trap.
- 28. Emergency rights line: Gopalan → Jabalpur → Maneka / 44th / Puttaswamy. Amendment line: Shankari → Sajjan → Golaknath → 24th → Kesavananda → Indira → Minerva.
- 29. Ninth Schedule review after the Kesavananda date is still open for Basic Structure damage. Pre-cut-off and post-cut-off timing matters in Waman Rao / Coelho questions.
- 30. Collegium versus NJAC is not “which is older in the text.” Collegium is precedent; NJAC was constitutional text and was struck for independence reasons.
- 31. Floor test (Bommai) is the majority fact for Assembly confidence. Raj Bhavan letters and media claims do not replace a House vote.
- 32. Rights-expansion neighbours often tested together are privacy (Puttaswamy), expression online (Shreya Singhal), sexual autonomy (Navtej), gender equality in adultery law (Joseph Shine), and environmental absolute liability (Mehta).

Must-score facts — case ↔ holding

Amendment / Basic Structure chain

| Case / step            | Lock                                                   |
|------------------------|--------------------------------------------------------|
| Shankari Prasad (1951) | 368 can amend FR                                       |
| Golaknath (1967)       | FR cannot be amended (6:5)                             |
| 24th (1971)            | 13(4) — 368 amendment not “law” under 13               |
| Kesavananda (1973)     | Can amend FR but <b>not Basic Structure</b> (7:6)      |
| Indira Gandhi (1975)   | Struck 39th election-shield clauses; Rule of Law in BS |
| Minerva Mills (1980)   | Restored limits after 42nd excesses                    |

## Rights / Emergency / privacy

| Case                        | Lock                                                |
|-----------------------------|-----------------------------------------------------|
| <i>A.K. Gopalan</i> (1950)  | Art. 21 = any procedure in valid law                |
| <i>Maneka Gandhi</i> (1978) | Fair, just, reasonable procedure                    |
| <i>ADM Jabalpur</i> (1976)  | Habeas fails if 21 suspended (later overruled line) |
| <i>Puttaswamy</i> (2017)    | Privacy = FR under 21                               |
| <i>Bommai</i> (1994)        | Floor test for majority; federalism                 |

## Order trap

1951 → 1965 → 1967 → 1973 (*Shankari* → *Sajjan* → *Golaknath* → *Kesavananda*)

---

Consolidated — 32 Must-Score Facts

- Uttar Pradesh’s **capital** is **Lucknow** (लखनऊ) (Raj Bhavan and Vidhan Bhavan). The High Court’s **principal seat** is **Prayagraj** (प्रयागराज). Lucknow hosts a **Bench**, not a second High Court.
- The first Governor of the United Provinces / Uttar Pradesh was **Sarojini Naidu (15 August 1947)**. She was the first woman Governor of an Indian State and died in office on **2 March 1949**.
- The first Chief Minister was **Govind Ballabh Pant**. The first woman Chief Minister was **Sucheta Kripalani (1963)**. Do not swap Governor and CM firsts.
- Under the **91st** Amendment, the Council of Ministers (including the Chief Minister) cannot exceed **15%** of the Assembly strength. For UP’s **403**, that is about **60**. The floor is **12**.
- Uttar Pradesh has **no Article 371–371J** special provision. The State Secretariat is at **Lucknow**.
- The Legislative Assembly has **403** elected members — the largest in India. Before **9 November 2000** it was **425**. Assembly membership age is **25**; term is **five years**. Money Bills originate only here.
- The Legislative Council has **100** members. It cannot be dissolved; **one-third** retire every **two years**; membership age is **30**.
- Council composition is **36** local bodies + **8** graduates + **8** teachers + **36** MLAs + **12** Governor nominees = **100**. Article **171** caps a Council at one-third of the Assembly (**134**) and a minimum of **40**; UP chose **100**.
- India has **six** bicameral States: Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh.
- Uttar Pradesh sends **80** Lok Sabha members and **31** Rajya Sabha members — both the largest State contingents. Before Uttarakhand the figures were **85** and **34**.
- Lok Sabha reserved seats from UP are **17 SC** and **0 ST**. Rajya Sabha members from UP are elected by the **403** MLAs through STV. UP MLA Presidential-vote value is the highest among States (textbook **208** on the 1971-population formula).
- Allahabad High Court traces to the Indian High Courts Act **1861** and Letters Patent of **17 March 1866** for the North-Western Provinces. It first sat at **Agra (1866)**, moved to Allahabad in **1869**, and took the “at Allahabad” name style in **1919**. First Chief Justice was **Walter Morgan**.
- The Lucknow Bench comes from the United Provinces High Courts (Amalgamation) Order **1948**, merging the Chief Court of Oudh (**1925**). Sanctioned strength is about **160** — the largest High Court. Jurisdiction is UP only; Uttarakhand has the **Nainital** (नैनीताल) High Court from **2000**.
- Allahabad High Court is **not** one of the **1862** Chartered High Courts (Bombay, Calcutta, Madras).
- Official language is **Hindi in Devanagari** (UP Official Language Act **1951**). **Urdu** became the second official language in **1989**. Under Union Official Language (संघ राजभाषा) Rules **1976**, UP is **Region A**.
- Uttarakhand was created by the UP Reorganisation Act **2000** on **9 November 2000** (then named **Uttaranchal**). The rename to **Uttarakhand** (उत्तराखंड) took effect on **1 January 2007**. It was the **27th** State; **13** districts were carved out.
- After reorganisation, UP Assembly fell **425 → 403**, Lok Sabha **85 → 80**, Rajya Sabha **34 → 31**. Uttarakhand’s Assembly is **70**.
- Uttar Pradesh has **18** Commissioner divisions and **75** districts. Faizabad division was renamed **Ayodhya** (अयोध्या). Devipatan division (HQ **Gonda**) covers Bahraich, Balrampur, Gonda, and Shravasti.
- A common Assembly-strength trap pairs Manipur with **62**; Manipur’s Assembly is **60**. UP **403** and Uttarakhand **70** are the correct neighbours in that set.
- UPPSC** HQ is **Prayagraj** (from **1937**). The Governor appoints; the **President** removes after a Supreme Court path on misbehaviour. Age limit is **62** / six years. Functions are extended by the **UP Legislature** under Article **321**.
- UPPSC** is not **UPSC** (संघ लोक सेवा आयोग) (Delhi), not **UP SEC** (राज्य निर्वाचन आयोग) (Lucknow), and not the Accountant General.
- The **UP State Election Commission** (Lucknow) works under Articles **243K** and **243ZA**. The Governor appoints; removal is like a **High Court judge**. It conducts **Panchayat and urban local body** polls — **not** MLA, MP, or Presidential elections.
- There is no “Panchayati Raj Commission of India” running UP local polls. Local polls are SEC; legislature polls are ECI.
- The **UP State Finance Commission** is constituted by the Governor every **five years** (Article **243I**) and also reviews municipal finances (Article **243Y**). The report goes Governor → both Houses with an action-taken note. It is not the Union Finance Commission (Article **280**).
- The **UP Lokayukta** is under the U.P. Lokayukta and Up-Lokayukta Act **1975**. Appointment involves the Governor after the Chief Justice of Allahabad High Court and the Leader of Opposition. It is statutory, not a criminal court, and not the Union **Lokpal** (लोकपाल) (**2013**). Maharashtra (**1971**) had the first State Lokayukta Act in India.
- Panchayati Raj tiers are Gram Panchayat (**Pradhan**) → **Kshetra Panchayat** (क्षेत्र पंचायत) (**Pramukh**) → Zila Panchayat (**Adhyaksha**). Statutes are the **1947** village Act and the **1961** Kshetra–Zila Act. There are **75** Zila Panchayats.
- Women get **50%** reservation in UP PRIs/ULBs by State law (Constitution’s floor remains one-third). Panchayat member age is **21**. Gram Sabha (ग्राम सभा) means **registered voters**, not every resident. Nyaya (न्याय) Panchayat is not a 73rd constitutional tier.
- UP has **no Fifth Schedule** (5वीं अनुसूची) **areas**, so **PESA does not apply**. Every district has a District Planning Committee (Article **243ZD**, at least four-fifths elected).
- Urban local bodies are **Nagar Nigam** (Municipal Corporation Act **1959**), **Nagar Palika Parishad**, and **Nagar Panchayat** (नगर पंचायत) (Municipalities Act **1916**). The Mayor (महापौर) is the political head; the **Nagar Ayukt / Commissioner** is the executive.
- Cantonment Boards are under **Defence**, not the 74th municipal track. Development authorities such as **Noida**, **Greater Noida**, and **YEIDA** are industrial township exceptions under Article **243Q** — **not** Nagar Nigams.
- Lucknow runs the political executive; Prayagraj runs the High Court and UPPSC. That geography-of-power split is a recurring prelims trap.
- Reorganisation arithmetic (**425/85/34 → 403/80/31**) plus Council **100** and bicameral status are the densest number facts on this sheet.

Must-score facts — UP polity tags

Capitals / firsts

| Item              | Lock                                        |
|-------------------|---------------------------------------------|
| Capital           | <b>Lucknow</b> (Raj Bhavan / Vidhan Bhavan) |
| HC principal seat | <b>Prayagraj (Allahabad)</b>                |
| First Governor    | <b>Sarojini Naidu</b> (15 Aug 1947)         |
| First CM          | <b>Govind Ballabh Pant</b>                  |
| First woman CM    | <b>Sucheta Kripalani</b>                    |

Legislature / CoM

| Item            | Lock                                                                 |
|-----------------|----------------------------------------------------------------------|
| Assembly        | <b>403</b> elected (largest in India)                                |
| Council         | <b>100</b> ; 1/3 retire every 2 years                                |
| Council mix     | 36 local + 8 graduates + 8 teachers + 36 MLAs + 12 Governor nominees |
| CoM size cap    | <b>15%</b> of Assembly ( <b>91st</b> )                               |
| Art. 371 series | <b>None</b> for UP                                                   |
| Secretariat     | <b>Lucknow</b>                                                       |

Pre-Uttarakhand

| Item                     | Lock                                              |
|--------------------------|---------------------------------------------------|
| Before <b>9 Nov 2000</b> | Larger Assembly strength (Uttarakhand carved out) |

|  |
|--|
|  |
|--|

Topic 26 — One-Liner Revision

Current Affairs (what the year actually tests)

| Year | Fact                                                                                                                                         |
|------|----------------------------------------------------------------------------------------------------------------------------------------------|
| 2025 | Part XI ≠ Municipalities; 8th Schedule (अष्टम अनुसूची) <b>Bhojpuri OUT</b> ; 42nd (42वाँ) Preamble (प्रस्तावना) = <b>Socialist + Secular</b> |
| 2024 | <i>Kesavananda</i> (केशवानंद भारती 1973) chronology; 42nd = <b>1976</b> ; GST (वस्तु एवं सेवा कर) = <b>101st</b>                             |
| 2023 | Schedule NOT-matched (9th ≠ RS seats); Panchayat polls = <b>SEC</b>                                                                          |
| 2022 | 3rd/4th/7th/8th match; RTE = <b>86th</b> not 103rd                                                                                           |
| 2021 | <i>Golaknath</i> (गोलकनाथ 1967) → 24th → <i>Kesavananda</i> → 42nd                                                                           |
| 2023 | <b>106th</b> women 33% — <b>not yet in force</b>                                                                                             |

Current Affairs (bodies · Parliament)

| Year | Fact                                                                                                                         |
|------|------------------------------------------------------------------------------------------------------------------------------|
| 2024 | NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) matched to <b>340</b> as the paper's "least-wrong" — still learn <b>338B</b> vs <b>340</b> |
| 2024 | UPSC (संघ लोक सेवा आयोग) functions = <b>four</b> (चातुर्धर्म) <b>sources</b> ; Zero Hour (शून्य काल) already locked 2021     |
| 2023 | Panchayat polls = <b>SEC</b> , not ECI, not a "PR Commission of India"                                                       |
| 2023 | CEC Act panel <b>without CJI</b>                                                                                             |
| 2021 | ISC = <b>Sarkaria</b> (सरकारिया आयोग); UPPSC (उत्तर प्रदेश लोक सेवा आयोग) extend = <b>Legislature</b>                        |
| 2018 | <i>Navtej</i> (नवतेज जौहर) = <b>s.377 IPC</b>                                                                                |

Quick Revision — Spine Only

PARTS: III=FR · IV=DPSP · IVA=Duties · V=Union · VI=States · VIII=UTs  
IX / IXA / IXB = Panchayats / Municipalities / Cooperatives  
X=Scheduled & Tribal Areas · XI=Union-State (NOT municipalities/tribunals)  
XIVA=Tribunals · XV=Elections · XVIII=Emergency · XX=Amendment · XXI=371-series  
VII=repealed. Count = 25 Parts (lettered ones included). Original 1950 = 22.

SCHEDULES (1→12): Territories · Emoluments · Oaths · RS seats · 5th Areas/STs · 6th AMTM  
· Lists · 22 languages · 9th validation (1st Amd) · 10th defection (52nd) · 11th=29 · 12th=18  
8th: Bhojpuri OUT. Nepali, Dogri, Bodo, Maithili, Santhali IN.

ARTICLES (must): 1 Union of States · 3 Parliament alters States · 12 State · 13 void laws  
14–18 equality · 19 six freedoms · 21 life · 21A RTE · 32 SC writs · 51A duties  
72/161 pardon · 74 aid-advice · 76 AG · 110 Money Bill · 123 Ordinance  
148 CAG · 226 HC writ (wider) · 263 ISC · 280 FC · 300A property  
312 AIS · 324 EC · 352/356/360 Emergency · 368 Amendment · 371–371J · 393 short title

WRITS: Habeas Corpus = produce the detained body · Mandamus = compel a public duty  
Prohibition = stop a lower court BEFORE it decides · Certiorari = quash AFTER it has decided  
Quo Warranto = by what authority do you hold this public office  
Art. 32 = Supreme Court, Fundamental Rights only (itself a FR). Art. 226 = High Court, FR + any other purpose (wider). Habeas even against

EMERGENCY: 352 war/aggression/armed rebellion · 356 State machinery · 360 finance (never used)  
358 = Art.19 auto (war/aggression only) · 359 = enforceability; 20 & 21 never sleep (44th)

ELECTIONS: 324 ECI · 325 one roll · 326 adult suffrage 18 (61st) · 329 bar + election petition  
54 President = elected MPs + elected MLAs · 66 VP = both Houses, no MLAs  
243K / 243ZA = SEC (not ECI)

AMENDMENTS: 1st 1951 (15(4)+9th Sch) · 7th 1956 SRC · 24th 1971 13(4) · 42nd 1976 mini  
44th 1978 undo · 52nd 1985 10th Sch · 61st 18y · 73/74 1992 · 86th 21A · 101st GST · 103rd EWS · 106th women

BORROWED: UK Parliament/writs · USA FR/judicial review · Ireland DPSP · Canada residuary/strong Centre  
Australia Concurrent + joint sitting · Japan “procedure established by law” · France LEF + Republic  
Weimar FR-suspend · USSR Duties + justice triad · South Africa 368 procedure + RS election

PRECEDENCE (Warrant 1979, ceremonial): 1 Pres · 2 VP · 3 PM · 4 Gov(in state) · 5 ex-Pres · 6 CJI=Speaker  
7 CabMin/CM(in state)/ex-PM/LoP · 9 SC judges · 9A CEC/CAG/UPSC · 10 Dy RS/LS · 11 AG — NOT succession

Confused pairs

| A            | B               | Fact                                                                     | Hindi Terminology                                      |
|--------------|-----------------|--------------------------------------------------------------------------|--------------------------------------------------------|
| Part XI      | Part IXA / XIVA | Union-State relations · <b>not</b> Municipalities · <b>not</b> Tribunals | भाग XI (संबंध) / भाग IXA (नगरपालिका)                   |
| 4th Schedule | 9th Schedule    | RS seats vs validation of Acts                                           | चौथी (राज्यसभा सीट) / 9वीं अनुसूची                     |
| 5th Schedule | 6th Schedule    | Scheduled Areas (many States) vs <b>AMTM</b> Autonomous Councils         | 5वीं (अनुसूचित क्षेत्र) / 6वीं अनुसूची (AMTM)          |
| 11th / 12th  | counts          | <b>29</b> Panchayat vs <b>18</b> Municipality                            | 11वीं (29 विषय) / 12वीं (18 विषय)                      |
| Art. 32      | Art. 226        | SC, FR only vs HC, <b>wider</b>                                          | अनु. 32 (सर्वोच्च न्यायालय) / अनु. 226 (उच्च न्यायालय) |

| A                   | B                   | Fact                                                             | Hindi Terminology                                         |
|---------------------|---------------------|------------------------------------------------------------------|-----------------------------------------------------------|
| Art. 54             | Art. 66             | President: MPs+MLAs · VP: <b>Parliament only</b>                 | राष्ट्रपति निर्वाचन मण्डल / उपराष्ट्रपति                  |
| Precedence          | Succession          | <b>Warrant 1979</b> ceremonial · <b>not</b> Art. 56–62 line      | वरीयता क्रम / उत्तराधिकार क्रम                            |
| CJI                 | Speaker             | <b>Same rank — 6</b>                                             | मुख्य न्यायाधीश एवं लोकसभा अध्यक्ष (समान रैंक 6)          |
| Cabinet Minister    | AG                  | Minister <b>7</b> · AG <b>11</b>                                 | कैबिनेट मंत्री (7) / महान्यायवादी (11)                    |
| SC judge            | CEC/CAG             | <b>9 vs 9A</b>                                                   | सर्वोच्च न्यायालय न्यायाधीश (9) / कैग व चुनाव आयुक्त (9A) |
| Art. 352            | 356 / 360           | National vs State vs Financial                                   | राष्ट्रीय / राज्य (राष्ट्रपति शासन) / वित्तीय आपातकाल     |
| Prohibition         | Certiorari          | <b>Before</b> the order vs <b>after</b>                          | प्रतिषेध (निर्णय पूर्व) / उत्प्रेषण (निर्णय पश्चात)       |
| 3rd Schedule        | Arts. 60 / 69 / 159 | Ministers/MPs/judges/CAG vs <b>President / VP / Governor</b>     | तीसरी अनुसूची शपथ / संवैधानिक विशिष्ट शपथ                 |
| 42nd                | 44th                | Mini-Constitution <b>1976</b> vs Emergency rewrite <b>1978</b>   | 42वां (1976) / 44वां संशोधन (1978)                        |
| 9th Amendment       | 9th Schedule        | Berubari <b>1960</b> vs 1st Amd <b>1951</b> list of Acts         | 9वां संशोधन (1960) / 9वीं अनुसूची (1951)                  |
| 35th's old 10th Sch | 52nd's 10th Sch     | Sikkim associate-State terms (repealed 36th) vs <b>defection</b> | सिक्किम सह-राज्य / दल-बदल विरोधी कानून                    |

### Frame

Every row below is meant to be readable **alone**. If a cell only said “12 State” or “HC = produce body”, that is the confusion this sheet now kills: **Habeas Corpus** (बन्दी प्रत्यक्षीकरण) is the writ; **High Court** is the court. Abbreviations are expanded in the tables.

### Parts of the Constitution

Originally **22** Parts (1950). Now **25** (IVA, IXA (नगरपालिका), IXB (सहकारिता), XIVA added; **VII repealed**).

| Part         | Subject                                                                                                                                        |
|--------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>I</b>     | Union and its Territory                                                                                                                        |
| <b>II</b>    | Citizenship                                                                                                                                    |
| <b>III</b>   | Fundamental Rights (मौलिक अधिकार)                                                                                                              |
| <b>IV</b>    | Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy                                                                               |
| <b>IVA</b>   | Fundamental Duties (मौलिक कर्तव्य) ( <b>42nd</b> )                                                                                             |
| <b>V</b>     | The Union — President, VP, Council of Ministers, Attorney-General, Parliament, Supreme Court, CAG (भारत के नियंत्रक-महालेखापरीक्षक)            |
| <b>VI</b>    | The States — Governor, State CoM, Advocate-General, State Legislature, High Courts                                                             |
| <b>VII</b>   | <b>Repealed</b> (Part-B States)                                                                                                                |
| <b>VIII</b>  | Union Territories                                                                                                                              |
| <b>IX</b>    | Panchayats ( <b>73rd</b> )                                                                                                                     |
| <b>IXA</b>   | Municipalities ( <b>74th</b> )                                                                                                                 |
| <b>IXB</b>   | Cooperative Societies ( <b>97th</b> )                                                                                                          |
| <b>X</b>     | Scheduled and Tribal (आदिवासी) Areas                                                                                                           |
| <b>XI</b>    | Relations between the Union and the States (legislative / administrative / Arts. 245–263). <b>Not</b> municipalities, <b>not</b> tribunals     |
| <b>XII</b>   | Finance, Property, Contracts, Suits                                                                                                            |
| <b>XIII</b>  | Trade (पण्यध्यक्ष), Commerce and Intercourse within India (Arts. 301–307). Attorney-General is <b>not</b> here — he is Part <b>V</b> , Art. 76 |
| <b>XIV</b>   | Services under the Union and the States                                                                                                        |
| <b>XIVA</b>  | Tribunals ( <b>42nd</b> )                                                                                                                      |
| <b>XV</b>    | Elections                                                                                                                                      |
| <b>XVI</b>   | Special Provisions relating to certain Classes                                                                                                 |
| <b>XVII</b>  | Official Language                                                                                                                              |
| <b>XVIII</b> | Emergency Provisions                                                                                                                           |
| <b>XIX</b>   | Miscellaneous                                                                                                                                  |
| <b>XX</b>    | Amendment of the Constitution                                                                                                                  |
| <b>XXI</b>   | Temporary, Transitional and Special Provisions ( <b>371–371J</b> )                                                                             |
| <b>XXII</b>  | Short Title, Commencement, Authoritative Text, Repeals                                                                                         |

### Schedules (1 to 12)

Originally **8**. Now **12**.

| Sch.     | Subject                                                                                                                                                                                                                | Born                 |
|----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|
| <b>1</b> | Names / territories of States & UTs                                                                                                                                                                                    | Original             |
| <b>2</b> | Emoluments — President, Governors, Speakers, SC/HC judges, CAG                                                                                                                                                         | Original             |
| <b>3</b> | Forms of <b>Oaths or Affirmations</b>                                                                                                                                                                                  | Original             |
| <b>4</b> | <b>Rajya Sabha</b> (राज्यसभा) seat allocation                                                                                                                                                                          | Original             |
| <b>5</b> | Administration of <b>Scheduled Areas and Scheduled Tribes</b> in States <b>other than</b> the 6th-Schedule areas. Governor + Tribes Advisory Council. <b>UP is not in it</b>                                           | Original             |
| <b>6</b> | Autonomous District / Regional Councils in the tribal areas of <b>Assam, Meghalaya (मेघालय), Tripura, Mizoram</b> only (remember <b>AMTM</b> ). <b>Not</b> UP, <b>not</b> the Fifth-Schedule States                    | Original             |
| <b>7</b> | <b>Union List (संघ सूची) / State List (राज्य सूची) / Concurrent List (समवर्ती सूची)</b> — who may legislate on what (Art. 246)                                                                                         | Original             |
| <b>8</b> | Languages recognised by the Constitution — now <b>22</b> (started with <b>14</b> )                                                                                                                                     | Original             |
| <b>9</b> | Acts parked here were meant to be <b>immune from Fundamental-Rights attack</b> (land reform). Added by the <b>1st Amendment, 1951</b> with <b>13</b> Acts. <b>Not</b> the 9th <i>Amendment</i> (that is Berubari 1960) | <b>1st Amd, 1951</b> |

| Sch. | Subject                                                                                                                                                                                                    | Born                  |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|
| 10   | <b>Anti-defection</b> — when an MP/MLA is disqualified for leaving the party. <b>52nd Amendment, 1985</b> . (An older 10th Schedule for Sikkim's "associate State" terms was repealed by the <b>36th</b> ) | <b>52nd Amd, 1985</b> |
| 11   | Panchayats — <b>29</b> subjects                                                                                                                                                                            | <b>73rd, 1992</b>     |
| 12   | Municipalities — <b>18</b> subjects                                                                                                                                                                        | <b>74th, 1992</b>     |

**8th Schedule — 22 languages.** Original **14**. Additions: **Sindhi** (21st, 1967) · **Konkani, Manipuri (मणिपुरी), Nepali** (71st, 1992) · **Bodo, Dogri, Maithili, Santhali** (92nd, 2003). **Oriya** renamed **Odia** (96th, 2011). **Not in it:** Bhojpuri, Rajasthani, English. The 22: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu.

**9th Schedule (9वीं अनुसूची) judicial review:** *I.R. Coelho* (2007) — entries **after 24 Apr 1973** still face **basic structure**.

**Two different 10th Schedules:** 35th Amd's Sikkim-associate terms (repealed by **36th**) ≠ today's **defection** 10th (**52nd**).

**5th vs 6th:** UP has **neither**. 6th = AMTM only.

## Important Articles — number → one line

### Union, territory, citizenship, FR, DPSP (राज्य के नीति निर्देशक तत्व), duties

| Art. | One-liner                                                                                                                                                                                                                                                                                                                                                   |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | India, that is Bharat, is a <b>Union of States</b> (indestructible Union; States can be reorganised)                                                                                                                                                                                                                                                        |
| 2    | Parliament may by law <b>admit</b> new States into the Union or <b>establish</b> new States                                                                                                                                                                                                                                                                 |
| 3    | Parliament may form a new State, change area/boundary/name. <b>President's recommendation</b> needed. The concerned State Legislature's view is <b>sought, not binding</b>                                                                                                                                                                                  |
| 4    | A law under Arts. 2–3 may amend the 1st and 4th Schedules and is <b>not</b> treated as a constitutional amendment under <b>368</b>                                                                                                                                                                                                                          |
| 5    | Who was a citizen <b>on 26 Jan 1950</b> (domicile + birth / parent / 5 years' residence)                                                                                                                                                                                                                                                                    |
| 6–8  | Migrants from Pakistan (cut-off <b>19 July 1948</b> ) and persons of Indian origin abroad                                                                                                                                                                                                                                                                   |
| 9    | Taking a foreign citizenship voluntarily → not a citizen under 5–8                                                                                                                                                                                                                                                                                          |
| 11   | <b>Parliament</b> decides acquisition/termination of citizenship — <b>Citizenship Act, 1955</b> lives here                                                                                                                                                                                                                                                  |
| 12   | Who is <b>"State"</b> for Fundamental Rights: Union and State governments and legislatures, local bodies, and <b>other authorities</b> under Gol's control                                                                                                                                                                                                  |
| 13   | A law inconsistent with Fundamental Rights is <b>void</b> to that extent. <b>13(4)</b> (24th Amd): a <b>368 amendment is not "law"</b> under 13 — so it is not automatically void for touching FR. Basic Structure still caps it                                                                                                                            |
| 14   | Equality <b>before</b> law (UK idea) + <b>equal protection</b> of laws (US idea). Reasonable classification allowed; class legislation not                                                                                                                                                                                                                  |
| 15   | No discrimination on <b>religion, race, caste, sex, place of birth</b> . <b>15(4)</b> = special provision for SEBCs/SC/ST (1st Amd, after <i>Champakam</i> ). <b>15(6)</b> = EWS (103rd). <b>Residence</b> is <b>not</b> a 15 ground (that extra ground is in <b>16</b> )                                                                                   |
| 16   | Equality of opportunity in <b>public employment</b> . <b>16(4)</b> backward-class reservation; <b>16(6)</b> EWS. Parliament may add a <b>residence</b> condition                                                                                                                                                                                            |
| 17   | Untouchability abolished; practice is a <b>punishable offence</b> (Protection of Civil Rights Act, 1955)                                                                                                                                                                                                                                                    |
| 18   | No titles except military/academic. Bharat Ratna (भारत रत्न) / Padma (पद्म) are <b>not</b> "titles" in this sense                                                                                                                                                                                                                                           |
| 19   | <b>Six freedoms, citizens only:</b> speech, assembly, association, movement, residence, profession. <b>19(1)(f) property was deleted by the 44th (44वां संशोधन)</b> . Each freedom has <b>reasonable restrictions</b> in 19(2)–(6)                                                                                                                          |
| 20   | Three criminal protections, for citizens <b>and foreigners</b> : (1) no <b>ex post facto</b> criminal law (2) no <b>double jeopardy</b> (3) no <b>self-incrimination</b>                                                                                                                                                                                    |
| 21   | No person shall be deprived of <b>life or personal liberty</b> except according to <b>procedure (प्रक्रिया) established by law</b> (Japanese phrase). <i>Gopalan</i> 1950 = any procedure in a valid Act. <i>Maneka</i> 1978 = that procedure must be <b>fair, just, reasonable</b> . The Constitution still does <b>not</b> use the US words "due process" |
| 21A  | Free and compulsory education for children <b>6–14</b> . Inserted by <b>86th Amendment, 2002</b> ; RTE Act 2009                                                                                                                                                                                                                                             |
| 22   | Ordinary arrest: grounds, lawyer, produce before a magistrate within <b>24 hours</b> . <b>22(3)–(7)</b> = separate regime for <b>preventive detention</b>                                                                                                                                                                                                   |
| 23   | Traffic in human beings, <i>begar</i> (बेगार) and forced labour banned                                                                                                                                                                                                                                                                                      |
| 24   | No child <b>below 14</b> in a factory (फैक्टरी), mine, or other hazardous employment                                                                                                                                                                                                                                                                        |
| 25   | Freedom of conscience — profess, practise, <b>propagate</b> religion (subject to public order, morality, health)                                                                                                                                                                                                                                            |
| 26   | Every religious <b>denomination</b> may manage its own religious affairs and institutions                                                                                                                                                                                                                                                                   |
| 27   | No one can be forced to pay a <b>tax whose proceeds go to a particular religion</b>                                                                                                                                                                                                                                                                         |
| 28   | No religious instruction in a school <b>wholly maintained by the State</b>                                                                                                                                                                                                                                                                                  |
| 29   | Any section of citizens may <b>conserve</b> its language/script (लिपि)/culture. No denial of admission to State-aided institutions on religion/race/caste/language                                                                                                                                                                                          |
| 30   | Religious or linguistic <b>minorities</b> may establish and administer educational institutions                                                                                                                                                                                                                                                             |
| 31A  | Saves laws taking <b>estates</b> (zamindari / agrarian reform) from being struck under Arts. 14 and 19                                                                                                                                                                                                                                                      |
| 31B  | An Act listed in the <b>9th Schedule</b> cannot be void only for violating Fundamental Rights — later limited by <i>I.R. Coelho</i> : entries <b>after 24 Apr 1973</b> still face <b>basic structure</b>                                                                                                                                                    |
| 31C  | A law giving effect to DPSP <b>39(b) and 39(c)</b> (resources for the common good / no concentration of wealth) is saved from Arts. <b>14 and 19</b> . 42nd tried to extend this to <b>all</b> DPSP; <i>Minerva Mills</i> <b>cut it back</b> to 39(b)(c)                                                                                                    |
| 32   | Right to move the <b>Supreme Court</b> for Fundamental Rights — five writs (पाँच प्रकार की रिटें). Ambedkar (अम्बेडकर): <b>heart and soul. Itself a Fundamental Right</b>                                                                                                                                                                                   |
| 33   | Parliament may <b>restrict/abrogate</b> FR of armed forces, police, intelligence, to keep discipline                                                                                                                                                                                                                                                        |
| 34   | Parliament may indemnify acts done when <b>martial law</b> is in force in an area                                                                                                                                                                                                                                                                           |
| 35   | Only <b>Parliament</b> (not States) can make the laws needed for 16(3), 32, 33, 34 and punishments for 17/23                                                                                                                                                                                                                                                |
| 36   | "State" in Part IV (नीति निर्देशक) has the same meaning as Art. <b>12</b>                                                                                                                                                                                                                                                                                   |
| 37   | DPSP are <b>not enforceable</b> in court, but are <b>fundamental in the governance</b> of the country                                                                                                                                                                                                                                                       |
| 38   | Secure a social order for welfare; <b>38(2)</b> (44th) minimise inequalities of income/status                                                                                                                                                                                                                                                               |
| 39   | Livelihood; <b>39(b)</b> ownership of resources distributed for the common good; <b>39(c)</b> no concentration of wealth. These two are the <b>31C</b> pair                                                                                                                                                                                                 |
| 39A  | Equal justice and <b>free legal aid</b> — <b>42nd</b>                                                                                                                                                                                                                                                                                                       |
| 40   | Organise village panchayats — the seed of the <b>73rd</b> / Part IX (भाग IX)                                                                                                                                                                                                                                                                                |
| 43A  | Workers' participation in management — <b>42nd</b>                                                                                                                                                                                                                                                                                                          |

| Art.       | One-liner                                                                                                                         |
|------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>43B</b> | Promotion of <b>cooperative societies</b> — <b>97th</b>                                                                           |
| <b>44</b>  | State shall endeavour to secure a <b>Uniform Civil Code</b>                                                                       |
| <b>45</b>  | After 86th: early childhood care and education for children <b>below 6</b> (6–14 moved to 21A)                                    |
| <b>48A</b> | Protect and improve the <b>environment</b> (पर्यावरण); safeguard forests and wildlife — <b>42nd</b>                               |
| <b>50</b>  | Separate the <b>judiciary from the executive</b> in the State's public services                                                   |
| <b>51</b>  | International peace, just relations, respect for international law, settlement of disputes by arbitration                         |
| <b>51A</b> | <b>11</b> Fundamental Duties. <b>42nd</b> added <b>10</b> ; <b>51A(k)</b> (parent to educate the child 6–14) added by <b>86th</b> |

## Union / State organs, local bodies, Centre–State, finance, services

| Art.           | One-liner                                                                                                                                                                                                                                           |
|----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>52</b>      | There shall be a President of India                                                                                                                                                                                                                 |
| <b>53</b>      | Union <b>executive power</b> is vested in the President                                                                                                                                                                                             |
| <b>54</b>      | President is elected by <b>elected MPs of both Houses + elected MLAs of States</b> (and of Delhi & Puducherry). <b>Nominated</b> members do <b>not</b> vote. This is <b>not</b> how the Vice-President is elected                                   |
| <b>55</b>      | Manner: proportional representation by <b>single transferable vote</b> ; secret ballot                                                                                                                                                              |
| <b>60</b>      | President's oath — administered by the <b>Chief Justice of India</b> — form is in <b>Art. 60 itself, not the 3rd Schedule</b>                                                                                                                       |
| <b>61</b>      | Impeachment only for <b>violation of the Constitution</b> . Charge by either House; passed by <b>two-thirds (ते-भाग)</b> of the <b>total membership</b> (सदन की कुल सदस्य संख्या का) of that House; the other House investigates                    |
| <b>63–64</b>   | There shall be a Vice-President; he is <b>ex-officio Chairman of the Rajya Sabha</b>                                                                                                                                                                |
| <b>66</b>      | VP is elected by members of <b>both Houses of Parliament</b> (elected <b>and nominated</b> ). <b>State MLAs do not vote</b> — that is the 54/66 trap                                                                                                |
| <b>69</b>      | VP's oath — before the <b>President</b> — <b>not</b> in the 3rd Schedule                                                                                                                                                                            |
| <b>72</b>      | President may pardon / commute etc. for <b>Union-law</b> offences, <b>court-martial</b> , and <b>every death sentence</b>                                                                                                                           |
| <b>74</b>      | President acts on the aid and advice of the Council of Ministers. <b>44th Amendment</b> (44वाँ संशोधन): he may send the advice back <b>once</b> for reconsideration; then he must act                                                               |
| <b>75</b>      | PM appointed by the President; CoM <b>collectively responsible to the Lok Sabha</b> (लोकसभा). Size cap <b>15% of LS</b> (91st Amd)                                                                                                                  |
| <b>76</b>      | <b>Attorney-General of India</b> — qualified to be an SC judge; holds office during the <b>pleasure</b> of the President; may speak in Parliament but <b>not vote</b> ; salary is <b>not</b> charged on the CFI                                     |
| <b>79</b>      | Parliament = <b>President + Lok Sabha + Rajya Sabha</b>                                                                                                                                                                                             |
| <b>80</b>      | Rajya Sabha: maximum <b>250</b> (238 States/UTs + <b>12 nominated</b> by the President — literature, science, art, social service). The 12 are a <b>Union</b> nomination, not a State quota                                                         |
| <b>81</b>      | Lok Sabha: maximum <b>550</b> (530 States + 20 UTs). Anglo-Indian nomination of up to 2 ended with the <b>104th</b> (25 Jan 2020)                                                                                                                   |
| <b>83</b>      | RS is a continuing House; <b>1/3 retire every 2 years</b> . LS = <b>5 years</b> unless dissolved. During a National Emergency (राष्ट्रीय आपात), LS may be extended <b>one year at a time (83(2))</b> , not beyond 6 months after the Emergency ends |
| <b>85</b>      | President summons, prorogues, dissolves LS. Maximum <b>6 months</b> between two sessions                                                                                                                                                            |
| <b>108</b>     | <b>Joint sitting</b> (संयुक्त बैठक) only for an <b>ordinary Bill</b> on which the Houses disagree. <b>Speaker</b> presides. <b>Never</b> for a Money Bill or a 368 Amendment Bill. Actually used only <b>three</b> times (1961, 1978, 2002)         |
| <b>109</b>     | <b>Procedure</b> (प्रक्रिया) for a Money Bill: introduced in <b>LS only</b> ; RS has <b>14 days</b> to return recommendations; LS may accept or reject them                                                                                         |
| <b>110</b>     | <b>Definition</b> of a Money Bill (tax, borrowing, Consolidated Fund, charged expenditure (भारित)...). <b>Speaker's certificate is final</b> . Do not swap 109 and 110                                                                              |
| <b>112</b>     | Annual Financial Statement (वार्षिक वित्तीय विवरण) — the Constitution's name for the <b>Union Budget</b>                                                                                                                                            |
| <b>123</b>     | President's <b>Ordinance</b> when <b>both Houses are not in session (पेंगु सत्र)</b> . Same force as an Act; laid before Parliament; dies <b>6 weeks</b> after reassembly unless approved                                                           |
| <b>124</b>     | Supreme Court. Judge retires at <b>65</b> . Removed by the same special-majority address as impeachment ( <b>124(4)</b> )                                                                                                                           |
| <b>131</b>     | SC <b>original</b> jurisdiction: Centre vs State(s), State vs State                                                                                                                                                                                 |
| <b>136</b>     | SC may grant <b>special leave to appeal</b> from any court/tribunal (except armed-forces courts)                                                                                                                                                    |
| <b>141</b>     | Law declared by the Supreme Court is binding on <b>all courts</b> in India                                                                                                                                                                          |
| <b>143</b>     | President may ask the SC for an <b>advisory</b> opinion — the opinion is <b>not binding</b>                                                                                                                                                         |
| <b>148</b>     | <b>CAG</b> appointed by the President; 6 years or age <b>65</b> ; removed like an SC judge; <b>no further office</b> under Union or State                                                                                                           |
| <b>151</b>     | CAG's Union reports go to the <b>President</b> (laid in Parliament); State reports go to the <b>Governor</b> (laid in the State legislature)                                                                                                        |
| <b>153</b>     | There shall be a Governor; <b>one person may be Governor of two or more States</b>                                                                                                                                                                  |
| <b>155–156</b> | Governor appointed by the <b>President</b> ; term <b>5 years</b> ; holds office during the <b>pleasure of the President</b>                                                                                                                         |
| <b>159</b>     | Governor's oath — before the <b>Chief Justice of that State's High Court</b> (not the CJI) — form in <b>Art. 159, not the 3rd Schedule</b>                                                                                                          |
| <b>161</b>     | Governor's pardon: only for offences against <b>State law</b> . <b>No</b> court-martial. Death sentence: he may commute/remit; <b>pardon of death</b> sits with the President under 72                                                              |
| <b>163</b>     | State CoM aids and advises the Governor, except where the Constitution gives the Governor <b>discretion</b>                                                                                                                                         |
| <b>164</b>     | CM appointed by the Governor; CoM collectively responsible to the <b>Legislative Assembly</b> . Size cap <b>15% of the LA</b> (floor <b>12</b> ) — 91st Amd                                                                                         |
| <b>165</b>     | <b>Advocate-General of the State</b> — qualified to be an HC judge; pleasure of the <b>Governor</b> . This is <b>not</b> the Election Commission (निर्वाचन आयोग) (that is 324)                                                                      |
| <b>168</b>     | Every State has a Legislature; some are bicameral (Assembly + Council)                                                                                                                                                                              |
| <b>169</b>     | Parliament may <b>create or abolish</b> a Legislative Council if the State Assembly so resolves (special majority). A Council is <b>abolished</b> , never "dissolved"                                                                               |
| <b>200</b>     | Governor may assent to a State Bill, withhold, return (except Money Bill), or <b>reserve it for the President</b>                                                                                                                                   |
| <b>201</b>     | On a reserved Bill the President may assent, withhold, or direct a return                                                                                                                                                                           |
| <b>213</b>     | Governor's Ordinance when the State Legislature is <b>not in session</b> (parallel to 123)                                                                                                                                                          |
| <b>214</b>     | A High Court for each State (a common HC for two or more States is allowed)                                                                                                                                                                         |
| <b>217</b>     | HC judge appointed by the President; retires at <b>62</b> (SC is 65)                                                                                                                                                                                |
| <b>226</b>     | High Court writs for Fundamental Rights <b>and for any other purpose</b> — <b>wider than Art. 32</b>                                                                                                                                                |
| <b>239</b>     | A UT is administered by the President through an <b>Administrator</b>                                                                                                                                                                               |
| <b>239AA</b>   | NCT <b>Delhi</b> Assembly and CoM ( <b>69th Amd, 1991</b> ). <b>Public order, police and land</b> stay with the Centre                                                                                                                              |
| <b>243A</b>    | <b>Gram Sabha</b> (ग्राम सभा) = persons on that village's <b>electoral roll</b> , exercising such powers as the State law gives                                                                                                                     |

| Art.      | One-liner                                                                                                                                                                                                                                                                               |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 243D      | Reservation in Panchayats: SC/ST in proportion to population (जनसंख्या); women <b>not less than one-third</b> (many States, including UP, have raised this to <b>50% by State law</b> )                                                                                                 |
| 243E      | Panchayat term <b>5 years</b> ; if dissolved, election within <b>6 months</b>                                                                                                                                                                                                           |
| 243K      | <b>State Election Commission</b> — Panchayat rolls and elections. Governor appoints; removed like a <b>High Court judge</b> . <b>Not</b> the ECI (324)                                                                                                                                  |
| 243ZA     | The <b>same</b> SEC conducts <b>municipal</b> elections                                                                                                                                                                                                                                 |
| 243ZD     | <b>District Planning Committee</b> in every district; at least <b>4/5</b> of members elected from PRI + ULB members                                                                                                                                                                     |
| 243ZE     | <b>Metropolitan Planning Committee</b> for a million-plus area; at least <b>2/3</b> elected                                                                                                                                                                                             |
| 244       | <b>244(1)</b> = Fifth Schedule (5वीं अनुसूची) (Scheduled Areas). <b>244(2)</b> = Sixth Schedule (6वीं अनुसूची) (AMTM tribal areas)                                                                                                                                                      |
| 245       | Parliament may make laws for the whole or any part of India; a State Legislature for that State                                                                                                                                                                                         |
| 246       | Subject-matter: <b>7th Schedule</b> — List I Union, List II State, List III Concurrent. In a clash, Union law prevails (with 254 nuances)                                                                                                                                               |
| 248       | <b>Residuary</b> (अवशिष्ट) matters (not in State or Concurrent Lists) = <b>Parliament</b> . Same idea as Union List <b>Entry 97</b> . Borrowed from <b>Canada</b> , not the USA (where residuary is with the States)                                                                    |
| 249       | If <b>Rajya Sabha</b> resolves by <b>2/3 of members present and voting</b> (गणपूर्ति) that a State-List matter is in national interest, Parliament may legislate on it for <b>one year</b> (renewable)                                                                                  |
| 250       | During a <b>352</b> Emergency, Parliament may legislate on the <b>State List</b> (राज्य सूची) for the emergency area; such laws lapse <b>six months</b> after the Emergency ends                                                                                                        |
| 252       | If <b>two or more</b> State Legislatures pass resolutions, Parliament may legislate for those States on a State-List matter; other States may adopt later                                                                                                                               |
| 253       | Parliament may make any law to implement a <b>treaty / international agreement</b> — even on a State-List subject                                                                                                                                                                       |
| 254       | Concurrent List clash: <b>Union law prevails</b> . A State law reserved for and <b>assented to by the President</b> can operate in that State until Parliament legislates again                                                                                                         |
| 262       | Parliament may provide for <b>inter-State river</b> dispute adjudication and may <b>bar</b> the Supreme Court and other courts                                                                                                                                                          |
| 263       | President <b>may</b> establish an <b>Inter-State Council</b> . Actually set up by Presidential Order on <b>28 May 1990</b> , on <b>Sarkaria's</b> recommendation — <b>not Punchhi</b> (पुंछी आयोग)'s                                                                                    |
| 265       | No tax except by <b>authority of law</b>                                                                                                                                                                                                                                                |
| 266       | <b>266(1) Consolidated Fund</b> of India / of each State (revenues, loans). <b>266(2) Public Account</b> (लोक लेखा) (provident funds, deposits — not voted as tax)                                                                                                                      |
| 267       | <b>Contingency Fund</b> (आकस्मिकता निधि) — advances pending authorisation of Parliament/Legislature                                                                                                                                                                                     |
| 280       | <b>Finance Commission</b> (वित्त आयोग): President constitutes every <b>5th year</b> (or earlier). Chair + <b>4</b> members. Recommends how to share Union taxes with States. Report goes to the <b>President</b> , not to NITI (नीति) Aayog (नीति आयोग). First chair: <b>K.C. Neogy</b> |
| 300A      | No person shall be deprived of <b>property</b> save by authority of law. A <b>legal / constitutional right</b> , <b>not</b> a Fundamental Right. <b>44th</b> deleted old Art. 31 and 19(1)(f)                                                                                           |
| 310       | Civil servants hold office during the <b>pleasure</b> of the President / Governor                                                                                                                                                                                                       |
| 311       | Pleasure is limited: no dismissal by an authority <b>subordinate</b> to the appointing authority; reasonable opportunity of hearing (with listed exceptions)                                                                                                                            |
| 312       | <b>All-India Services</b> (IAS, IPS, IFoS). Rajya Sabha must resolve by <b>2/3 present and voting</b> ; then Parliament may create a new AIS                                                                                                                                            |
| 315       | UPSC for the Union; SPSC for a State; a <b>Joint</b> PSC for two or more States if those States request and <b>Parliament</b> so provides                                                                                                                                               |
| 316       | UPSC: President appoints. SPSC: <b>Governor</b> appoints. Term <b>6 years or 65</b> (UPSC) / <b>6 years or 62</b> (SPSC)                                                                                                                                                                |
| 317       | A PSC member is <b>removed by the President</b> (even an SPSC member) after a Supreme Court inquiry on misbehaviour                                                                                                                                                                     |
| 321       | Extra functions may be given to a PSC by the <b>Legislature</b> of that State (or Parliament for UPSC). <b>2021 fact</b> : UPPSC's functions are extended by the <b>UP Legislature</b> , not the President                                                                              |
| 323A      | Parliament may set up <b>administrative tribunals</b> (CAT/SAT) for service disputes — Part <b>XIVA</b>                                                                                                                                                                                 |
| 323B      | Tribunals for other listed matters (tax, land reforms, elections to the Legislature, etc.)                                                                                                                                                                                              |
| 324       | <b>Election Commission</b> (निर्वाचन आयोग) — superintendence of elections to <b>Parliament, State Legislatures, President and Vice-President</b> . <b>Not</b> Panchayat/ULB polls. CEC removed like an <b>SC judge</b> ; other ECs only on the <b>CEC's recommendation</b>              |
| 325       | One general <b>electoral roll</b> ; no special roll on religion, race, caste or sex                                                                                                                                                                                                     |
| 326       | LS and Assembly elections on <b>adult suffrage</b> . Citizen, <b>18 years (61st Amd, in force 28 Mar 1989)</b> ; originally 21)                                                                                                                                                         |
| 327       | Parliament may make law on LS/LA elections — <b>RPA 1950</b> (rolls) and <b>RPA 1951</b> (conduct) live here                                                                                                                                                                            |
| 329       | Courts shall not interfere in electoral matters except by an <b>election petition</b> as provided by law                                                                                                                                                                                |
| 330 / 332 | SC/ST reserved seats in the <b>Lok Sabha</b> (लोकसभा) / <b>State Assembly</b> , in proportion to population                                                                                                                                                                             |
| 335       | Claims of SC/ST to services, consistent with efficiency of administration                                                                                                                                                                                                               |
| 338       | <b>National Commission for Scheduled Castes</b> (constitutional). SC list = Art. <b>341</b>                                                                                                                                                                                             |
| 338A      | <b>National Commission for Scheduled Tribes</b> (89th Amd, 2003). ST list = Art. <b>342</b>                                                                                                                                                                                             |
| 338B      | <b>National Commission for Backward Classes</b> as a <b>standing constitutional</b> body ( <b>102nd Amd, 2018</b> ). Central SEBC list = Art. <b>342A</b> . This is <b>not</b> Art. <b>340</b>                                                                                          |
| 340       | President <b>may</b> appoint an <b>ad hoc</b> commission to <b>investigate</b> the condition of backward classes (Kalelkar 1953, Mandal 1979). It is <b>not</b> the standing NCBC                                                                                                       |
| 343       | Official language of the <b>Union</b> = <b>Hindi in Devanagari</b> script; international form of Indian numerals                                                                                                                                                                        |
| 348       | Authoritative language of the Supreme Court, High Courts and Bills/Acts is <b>English</b> , unless Parliament / the Governor (with the President's consent) provides otherwise                                                                                                          |
| 351       | Union's <b>duty to promote Hindi</b> as a medium of the composite culture of India                                                                                                                                                                                                      |
| 365       | If a State fails to comply with Union <b>directions</b> , the President <b>may</b> hold that the government of the State cannot be carried on — a ground for <b>356</b>                                                                                                                 |
| 368       | Parliament's power and <b>procedure</b> to amend the Constitution. Special majority; some federal clauses also need <b>half the State Legislatures</b> . <i>Kesavananda</i> : this power <b>cannot destroy basic structure</b> . <b>No joint sitting, no Ordinance</b>                  |
| 370       | Temporary provisions for Jammu & Kashmir. Made <b>inoperative</b> on <b>5 Aug 2019</b> ; J&K and Ladakh (लद्दाख) became UTs                                                                                                                                                             |
| 393       | Short title: "the Constitution of India"                                                                                                                                                                                                                                                |
| 394       | Some articles in force from <b>26 Nov 1949</b> ; the rest from <b>26 Jan 1950</b>                                                                                                                                                                                                       |
| 395       | Repeals the Indian Independence Act (अधिनियम), 1947 and the Government of India Act, 1935 (as specified)                                                                                                                                                                                |

#### Art. 371–371J — which State (UP has none)

| Art.             | State / fact                                                                                                      |
|------------------|-------------------------------------------------------------------------------------------------------------------|
| 371              | Maharashtra and Gujarat — development boards (Vidarbha, Marathwada, Saurashtra, Kutch...)                         |
| 371A (अनु. 371A) | <b>Nagaland</b> — Parliament's Act on Naga (नागा) religion/custom/land applies only if the <b>Assembly</b> agrees |
| 371B             | <b>Assam</b> — committee of MLAs from tribal areas                                                                |
| 371C             | <b>Manipur</b> — Hill Areas committee; Governor's responsibility                                                  |

| Art.             | State / fact                                                                          |
|------------------|---------------------------------------------------------------------------------------|
| 371D             | Andhra Pradesh and Telangana — equitable public employment and education              |
| 371E             | Andhra Pradesh — Parliament may establish a Central University                        |
| 371F             | <b>Sikkim</b> (statehood 1975)                                                        |
| 371G             | <b>Mizoram</b> — parallel to 371A for Mizo (मिज़ो) custom/land                        |
| 371H             | <b>Arunachal Pradesh</b> — Governor’s special responsibility for <b>law and order</b> |
| 371I (अनु. 371I) | <b>Goa</b> (गोवा) — Assembly <b>not less than 30</b> members                          |
| 371J             | <b>Karnataka</b> — Hyderabad-Karnataka / <b>Kalyana-Karnataka</b> development board   |

### Emergency Articles

| Art.  | Fact                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|-------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 352   | <b>National Emergency.</b> Grounds today: war, external aggression, or <b>armed rebellion</b> (44th dropped “internal disturbance” after 1975). President acts only on the <b>written</b> recommendation of the <b>Union Cabinet</b> (not the PM alone). Each House must approve within <b>1 month</b> by <b>special majority</b> = majority of <b>total membership</b> (सदन की कुल सदस्य संख्या का) + <b>2/3 of members present and voting</b> . Then it runs <b>6 months</b> at a time |
| 353   | Union may give States executive <b>directions</b> ; Parliament’s power extends while 352 is on                                                                                                                                                                                                                                                                                                                                                                                           |
| 354   | President may modify <b>268–279</b> revenue distribution while 352 is on                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 355   | Union’s <b>duty</b> to protect States and ensure constitutional government (use before 356 — Punchhi)                                                                                                                                                                                                                                                                                                                                                                                    |
| 356   | President’s Rule — constitutional machinery failed. Both Houses, <b>2 months, simple majority, 6 months</b> ; max <b>3 years</b> . First: <b>Punjab 1951</b>                                                                                                                                                                                                                                                                                                                             |
| 357   | Parliament / President legislates for the State under 356                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 358   | During a 352 Emergency on <b>war or external aggression</b> (not armed rebellion), Art. <b>19</b> is <b>automatically</b> suspended — no separate Presidential order needed. When the Emergency ends, 19 revives                                                                                                                                                                                                                                                                         |
| 359   | The President <b>may by order</b> suspend the right to <b>move a court</b> to enforce named Fundamental Rights, during any National Emergency. After the 44th he <b>cannot</b> name Arts. <b>20 or 21</b> . So: 358 = Art. 19 goes to sleep by itself (war/aggression only). 359 = other FRs’ <b>enforcement</b> can be frozen by order, except 20 and 21                                                                                                                                |
| 360   | Financial Emergency (वित्तीय आपात) — threat to financial stability/credit. Both Houses, <b>2 months</b> , simple majority. Until revoked. <b>Never imposed</b> . Can cut <b>even judges’</b> salaries                                                                                                                                                                                                                                                                                    |
| 83(2) | LS life + <b>1 year</b> at a time during 352; not beyond <b>6 months</b> after it ends                                                                                                                                                                                                                                                                                                                                                                                                   |
| 250   | Parliament on <b>State List</b> during 352; such laws lapse <b>6 months</b> after                                                                                                                                                                                                                                                                                                                                                                                                        |
| 365   | Disobeying Union directions → may treat 356 as attracted                                                                                                                                                                                                                                                                                                                                                                                                                                 |

Used 352:1962 (China) · 1971 (Pakistan) · 1975–77 (internal disturbance). 360: never.

### Election Articles

| Art.        | Fact                                                                                                                     |
|-------------|--------------------------------------------------------------------------------------------------------------------------|
| 54–55       | President — elected MPs + elected MLAs; STV; nominated <b>out</b>                                                        |
| 66          | VP — <b>both Houses</b> including nominated; <b>no State MLAs</b>                                                        |
| 80 / 81     | RS composition · LS composition                                                                                          |
| 324         | ECI — superintendence of President, VP, Parliament, State <b>Legislature</b> elections. CEC removed <b>like SC judge</b> |
| 325         | One general electoral roll — no special roll on religion/race/caste/sex                                                  |
| 326         | LS / LA on adult suffrage; citizen, <b>18 (61st</b> , in force <b>28 Mar 1989</b> ; was 21)                              |
| 327         | Parliament may make election law for LS/LA (RPA 1950/1951 live here)                                                     |
| 328         | State Legislature may fill gaps if Parliament has not                                                                    |
| 329         | Courts barred; election of a member only by <b>election petition</b>                                                     |
| 329A        | 39th Amd’s election-of-PM shield — <b>struck</b> in <i>Indira Gandhi (राज्य)</i> 1975; later repealed                    |
| 330 / 332   | SC/ST reserved seats LS / LA                                                                                             |
| 243K        | SEC — Panchayat polls; Governor appoints; removed like <b>HC judge</b>                                                   |
| 243ZA       | Same SEC — municipal polls                                                                                               |
| 243D / 243T | Reservation in PRIs / ULBs                                                                                               |

Trap: Panchayat polls = **324. No — 243K, SEC**. Trap: VP college = same as President. **No MLAs**.

### Writs

| Writ                                | Literal                                     | When                                                                                                          |
|-------------------------------------|---------------------------------------------|---------------------------------------------------------------------------------------------------------------|
| <b>Habeas Corpus</b>                | to have the body                            | Illegal detention; <b>public or private</b> respondent                                                        |
| <b>Mandamus</b> (परमादेश)           | we command                                  | Compel a <b>public duty</b> . <b>Not</b> vs President/Governor personally, private person, or a mere contract |
| <b>Prohibition</b> (प्रतिषेध)       | to forbid                                   | Lower <b>judicial / quasi-judicial</b> body exceeding jurisdiction — issued <b>before</b> the order           |
| <b>Certiorari</b> (उल्लेखण)         | to be certified                             | <b>Quash</b> an order already made — <b>after</b>                                                             |
| <b>Quo Warranto</b> (अधिकार-पूच्छा) | by what authority                           | A person in a <b>substantive public office</b> created by law; any person may ask                             |
|                                     | <b>Art. 32</b>                              | <b>Art. 226</b>                                                                                               |
| –                                   | -----                                       | -----                                                                                                         |
| Court                               | Supreme Court                               | High Court                                                                                                    |
| Scope                               | <b>FR only</b>                              | FR + <b>any other purpose</b> (wider)                                                                         |
| Itself a FR?                        | <b>Yes</b>                                  | No                                                                                                            |
| During 359                          | Enforcement can be suspended (except 20/21) | Same Presidential order can reach HC too                                                                      |

Constitutional Amendments — year one-liners

| Amd         | Year                      | One-liner                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|-------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1st         | 1951                      | Nehru (नेहरू)'s reply to <i>Champakam</i> (caste quotas vs 15/29) and zamindari strikes. Inserted <b>15(4)</b> (SEBC/SC/ST special provision), widened <b>19(2)/(6)</b> , added <b>31A/31B</b> and the <b>9th Schedule</b> (first <b>13</b> Acts). <i>Shankari Prasad</i> upheld it                                                                                                                                                                                        |
| 7th         | 1956                      | <b>States Reorganisation</b> (in force <b>1 Nov 1956</b> ): killed Part A (५/B/C/D States; picture then <b>14 States + 6 UTs</b> . Also <b>350A</b> (अनु. 350A) (mother-tongue at primary stage) and <b>350B</b> (अनु. 350B) (one Special Officer for linguistic minorities for all India). <b>350B is 7th, not 9th</b>                                                                                                                                                    |
| 9th         | 1960                      | India–Pakistan <b>Berubari</b> boundary transfer. This is an <b>amendment number</b> , not the <b>9th Schedule</b>                                                                                                                                                                                                                                                                                                                                                         |
| 21st        | 1967                      | <b>Sindhi</b> added to the 8th Schedule (14 → 15 languages)                                                                                                                                                                                                                                                                                                                                                                                                                |
| 24th        | 1971                      | Parliament's answer to <i>Golaknath</i> . Inserted <b>13(4)</b> : a 368 amendment is <b>not</b> "law" under 13. <b>368(1)</b> : Parliament <b>may</b> amend any provision. President <b>shall</b> assent to a 368 Bill (no pocket veto)                                                                                                                                                                                                                                    |
| 25th        | 1971                      | After <i>R.C. Cooper</i> (Bank Nationalisation): "compensation" in old Art. 31 became <b>"amount"</b> . Born <b>31C</b> for laws giving effect to <b>39(b) and 39(c)</b>                                                                                                                                                                                                                                                                                                   |
| 26th        | 1971                      | <b>Privy purses</b> of former princes abolished (Art. <b>363A</b> ). Not "26 January"                                                                                                                                                                                                                                                                                                                                                                                      |
| 35th / 36th | 1974 / 1975               | 35th = Sikkim as an <b>"associate State"</b> (old 10th Schedule). <b>36th</b> = Sikkim full statehood, <b>22nd State, 26 Apr 1975</b> , Art. <b>371F</b> ; that old 10th Schedule repealed                                                                                                                                                                                                                                                                                 |
| 38th / 39th | 1975                      | Emergency-era insulation of the President's satisfaction; <b>39th</b> put the PM's election beyond judicial review via <b>329A</b> — <i>Indira Gandhi struck 329A(4)(5)</i>                                                                                                                                                                                                                                                                                                |
| 42nd        | 1976                      | Called the <b>Mini-Constitution</b> (Swaran Singh). Preamble: added <b>Socialist, Secular</b> , and "unity <b>and integrity</b> ". Added Fundamental Duties ( <b>51A</b> , then 10). Added DPSP <b>39A, 43A, 48A</b> . Added Part <b>XIVA</b> (tribunals). Stretched <b>31C</b> to all DPSP ( <i>Minerva</i> struck that stretch). Inserted <b>368(4)(5)</b> "amendment cannot be questioned in court" ( <i>Minerva</i> struck those too). Year cue <b>1976</b> , not 1978 |
| 44th        | 1978                      | The Janata <b>undo</b> of the Emergency. "Internal disturbance" → <b>armed rebellion</b> . National Emergency only on <b>written Cabinet</b> advice. Arts. <b>20 and 21</b> can no longer be suspended. Property ceases to be a FR → <b>300A</b> . Lok Sabha can force-revoke a 352 proclamation                                                                                                                                                                           |
| 52nd        | 1985                      | <b>10th Schedule</b> anti-defection                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 61st        | 1988 (w.e.f. 28 Mar 1989) | Voting age <b>21</b> → <b>18</b>                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 69th        | 1991                      | NCT <b>Delhi</b> (239AA)                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 71st        | 1992                      | Konkani, Manipuri, Nepali                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 73rd / 74th | 1992 (in force 1993)      | Part IX / IXA · 11th=29 · 12th=18                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 86th        | 2002                      | <b>21A</b> + 51A(k) + 45 recast                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 89th        | 2003                      | NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) split (338A)                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 91st        | 2003                      | CoM <b>15%</b> ; defection merger = <b>2/3</b>                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 92nd        | 2003                      | Bodo, Dogri, Maithili, Santhali                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 96th        | 2011                      | Oriya → <b>Odia</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 97th        | 2011                      | Co-ops, Part <b>IXB</b> , 43B — State co-ops later clipped ( <i>Rajendra N. Shah</i> )                                                                                                                                                                                                                                                                                                                                                                                     |
| 99th        | 2014                      | <b>NJAC</b> — struck <b>16 Oct 2015</b>                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 101st       | 2016                      | GST; levy from <b>1 Jul 2017; 279A</b>                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 102nd       | 2018                      | NCBC <b>338B</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 103rd       | 2019                      | <b>EWS 10%</b> (15(6)/16(6)) — upheld <i>Janhit Abhiyan</i>                                                                                                                                                                                                                                                                                                                                                                                                                |
| 104th       | 2019 (effect 25 Jan 2020) | Anglo-Indian LS/LA nomination <b>ends</b> ; SC/ST reservation in Houses <b>extended</b>                                                                                                                                                                                                                                                                                                                                                                                    |
| 105th       | 2021                      | Restores State power to identify <b>SEBCs</b>                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 106th       | 2023                      | Women <b>33%</b> in LS/LA — <b>after delimitation</b> , 15 years                                                                                                                                                                                                                                                                                                                                                                                                           |

**Basic-structure ladder (2024/2021):** *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → **24th** 1971 → *Kesavananda* **24 Apr 1973** 13-judge **7:6** → *Indira Gandhi* 1975 → *Minerva* 1980.

Important Constitutional Timelines

| Date        | Fact                                                                                                    |
|-------------|---------------------------------------------------------------------------------------------------------|
| 1773        | Regulating Act (रेगुलेटिंग एक्ट) — GG of <b>Bengal</b> (Hastings (हेस्टिंग्स)); SC Calcutta <b>1774</b> |
| 1784        | Pitt — Board of Control                                                                                 |
| 1833        | GG of <b>India</b> ; Law Member (Macaulay)                                                              |
| 1858        | Crown; GG also Viceroy (वायसराय)                                                                        |
| 1861        | Indian Councils + Indian High Courts Act (Allahabad (इलाहाबाद) HC <b>1866</b> )                         |
| 1892        | Budget discussion; questions                                                                            |
| 1909        | Morley-Minto (मॉर्ले-मिंटो) — <b>separate electorates</b>                                               |
| 1919        | Montagu-Chelmsford (मॉटेग्यू-चेम्सफोर्ड) — <b>dyarchy</b> (द्वैध शासन) in provinces; Chamber of Princes |
| 1935        | Provincial autonomy; federal scheme (never fully); RBI; Federal Court <b>1937</b>                       |
| 9 Dec 1946  | Constituent Assembly (संविधान सभा) first sitting (Sinha; later Rajendra Prasad)                         |
| 29 Aug 1947 | Drafting Committee — <b>Ambedkar</b> (अम्बेडकर) Chair; adviser <b>B.N. Rau</b>                          |
| 26 Nov 1949 | Adopted (अंगीकृत). Some Arts. in force the same day (5–9, 60, 324, 366, 367, 393...)                    |
| 26 Jan 1950 | Constitution in force. Republic Day (Purna Swaraj (पूर्ण स्वराज) date <b>1930</b> )                     |
| 18 Jun 1951 | <b>1st Amendment</b>                                                                                    |
| 1951–52     | First general election                                                                                  |
| 1 Nov 1956  | SRC (आयोग) / <b>7th Amd</b>                                                                             |

| Date                      | Fact                                                                            |
|---------------------------|---------------------------------------------------------------------------------|
| 1962 / 1971 / 25 Jun 1975 | Three National Emergencies; last revoked <b>21 Mar 1977</b>                     |
| 24 Apr 1973               | <i>Kesavananda</i> — basic structure; 9th Sch. review cut-off ( <i>Coelho</i> ) |
| 1976 / 1978               | <b>42nd / 44th</b>                                                              |
| 1985                      | 52nd — 10th Schedule                                                            |
| 28 Mar 1989               | Voting age 18                                                                   |
| 24 Apr 1993 / 1 Jun 1993  | 73rd / 74th in force                                                            |
| 9 Nov 2000                | Uttarakhand (उत्तराखण्ड) (not 1 Nov — that is Chhattisgarh)                     |
| 2002                      | 86th — 21A                                                                      |
| 1 Jul 2017                | GST levy                                                                        |
| 5 Aug 2019                | Art. 370 inoperative; J&K + Ladakh UTs                                          |
| 16 Oct 2015               | NJAC struck                                                                     |
| 2023                      | 106th women reservation (not yet operational)                                   |

### Constitutional Doctrines

| Doctrine                      | One-liner                                                                                                                                                                                                                                                                                  |
|-------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Basic Structure               | <i>Kesavananda</i> 24 Apr <b>1973</b> , 13-judge <b>7:6</b> — Parliament may amend any article; <b>cannot</b> destroy basic structure                                                                                                                                                      |
| Eclipse                       | A <b>pre-1950</b> law that clashes with a Fundamental Right is not wiped out — it goes <b>dormant</b> . If the FR is later amended so the clash disappears, the old law <b>wakes up</b> ( <i>Bhikaji Narain</i> ). Post-Constitution laws that clash are simply <b>void</b> , not eclipsed |
| Severability                  | If only <b>one clause</b> of an Act is unconstitutional, that clause is struck and the rest of the Act <b>survives</b> if it can stand alone ( <i>R.M.D. Chamarbaugwalla</i> )                                                                                                             |
| Waiver                        | You <b>cannot</b> sign away your Fundamental Rights. They exist for public interest, not as a private bargain ( <i>Basheshar Nath</i> )                                                                                                                                                    |
| Pith and substance            | To decide whether a law belongs to the Union List or the State List, look at its <b>true character</b> , not at a stray incidental overlap with the other list                                                                                                                             |
| Colourable legislation        | If the Constitution forbids the legislature to do X, it cannot do X by dressing it up as Y. "What you cannot do <b>directly</b> , you cannot do <b>indirectly</b> "                                                                                                                        |
| Territorial nexus             | A State tax may reach an extra-territorial fact if a real <b>nexus</b> exists                                                                                                                                                                                                              |
| Repugnancy (254)              | On Concurrent List, <b>Union law prevails</b> (President-assented State law can operate in that State until Parliament re-enters)                                                                                                                                                          |
| Occupied field                | Once Union occupies a Concurrent field, State law must not collide                                                                                                                                                                                                                         |
| Harmonious construction       | Read FR and DPSP so both live ( <i>Minerva</i> — 31C cannot swallow 14/19 for <i>all</i> DPSP)                                                                                                                                                                                             |
| Incidental / ancillary        | A list-entry carries power reasonably needed to make it work                                                                                                                                                                                                                               |
| Prospective overruling        | <i>Golaknath</i> — the 1967 rule applied <b>forward</b> , old amendments stood                                                                                                                                                                                                             |
| Pleasure (310)                | Union/State civil servants hold office during pleasure — <b>subject to 311</b>                                                                                                                                                                                                             |
| Procedure established by law  | Art. 21's words (Japan). <i>Gopalan</i> = any valid procedure; <i>Maneka</i> = fair, just, reasonable. Still <b>not</b> the US due-process clause                                                                                                                                          |
| Proportionality               | Restriction on 19/21 must be suitable, necessary, balanced                                                                                                                                                                                                                                 |
| Essential religious practices | <i>Shirur Mutt</i> — what is <b>essential</b> to a religion is protected; secular activity is regulable                                                                                                                                                                                    |
| Constitutional morality       | <i>Navtej</i> line — Constitutional values bind even a popular majority                                                                                                                                                                                                                    |
| Rule of Law                   | Dicey: no arbitrary power · equality before law · Constitution (in India, <i>result</i> of rights) as the source. <i>Kesavananda</i> listed it in basic structure                                                                                                                          |
| Separation of powers          | Not the US wall. Functions are distinct; <i>Kesavananda</i> still treats the doctrine as basic                                                                                                                                                                                             |
| Checks and balances           | Each organ can restrain the others (review, no-confidence (अविश्वास प्रस्ताव), impeachment, Ordinance limits)                                                                                                                                                                              |
| Stare decisis                 | Art. <b>141</b> — SC declares the law                                                                                                                                                                                                                                                      |
| Reading (रीडिंग) down         | Save a statute by narrowing it rather than striking it                                                                                                                                                                                                                                     |
| Manifest arbitrariness        | A law can fail Art. 14 for being arbitrary ( <i>Shayara Bano</i> / triple talaq line)                                                                                                                                                                                                      |

### Oaths & Affirmations

| Who                                   | Form lives in                                             | Swears before                                                             |
|---------------------------------------|-----------------------------------------------------------|---------------------------------------------------------------------------|
| President                             | Art. <b>60</b> — <b>not</b> 3rd Sch.                      | <b>CJI</b> (or senior-most SC judge)                                      |
| Vice-President                        | Art. <b>69</b> — <b>not</b> 3rd Sch.                      | <b>President</b>                                                          |
| Governor                              | Art. <b>159</b> — <b>not</b> 3rd Sch.                     | <b>Chief Justice of that State's High Court</b> (or senior-most HC judge) |
| Union / State Ministers               | <b>3rd Schedule</b> — <b>office + secrecy</b> (two forms) | President / Governor                                                      |
| MPs / MLAs (and candidates)           | <b>3rd Schedule</b>                                       | President or person appointed / Governor or person appointed              |
| SC judges (incl. CJI)                 | <b>3rd Schedule</b>                                       | <b>President</b>                                                          |
| HC judges (incl. CJ)                  | <b>3rd Schedule</b> (Art. <b>219</b> )                    | <b>Governor</b>                                                           |
| CAG                                   | <b>3rd Schedule</b>                                       | <b>President</b>                                                          |
| AG / SG / AdvG / CEC / EC / UPSC–SPSC | <b>Not</b> named in 3rd Sch.                              | Appointing-authority practice                                             |

**Resignation one-liners (oath's twin):** President → **VP (56)**. VP → **President (67)**. Governor → **President (156)**. SC/HC judge → **President**. Speaker LS/LA → **Deputy**. RS Chairman **is** the VP → resigns as VP to the **President**, not to the Deputy Chairman.

Trap: Governor's oath = CJI. **State HC Chief Justice**. Trap: President's oath is in the 3rd Schedule. **Art. 60, outside it**.

Borrowed Features (Country-wise)

**Largest structural (संरचनात्मक) source is not a country:Government of India Act, 1935** — federal scheme, office of Governor, judiciary, Public Service Commissions, Emergency provisions, administrative detail.

| Source         | What India took                                                                                                                                                                             |
|----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| UK             | Parliamentary government · Cabinet · Rule of Law · legislative procedure · <b>single citizenship</b> · bicameralism · parliamentary privileges · <b>prerogative writs</b>                   |
| USA            | Fundamental Rights · <b>judicial review</b> · independence of judiciary · impeachment of President · removal of SC/HC judges · Preamble's form · Vice-President's office · equal protection |
| Ireland        | <b>DPSP</b> (राज्य के नीति निदेशक तत्व) · nomination of RS members · <b>method of electing the President</b>                                                                                |
| Canada         | Federation with a <b>strong Centre</b> · <b>residuary powers with the Centre</b> · Centre appoints Governors · <b>advisory jurisdiction</b> of the Supreme Court                            |
| Australia      | <b>Concurrent List</b> (समवर्ती सूची) · freedom of trade and commerce (Part XIII) · <b>joint sitting</b> of the two Houses                                                                  |
| USSR / Russia  | <b>Fundamental Duties</b> (मौलिक कर्तव्य) · Preamble's <b>social, economic and political justice</b>                                                                                        |
| France         | <b>Republic</b> · Preamble's <b>Liberty, Equality, Fraternity</b>                                                                                                                           |
| Weimar Germany | Suspension of Fundamental Rights during <b>Emergency</b>                                                                                                                                    |
| South Africa   | <b>Amendment procedure</b> (368) · election of <b>Rajya Sabha</b> members                                                                                                                   |
| Japan          | <b>Procedure established by law</b> (Art. 21)                                                                                                                                               |

Trap: Residuary = USA (States). **Canada / Centre**. Trap: DPSP = USA. **Ireland**. Trap: Duties = Ireland. **USSR**. Trap: Joint sitting = UK. **Australia**. Trap: "Procedure established by law" = USA due process. **Japan**; USA is due process.

Common Traps

| Trap                                    | Correct                                           |
|-----------------------------------------|---------------------------------------------------|
| Part XI = Municipalities / Tribunals    | <b>IXA / XIVA</b>                                 |
| AG sits in Part XIII                    | <b>Part V</b> , Art. 76                           |
| 9th Schedule = RS seats                 | <b>4th</b> Schedule                               |
| 8th has Bhojpuri                        | <b>22</b> , Bhojpuri <b>out</b>                   |
| 11th = 18 subjects                      | <b>29</b> / 12th = <b>18</b>                      |
| 6th Schedule includes UP                | <b>AMTM only</b>                                  |
| Art. 32 wider than 226                  | <b>226 is wider</b>                               |
| VP elected like the President           | <b>No MLAs</b>                                    |
| 352 ground still "internal disturbance" | <b>Armed rebellion</b> (44th)                     |
| 360 has been used                       | <b>Never</b>                                      |
| 358 kills all FR                        | Only <b>Art. 19</b> , and only war/aggression     |
| 359 can freeze 21                       | <b>Cannot</b> (44th)                              |
| Panchayat polls = ECI / 324             | <b>SEC / 243K</b>                                 |
| President's oath = 3rd Schedule         | <b>Art. 60</b>                                    |
| Governor oath = CJI                     | <b>State HC CJ</b>                                |
| 42nd = 1978                             | <b>1976</b> ; 44th is 1978                        |
| 9th Amd = 9th Schedule                  | Amd = <b>Berubari</b> ; Schedule = <b>1st Amd</b> |
| 106th is already filling seats          | Waits <b>delimitation</b>                         |
| Residuary = USA/States                  | <b>Canada / Centre</b>                            |
| DPSP = USA                              | <b>Ireland</b>                                    |
| Joint sitting = UK                      | <b>Australia</b>                                  |

Practice Zone — UPPCS Format Drill

**Answers hidden.** Full stems (not cryptic stubs). **155 questions** (Q1–70 number map · Q71–140 name map · Q141–155 gap-fill). ≥60% multi-statement / application. Mix: A/R, Match List, chronology, NOT-correctly-matched.

Complete PYQ Bank (Topic 26) — Parts, Schedules, Amendments

- UPPCS Prelims 2025, Q24 — Part XI — Municipalities is **NOT** matched. Municipalities = **IXA**.
- UPPCS Prelims 2025, Q102 — 8th Schedule: Nepali, Dogri, Bodo **in**; **Bhojpuri out**.
- UPPCS Prelims 2025, Q113 — Seventh / Eighth / Ninth / Tenth → Lists / Languages / Validation of Acts / Defection.
- UPPCS Prelims 2023, Q1 — Tribunals ≠ Part XI. Tribunals = **XIVA**.
- UPPCS Prelims 2023, Q7 — Ninth ≠ RS seats. RS seats = **Fourth**.
- UPPCS Prelims 2022, Q89 — 3rd Oaths · 4th RS · 7th Lists · 8th Languages.
- UPPCS Prelims 2020, Q110 — Attorney-General ≠ Part XIII. **Part V**.UPPCS Prelims 2024 — *Kesavananda* chronology; 42nd = **1976**.
- UPPCS Prelims 2025 — 42nd Preamble words = **Socialist, Secular** (not Sovereign / Republic — those were original).
- UPPCS Prelims 2021 — *Golaknath* → 24th → *Kesavananda* → 42nd.
- UPPCS Prelims 2022 — RTE = **86th**, not 103rd; NCT Delhi = **69th**.
- UPPCS Prelims 2024 — GST = **101st**; local bodies = **73rd + 74th**.

Mains link (one frame)

A one-liner sheet is a **match-list**, not a second Laxmikanth. **Number map:** Part XI is not municipalities; 4th Schedule (चौथी) is RS, 9th is land-reform validation; 226 is wider than 32; 352/356/360 are three switches; 324 is not 243K. Ireland DPSP, Canada residuary, Japan procedure, Australia joint sitting. Oaths: President **60** / VP **69** / Governor **159** live outside the Third Schedule.

Bodies · Committees · Offices · Cases · Parliament · UP

Quick Revision — Spine Only (bodies · Parliament · cases · UP)

CONSTITUTIONAL: 76 AG · 148 CAG · 165 AdvG · 243I/Y SFC · 243K/ZA SEC · 263 ISC  
279A GST Council · 280 FC · 315 UPSC/SPSC · 324 ECI · 338/A/B NCSC/ST/BC · 350B linguistic  
NITI is NOT here. NHRC/NCW are NOT here.

STATUTORY: Lokpal 2013 · CVC 2003 (Santhanam 1962 → exec 1964) · CIC RTI 2005 · NHRC 1993  
NGT 2010 · CAT 1985 (rides 323A) · NCW 1990 · NCM 1992 · SEBI 1992 · RBI Act 1934  
EXECUTIVE: NITI 1 Jan 2015 · NDC 1952 · CBI = 1963 resolution + DSPE 1946 (not “like CVC”)

OFFICES: CEC like SC judge; other ECs only on CEC rec. UPSC 6y/65; SPSC Governor appoints, PRESIDENT removes.  
CAG 6y/65, no further office. AG = pleasure, private practice OK, salary NOT charged. SG = no Article.

COMMITTEES: BR Mehta 1957 3-tier · Ashok Mehta 1977 2-tier · Singhvi 1986 constitutional PR  
Santhanam 1962 = CVC (1963 = PRI finance) · Swaran Singh 1976 duties  
Rajamannar 1969 abolish AIS/356 · Sarkaria 1983–88 keep Centre, ISC · Punchhi 2007–10 localise 356  
ISC constituted 1990 = Sarkaria NOT Punchhi. 1st FC = K.C. Neogy NOT Rajamannar.

PARLIAMENT: PAC 22 (15+7) Opposition chair, CAG. Estimates 30 LS-only, NO CAG. COPU 22 CAG-PSU.  
DRSC 24 × 31 (21+10) 1993. Zero Hour AFTER Question Hour. Adjournment / censure / no-conf = LS only.  
110 = Money Bill definition; 109 = RS 14 days. CAB: either House, no joint sitting, President shall assent.

CASES: Gopalan 1950 → Maneka 1978. Golaknath 1967 ≠ Basic Structure. Kesavananda 24 Apr 1973 7:6.  
Jabalpur 1976 Khanna dissent. Bommai 1994 floor test. NJAC struck 16 Oct 2015. Navtej = s.377 IPC.

UP: Capital Lucknow · HC Prayagraj (Lucknow Bench 1948) · LA 403 · LC 100 · LS 80 · RS 31  
Hindi 1951 / Urdu 1989 · UK 9 Nov 2000 · 18 divisions / 75 districts · UPPSC Prayagraj  
SEC Lucknow · CoM ≈ 60 · no 371 · no PESA · Noida ≠ Nigam · 17 SC / 0 ST LS seats

Confused pairs (bodies · Parliament · cases · UP)

| A              | B              | Fact                                                                                                                                                                                                                  | Hindi Terminology                                               |
|----------------|----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| 338B NCBC      | 340 commission | <b>338B</b> = the standing National Commission for Backward Classes (102nd, 2018). <b>340</b> = President <i>may</i> name a one-off inquiry (Kalelkar, Mandal). The 2024 paper used 340 as a match — know <b>both</b> | राष्ट्रीय पिछड़ा वर्ग आयोग (338B) / पिछड़ा वर्ग जाँच आयोग (340) |
| ECI 324        | SEC 243K       | Parliament / State Houses / President / VP vs <b>PRI + ULB</b>                                                                                                                                                        | भारतीय निर्वाचन आयोग / राज्य निर्वाचन आयोग                      |
| NHRC           | NCSC           | Statutory 1993 vs Constitutional <b>338</b>                                                                                                                                                                           | राष्ट्रीय मानवाधिकार आयोग / राष्ट्रीय अनुसूचित जाति आयोग        |
| NITI           | FC 280         | Executive think-tank <b>2015</b> vs tax-share Commission                                                                                                                                                              | नीति आयोग (2015) / वित्त आयोग (अनु. 280)                        |
| CAG            | PAC            | Audits and <b>reports</b> vs <b>examines</b> the report                                                                                                                                                               | कैग (लेखापरीक्षक) / लोक लेखा समिति (समीक्षा)                    |
| PAC            | Estimates      | 22, both Houses, CAG, Opposition chair vs <b>30, LS only, no CAG</b>                                                                                                                                                  | लोक लेखा समिति / प्राकलन समिति                                  |
| Art. 110       | Art. 109       | Money Bill <b>definition</b> vs RS <b>14-day</b> procedure                                                                                                                                                            | धन विधेयक परिभाषा / धन विधेयक विशेष प्रक्रिया                   |
| Sarkaria       | Punchhi        | ISC <b>1990</b> vs 2007–10 (Council already existed)                                                                                                                                                                  | सरकारिया आयोग (1983) / पुंछी आयोग (2007)                        |
| Santhanam 1962 | Santhanam 1963 | <b>CVC</b> vs <b>PRI finances</b>                                                                                                                                                                                     | संथानम समिति (सीवीसी) / संथानम समिति (पंचायती राज वित्त)        |
| Golaknath      | Kesavananda    | FR cannot be amended vs FR can, <b>basic structure</b> cannot                                                                                                                                                         | गोलकनाथ 1967 / केशवानंद भारती 1973                              |
| Navtej         | Art. 377       | <b>s.377 IPC</b> vs transitory <b>CAG</b> clause                                                                                                                                                                      | नवतेज जौहर (धारा 377) / अनुच्छेद 377 (कैग संक्रमण)              |
| UPPSC          | UP SEC         | Prayagraj, recruitment vs Lucknow, <b>local polls</b>                                                                                                                                                                 | उत्तर प्रदेश लोक सेवा आयोग / राज्य निर्वाचन आयोग                |

Frame

**Number map** first, then the **name map**: who is constitutional, who is only an Act, which committee said what, which case held what, which House device does what — plus the **UP pin**.

Constitutional Bodies

| Art. | Body             | One-liner                                                                                                                                                                 |
|------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 76   | Attorney-General | SC-judge qualify; <b>pleasure</b> of President; speak, <b>no vote</b> ; private practice OK except vs Gol; salary <b>not</b> charged                                      |
| 148  | CAG              | 6y or <b>65</b> ; removed like <b>SC judge</b> ; <b>no</b> further office; reports → President/Governor → House; India is <b>Auditor after spend</b> , not UK Comptroller |

| Art.                     | Body                                              | One-liner                                                                                                                                                                                                                  |
|--------------------------|---------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>165</b>               | Advocate-General                                  | HC-judge qualify; pleasure of <b>Governor</b>                                                                                                                                                                              |
| <b>243I / 243Y</b>       | State Finance Commission                          | <b>Governor</b> , every <b>5 years</b> ; same body for PRIs <b>and</b> ULBs                                                                                                                                                |
| <b>243K / 243ZA</b>      | State Election Commission                         | PRI + ULB polls; Governor appoints; removed like <b>HC judge</b>                                                                                                                                                           |
| <b>263</b>               | Inter-State Council                               | President <b>may</b> ; set up <b>28 May 1990</b> ; <b>PM</b> chairs; <b>Sarkaria</b> , not Punchhi                                                                                                                         |
| <b>279A</b>              | GST Council (जीएसटी परिषद)                        | Union FM chairs; Centre <b>1/3</b> + States <b>2/3</b> ; 3/4 weighted; <b>101st</b>                                                                                                                                        |
| <b>280</b>               | Finance Commission                                | President; Chair+ <b>4</b> ; every <b>5th year</b> ; 1st = <b>K.C. Neogy</b> ; report to <b>President</b> , not NITI                                                                                                       |
| <b>315</b>               | UPSC / SPSC / JPSC                                | UPSC: President; 6y/ <b>65</b> . SPSC: <b>Governor</b> appoints, <b>President</b> removes. JPSC: <b>Parliament</b> if States request                                                                                       |
| <b>321</b>               | Extra SPSC functions                              | <b>State Legislature</b> (2021 UP fact) — not President / DoPT                                                                                                                                                             |
| <b>324</b>               | Election Commission                               | Parliament + State <b>Legislatures</b> + President + VP. <b>Not</b> PRI/ULB. First CEC <b>Sukumar Sen</b> . First woman CEC <b>V.S. Ramadevi (1990)</b> . CEC like SC judge; other ECs <b>only on CEC's recommendation</b> |
| <b>338 / 338A / 338B</b> | NCSC (राष्ट्रीय अनुसूचित जाति आयोग) / NCST / NCBC | Lists <b>341 / 342 / 342A</b> . NCBC constitutional from <b>102nd, 2018</b> (was statutory 1993)                                                                                                                           |
| <b>339(1)</b>            | Ad hoc Scheduled-Areas commission                 | <b>Not</b> NCST                                                                                                                                                                                                            |
| <b>340</b>               | Ad hoc BC investigating commission                | Kalelkar / Mandal — <b>not</b> standing NCBC                                                                                                                                                                               |
| <b>344</b>               | Official Language Commission                      | Time-bound (Kher <b>1955</b> )                                                                                                                                                                                             |
| <b>350B</b>              | Special Officer, Linguistic Minorities            | <b>One</b> officer for all India; <b>7th Amd</b> , not 9th                                                                                                                                                                 |

**Independence toolkit (not every body gets all):** charged salary · removal like SC judge · conditions not varied to disadvantage · bar on further office.

Trap: ECI = Art. 165. **165 = AdvG**. Trap: FC = 263. **263 = ISC**. Trap: standing NCBC = 340. **338B**; 340 = inquiry.

## Statutory · Executive bodies

| Kind                                     | Test                                                                                                                                                    | Raata                                                                                                                                                                                                                                                                                                                                                 |
|------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Constitutional</b>                    | Born in the <b>Constitution</b>                                                                                                                         | ECI, UPSC, FC, CAG, AG, GST Council, NCSC/ST/BC, SEC, SFC, ISC, 350B                                                                                                                                                                                                                                                                                  |
| <b>Statutory</b>                         | Born in an <b>Act</b>                                                                                                                                   | Lokpal (लोकपाल) <b>2013</b> · CVC <b>2003</b> · CIC/SIC <b>RTI 2005</b> (अरटीआई 2005) · NHRC (राष्ट्रीय मानव अधिकार आयोग) <b>1993</b> · NGT <b>2010</b> · CAT <b>1985</b> · NCW <b>1990</b> · NCM (असहयोग) <b>1992</b> · NCPCR · NCSK · SEBI <b>1992</b> · RBI Act <b>1934</b> · NIA (राष्ट्रीय अन्वेषण एजेंसी) <b>2008</b> · Delimitation Commission |
| <b>Executive</b>                         | Resolution / order                                                                                                                                      | <b>NITI 1 Jan 2015</b> · Planning Commission (योजना आयोग) <b>1950</b> · <b>NDC 1952</b> · Law Commission of India                                                                                                                                                                                                                                     |
| Body                                     | One-liner                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                       |
| -----                                    | -----                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                       |
| <b>Lokpal</b> (लोकपाल)                   | 2013 Act. Chair + ≤8. Selection: PM + LS Speaker + <b>LoP LS</b> + CJI/nominee + jurist — <b>not</b> RS Chairman. 5y/70. First: <b>P.C. Ghose, 2019</b> |                                                                                                                                                                                                                                                                                                                                                       |
| <b>Lokayukta</b> (लोकायुक्त)             | State Act. First <b>Maharashtra 1971</b> . UP <b>1975</b> + Up-Lokayukta                                                                                |                                                                                                                                                                                                                                                                                                                                                       |
| <b>CVC</b>                               | Santhanam <b>1962</b> → executive <b>1964</b> → Act <b>2003</b> ( <i>Vineet Narain</i> ). <b>No constitutional article</b> (2020). Chair+2; 4y/65       |                                                                                                                                                                                                                                                                                                                                                       |
| <b>CIC</b>                               | RTI <b>12 Oct 2005</b> . 30 days (48h life/liberty). PIO penalty ≤ ₹25,000                                                                              |                                                                                                                                                                                                                                                                                                                                                       |
| <b>NHRC</b> (राष्ट्रीय मानव अधिकार आयोग) | PHRA <b>1993</b> — <b>statutory, not 338</b> . Recommendatory                                                                                           |                                                                                                                                                                                                                                                                                                                                                       |
| <b>NGT</b>                               | 2010. Principal Bench <b>Delhi</b> . Wildlife Protection (वन्यजीव सुरक्षा) Act <b>not</b> in its Schedule                                               |                                                                                                                                                                                                                                                                                                                                                       |
| <b>CAT</b>                               | 1985 Act; <b>enabled</b> by 323A — the tribunal itself is still <b>statutory</b> . Art. <b>226 survives</b>                                             |                                                                                                                                                                                                                                                                                                                                                       |
| <b>NITI</b> (नीति)                       | Cabinet Resolution <b>1 Jan 2015</b> . PM chairs. <b>Not</b> FC, <b>not</b> constitutional, <b>does not</b> allocate Plan funds                         |                                                                                                                                                                                                                                                                                                                                                       |
| <b>CBI</b> (केन्द्रीय अन्वेषण ब्यूरो)    | MHA resolution <b>1 Apr 1963</b> + <b>DSPE Act 1946</b> . Needs <b>State consent</b> (s.6) unless court orders                                          |                                                                                                                                                                                                                                                                                                                                                       |
| <b>NIA</b>                               | Act <b>2008</b> . <b>No</b> State consent for scheduled offences                                                                                        |                                                                                                                                                                                                                                                                                                                                                       |
| <b>IB / RAW (रॉ) / ED</b>                | IB <b>1887</b> MHA · RAW <b>1968</b> Kao, Cabinet Secretariat · ED <b>1956</b> FEMA/PMLA, Revenue                                                       |                                                                                                                                                                                                                                                                                                                                                       |

**Look-alike:** “National Commission for ...” is **not** automatically constitutional. **NCW / NCM / NCPCR / NCSK = statutory**. **NCSC / NCST / NCBC = constitutional**.

Upgrade path: CVC executive → statutory 2003 · NCBC statutory 1993 → constitutional **2018** · Planning Commission → **NITI** (still executive).

## Important Committees

| Committee                                  | Year             | One-liner                                                                           |
|--------------------------------------------|------------------|-------------------------------------------------------------------------------------|
| <b>Fazl Ali (SRC)</b>                      | <b>1953–55</b>   | States Reorganisation; <b>7th Amd / 1 Nov 1956</b> . Members Kunzru, Panikkar       |
| <b>Kalelkar</b>                            | <b>1953</b>      | First BC commission ( <b>340</b> ). Report not fully accepted                       |
| <b>Balwant Rai (राई) Mehta</b> (बलवंत राय) | <b>1957</b>      | <b>Three-tier</b> PR; block as the pivot                                            |
| <b>Santhanam (CVC)</b>                     | <b>1962</b>      | Prevention of corruption → CVC <b>1964</b>                                          |
| <b>Santhanam (PRI)</b>                     | <b>1963</b>      | <b>Panchayat finances</b> — do not mix with 1962                                    |
| <b>Kothari</b>                             | <b>1964–66</b>   | Education; 10+2+3. <b>Not</b> the ISC                                               |
| <b>1st ARC</b> (प्रथम एआरसी)               | <b>1966</b>      | <b>Morarji Desai</b> (आमिल) (then Hanumanthaiah). ~20 reports; Lokpal idea          |
| <b>Rajamannar</b>                          | <b>1969</b> (TN) | Residuary to <b>States</b> ; <b>abolish AIS</b> ; <b>repeal 356</b> ; asked for ISC |

| Committee                              | Year                      | One-liner                                                                                      |
|----------------------------------------|---------------------------|------------------------------------------------------------------------------------------------|
| <b>Mandal</b>                          | <b>1979</b> (report 1980) | 27% OBC (अन्य पिछड़ा वर्ग). Implemented 1990 → <i>Indra (इन्द्र) Sawhney</i>                   |
| <b>Swaran Singh</b>                    | <b>1976</b>               | Fundamental Duties (proposed 8; Constitution took <b>10</b> )                                  |
| <b>Ashok Mehta</b> (अशोक मेहता)        | <b>1977</b>               | <b>Two-tier</b> (Zila + Mandal); parties; constitutional status; <b>district</b> first         |
| <b>G.V.K. Rao</b> (जीवीके राव)         | <b>1985</b>               | District as the first point; PRIs “grass without roots”                                        |
| <b>L.M. Singhvi</b>                    | <b>1986</b>               | <b>Constitutional</b> status for PR; Gram Sabha as the base                                    |
| <b>P.K. Thungon</b>                    | <b>1988</b>               | Constitutional status + fixed 5-year term for PR — feeds <b>73rd</b>                           |
| <b>Tarkunde</b>                        | <b>1975</b>               | Jayaprakash Narayan era — electoral reforms (independent ECI, voting age)                      |
| <b>Sarkaria</b>                        | <b>1983–88</b>            | Strong Centre; <b>keep AIS &amp; 356</b> ; residuary with <b>Union</b> ; constitute <b>ISC</b> |
| <b>Punchhi</b>                         | <b>2007–10</b>            | Localised 356; strengthen ISC; Art. <b>201</b> time-cap. <b>Did not set up</b> the ISC         |
| <b>2nd ARC</b> (द्वितीय एआरसी)         | <b>2005–09</b>            | <b>Veerappa Moily</b> ; 15 reports                                                             |
| <b>NCRWC</b>                           | <b>2000</b>               | Justice <b>Venkatachaliah</b> — Constitution review                                            |
| <b>Dinesh Goswami</b>                  | <b>1990</b>               | Electoral reforms                                                                              |
| <b>Indrajit Gupta</b> (गुप्त)          | <b>1998</b>               | State funding of elections                                                                     |
| <b>Anandpur</b> (आनंदपुर) <b>Sahib</b> | <b>1973</b>               | Akali: Centre limited to defence, foreign, communications, currency                            |

**Chronology PR:** BR Mehta **1957** → Ashok Mehta **1977** → GVK Rao **1985** → Singhvi **1986**.

**Centre–State polarity, in one sentence each:**Rajamannar (TN, 1969) wanted residuary powers with **States, AIS abolished, 356 repealed. Sarkaria** (Union, 1983–88) wanted a **strong Centre, AIS and 356 kept**, and an **Inter-State Council** — which is why the Council that actually appeared in **1990** is tagged Sarkaria. **Punchhi** (2007–10) came **after** that Council already existed; he wanted **localised** 356 and a **time-cap on Art. 201**, not a new ISC.

Trap: ISC = Punchhi. **Sarkaria, 1990**. Trap: 1st FC = Rajamannar. **K.C. Neogy**. Trap: Santhanam = only CVC. There is also a **1963 PRI-finance** Santhanam.

### Constitutional Offices (identity one-liners)

| Office                  | Appoint                                 | Age / term       | Remove                                        | Resigns to                           |
|-------------------------|-----------------------------------------|------------------|-----------------------------------------------|--------------------------------------|
| <b>President</b>        | Electoral college (54)                  | 5y               | Impeachment <b>61</b>                         | <b>VP</b>                            |
| <b>VP</b>               | Both Houses (66)                        | 5y               | RS resolution + LS agree                      | <b>President</b>                     |
| <b>Governor</b>         | President                               | 5y / pleasure    | Pleasure                                      | <b>President</b>                     |
| <b>PM / CM</b>          | President / Governor                    | House confidence | House                                         | President / Governor                 |
| <b>CJI / SC judge</b>   | President (Collegium)                   | <b>65</b>        | Impeachment 124(4)                            | <b>President</b>                     |
| <b>CJ HC / HC judge</b> | President                               | <b>62</b>        | Same as SC                                    | <b>President</b> (oath was Governor) |
| <b>CEC</b>              | President (2023 panel <b>sans CJI</b> ) | 6y / <b>65</b>   | <b>Like SC judge</b>                          | President                            |
| <b>EC</b>               | Same                                    | 6y / 65          | <b>Only on CEC’s recommendation</b>           | President                            |
| <b>CAG</b>              | President                               | 6y / <b>65</b>   | Like SC judge                                 | President                            |
| <b>UPSC Chair</b>       | President                               | 6y / <b>65</b>   | Like SC judge                                 | President                            |
| <b>SPSC Chair</b>       | <b>Governor</b>                         | 6y / <b>62</b>   | <b>President</b> (SC inquiry on misbehaviour) | <b>Governor</b>                      |
| <b>AG</b>               | President                               | Pleasure         | Pleasure                                      | President                            |
| <b>AdvG</b>             | Governor                                | Pleasure         | Pleasure                                      | Governor                             |
| <b>SG</b>               | Executive                               | —                | —                                             | <b>No Article</b>                    |
| <b>SEC</b>              | Governor                                | As State law     | Like <b>HC judge</b>                          | —                                    |
| <b>Speaker LS / LA</b>  | House                                   | House life       | House                                         | <b>Deputy Speaker</b>                |

**Oath twin:** President **60**/CJI · VP **69**/President · Governor **159**/**State HC CJ**. Ministers/MPs/judges/CAG = **3rd Schedule**.

### Supreme Court Cases (one-liners)

| Year        | Case                                     | What was challenged · what the Court held                                                                                                                                                                                                                           |
|-------------|------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>1950</b> | <i>A.K. Gopalan</i>                      | Preventive detention under a valid Act. Held: Art. 21 is satisfied by <b>any procedure in a valid law</b> . Arts. 19, 21 and 22 were read <b>separately</b> (“silos”) — not as one liberty code                                                                     |
| <b>1951</b> | <i>Shankari Prasad</i>                   | Was the <b>1st Amendment</b> (9th Schedule, 15(4)) void as “law” under Art. 13? Held: <b>No</b> . Art. <b>368 can amend Fundamental Rights</b>                                                                                                                      |
| <b>1951</b> | <i>Champakam Dorairajan</i>              | Madras caste-based medical admissions vs Arts. 15/29. Held: the quota failed. Directly produced the <b>1st Amd / Art. 15(4)</b>                                                                                                                                     |
| <b>1960</b> | <i>Berubari</i> (Art. 143 reference)     | Giving the Berubari Union to Pakistan. Held: cession of Indian territory needs a <b>constitutional amendment</b> , not an ordinary Act. Also held (then) that the <b>Preamble is not part</b> of the Constitution — <i>Kesavananda</i> later reversed that bit      |
| <b>1965</b> | <i>Sajjan Singh</i>                      | <b>17th Amendment</b> (more Acts into the 9th Schedule). Held: valid, same as <i>Shankari</i> . Justice <b>Mudholkar</b> first hinted at “basic features”                                                                                                           |
| <b>1967</b> | <i>Golaknath</i>                         | 11-judge, <b>6:5</b> . Held: Fundamental Rights <b>cannot be amended</b> ; a 368 amendment is “law” under 13. Applied <b>prospectively</b> (old amendments stood). <b>This is not the Basic Structure case</b> — that is <i>Kesavananda</i>                         |
| <b>1973</b> | <i>Kesavananda Bharati</i>               | <b>24 April 1973</b> , 13-judge, <b>7:6</b> . Held: Parliament <b>may</b> amend any article, including FR, but <b>cannot destroy the basic structure</b> . Preamble <b>is</b> part of the Constitution. 24th Amd upheld, with that cap                              |
| <b>1975</b> | <i>Indira Nehru Gandhi vs Raj Narain</i> | 39th Amd had put the PM’s election beyond court review ( <b>329A(4)(5)</b> ). Held: that clause <b>struck</b> . Free and fair election is basic structure                                                                                                           |
| <b>1976</b> | <i>ADM Jabalpur (Habeas Corpus case)</i> | During the Emergency, could a detainee ask for habeas if Art. 21 was suspended? Majority: <b>no</b> . Justice <b>H.R. Khanna</b> dissented. <i>Puttaswamy</i> 2017 says the majority was <b>wrong</b> . 44th later locked Arts. <b>20 and 21</b> as unamendable     |
| <b>1978</b> | <i>Maneka Gandhi</i>                     | Passport impounded without a fair hearing. Held: the “procedure” in Art. 21 must be <b>fair, just and reasonable</b> . Arts. <b>14, 19 and 21</b> are read <b>together</b> . Still not the US due-process clause                                                    |
| <b>1980</b> | <i>Minerva Mills</i>                     | 42nd Amd had said a 368 amendment cannot be questioned in court ( <b>368(4)(5)</b> ) and had stretched 31C to <b>all</b> DPSP. Held: both <b>struck</b> . 31C survives only for <b>39(b) and 39(c)</b> . Limited amending power + FR–DPSP harmony = basic structure |

| Year        | Case                                                                         | What was challenged · what the Court held                                                                                                                                                                                                                                  |
|-------------|------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1981        | <i>Waman Rao</i>                                                             | Cut-off for 9th Schedule review = <b>24 Apr 1973</b> ( <i>Kesavananda</i> date)                                                                                                                                                                                            |
| 1981        | First Judges ( <i>S.P. Gupta</i> )                                           | On appointing HC/SC judges, “consultation” with the CJI did <b>not</b> mean concurrence. <b>Executive primacy</b>                                                                                                                                                          |
| 1992        | <i>Indra Sawhney</i> (Mandal)                                                | <b>27% OBC</b> quota in Union services <b>upheld</b> . Ceiling <b>50%</b> (except extraordinary). <b>Creamy layer</b> of OBCs excluded. <b>No reservation in promotion</b> (77th Amd later restored SC/ST promotion via 16(4A))                                            |
| 1992        | <i>Kihoto Hollohan</i>                                                       | 10th Schedule (anti-defection) <b>valid</b> . But para 7 (total bar on courts) <b>struck</b> . The Speaker’s defection order <b>can be reviewed</b> by a court                                                                                                             |
| 1993        | Second Judges                                                                | “Consultation” = <b>concurrence</b> . SC appointments by a <b>Collegium of CJI + 2</b> senior-most SC judges                                                                                                                                                               |
| 1994        | <i>S.R. Bommai</i>                                                           | President’s Rule ( <b>356</b> ) is <b>justiciable</b> . Majority is tested on the <b>floor of the House</b> , not in Raj Bhavan. Do <b>not</b> dissolve the Assembly before Parliament approves 356. Secularism is basic structure, so a communal ministry can justify 356 |
| 1997        | <i>Vishaka</i>                                                               | No statute yet on workplace sexual harassment. Court laid <b>binding guidelines</b> under 14/15/19/21 until Parliament passed the <b>POSH Act, 2013</b>                                                                                                                    |
| 1998        | Third Judges (Art. 143 advice)                                               | SC Collegium enlarged to <b>CJI + 4</b> . For HC judges: <b>CJI + 2</b>                                                                                                                                                                                                    |
| 2006        | <i>Rameshwar Prasad</i>                                                      | Bihar Assembly dissolved on a mere <b>apprehension</b> of horse-trading, without a floor test. <b>Struck</b>                                                                                                                                                               |
| 2007        | <i>I.R. Coelho</i>                                                           | 9-judge. A law put in the 9th Schedule <b>after 24 Apr 1973</b> can still be struck if it damages <b>basic structure</b> . 9th Schedule is not a “law-free island” after that date                                                                                         |
| 2013        | <i>Lily Thomas</i>                                                           | RPA <b>s.8(4)</b> gave sitting MPs/MLAs a <b>3-month cushion</b> after a conviction. <b>Struck</b> . A conviction of <b>2 years or more</b> (s.8(3)) disqualifies <b>at once</b>                                                                                           |
| 2013        | <i>PUCL</i>                                                                  | Voters must be able to reject all candidates. <b>NOTA</b> button on the EVM. <b>NOTA counts</b> ; it does <b>not</b> elect anyone                                                                                                                                          |
| 2015        | <i>Shreya Singhal</i>                                                        | IT Act <b>s.66A</b> (arrest for “offensive” online speech) <b>struck</b> as vague and as chilling Art. <b>19(1)(a)</b>                                                                                                                                                     |
| 16 Oct 2015 | NJAC ( <i>Supreme Court Advocates-on-Record Association</i> , Fourth Judges) | <b>99th Amendment</b> (NJAC) struck <b>4:1</b> . Judicial independence is basic structure. <b>Collegium returns</b> ; NJAC text is dead                                                                                                                                    |
| 2016        | <i>Nabam Rebia</i>                                                           | Arunachal. A Governor <b>cannot</b> advance or summon (अहित करना) a sitting so as to help one faction remove the Speaker                                                                                                                                                   |
| 2017        | <i>Puttaswamy</i>                                                            | 9-judge. <b>Privacy</b> is a Fundamental Right inside Art. <b>21</b> (and 14/19). <i>Jabalpur</i> majority expressly disapproved                                                                                                                                           |
| 2018        | <i>Navtej Johar</i>                                                          | <b>Section 377 of the Indian Penal Code</b> — criminalising consensual adult same-sex relations — <b>unconstitutional</b> . This is <b>not Article 377</b> of the Constitution. Art. 377 is a transitory clause about the <b>Auditor-General / CAG</b>                     |
| 2018        | <i>Joseph Shine</i>                                                          | IPC <b>s.497</b> (adultery as a crime, husband as the only aggrieved person) <b>struck</b> . Adultery can still be a <b>civil</b> ground in matrimonial law                                                                                                                |
| 1986        | <i>M.C. Mehta</i> ( <i>Oleum gas leak</i> )                                  | A hazardous industry owes <b>absolute</b> (निरपेक्ष) <b>liability</b> (no <i>Rylands</i> exceptions). A clean environment is read into Art. <b>21</b>                                                                                                                      |

Ladder: *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → 24th 1971 → *Kesavananda* 1973 → *Indira* 1975 → *Minerva* 1980.

Judges: 1981 executive → 1993 CJI+2 → 1998 CJI+4 → 2015 NJAC dead.

## Parliamentary Terms

| Term                                               | One-liner                                                                                                                                                                                                                                                          |
|----------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Question Hour</b> (प्रश्न काल)                  | <b>First hour</b> . Starred = oral + supplementary. Unstarred = written                                                                                                                                                                                            |
| <b>Zero Hour</b> (शून्य काल)                       | <b>Immediately after</b> Question Hour. Indian innovation <b>1962</b> . No voting (2021)                                                                                                                                                                           |
| <b>Calling Attention</b>                           | Indian innovation. Minister states; no voting. Both Houses                                                                                                                                                                                                         |
| <b>Adjournment (स्थगन) Motion</b> (स्थगन प्रस्ताव) | <b>Lok Sabha only</b> (Rajya Sabha has no such motion). To drop listed business and discuss a <b>definite, factual, urgent</b> public matter. Needs <b>50 members</b> to admit. Implies <b>censure</b> of the government. Not admitted if the matter is sub judice |
| <b>Censure Motion</b>                              | <b>Lok Sabha only. Must state reasons</b> . May target <b>one minister</b> , a group, or the whole Council. If passed, resignation is not automatic in theory — unlike no-confidence — but it is politically fatal                                                 |
| <b>No-confidence</b> (अविश्वास प्रस्ताव)           | <b>Lok Sabha only</b> (Art. 75(3)). <b>Need not state reasons</b> . Needs <b>50 members</b> to admit. If passed, the <b>entire Council of Ministers must resign</b> . Only one such motion at a time                                                               |
| <b>Privilege Motion</b>                            | Breach of privilege / contempt → Privileges Committee                                                                                                                                                                                                              |
| <b>Cut motions</b> (कटौती प्रस्ताव)                | On <b>Demands</b> , LS only: Policy <b>₹1</b> · Economy specified · Token <b>₹100</b>                                                                                                                                                                              |
| <b>Guillotine</b>                                  | Remaining demands voted <b>en bloc</b> when time is up                                                                                                                                                                                                             |
| <b>Point of Order</b>                              | Rules / Constitution inside the House — <b>not</b> merits. Chair <b>final</b>                                                                                                                                                                                      |
| <b>Motion of Thanks</b>                            | On Art. 87 address. Defeat in LS = loss of confidence                                                                                                                                                                                                              |
| <b>Whip</b>                                        | Party direction to vote. 10th Schedule: defy a whip on a <b>confidence / money / 10th-Sch.</b> vote → defection                                                                                                                                                    |
| <b>Quorum</b> (गणपूर्ति)                           | <b>1/10</b> of total membership (Art. <b>100 / 189</b> )                                                                                                                                                                                                           |
| <b>Lame-duck session</b>                           | Sitting after a new LS is elected but before the old House is done — India rarely uses the US sense                                                                                                                                                                |
| <b>Hung House</b> (त्रिशंकु सदन)                   | No party/pre-poll alliance has a majority. Sarkaria invite: <b>pre-poll</b> → <b>largest party</b> → <b>post-poll</b> , then <b>floor test</b>                                                                                                                     |
| <b>Snap poll</b>                                   | Early general election after dissolution (विघटन)                                                                                                                                                                                                                   |
| <b>Crossing the floor</b>                          | Leave the party you were elected on — 10th Schedule territory                                                                                                                                                                                                      |
| <b>Pro tem Speaker</b>                             | Administers oath to new LS; elected by convention as senior-most; <b>not</b> in the Constitution by that name                                                                                                                                                      |
| <b>Leader of Opposition</b>                        | Largest opposition party with ≥ <b>10%</b> of House strength (salary statute). Recognised by Speaker/Chairman                                                                                                                                                      |
| <b>Prorogation</b> (सत्रावसान)                     | Ends a <b>session</b> . Bills do <b>not</b> lapse. <b>Dissolution</b> (विघटन) ends the <b>LS</b> — some Bills lapse                                                                                                                                                |
| <b>Vote on Account</b>                             | Advance grant for a <b>few months</b> (usually ~2/12 of annual) when the full Budget cannot be passed before 31 Mar. <b>LS only</b>                                                                                                                                |
| <b>Vote of Credit</b>                              | Blank-cheque grant for an <b>unexpected</b> demand (war) — amount not specified in detail                                                                                                                                                                          |
| <b>Exceptional Grant</b>                           | One-off special purpose, not part of ordinary service of the year                                                                                                                                                                                                  |
| <b>Excess Grant</b>                                | Spent <b>more</b> than voted — PAC (लोक लेखा समिति) first, then LS vote, then Appropriation                                                                                                                                                                        |
| <b>Charged vs voted</b>                            | Charged (President, judges, CAG, debt...) is <b>discussed, not voted</b> . Voted = Demands for Grants                                                                                                                                                              |
| <b>Three funds</b>                                 | <b>CFI 266(1) · Public Account 266(2) · Contingency Fund 267</b>                                                                                                                                                                                                   |
| <b>Joint sittings held</b>                         | Only <b>three</b> : Dowry Prohibition <b>1961</b> · Banking Companies <b>1978</b> · POTA <b>2002</b> . Presiding = <b>Speaker</b>                                                                                                                                  |
| <b>Office of profit</b>                            | Arts. <b>102 / 191</b> . Parliament/State law may <b>exempt</b> . Joint Committee advises                                                                                                                                                                          |
| <b>NOTA</b>                                        | <i>PUCL</i> <b>2013</b> . Counts; <b>cannot</b> elect a candidate                                                                                                                                                                                                  |

| Term                   | One-liner                                                            |
|------------------------|----------------------------------------------------------------------|
| Speaker's casting vote | Only on a <b>tie</b> (Art. 100). Does not vote in the first instance |

Parliamentary Committees

| Committee                 | Strength                                  | Chair / fact                                                                                      |
|---------------------------|-------------------------------------------|---------------------------------------------------------------------------------------------------|
| PAC                       | 22 = 15 LS + 7 RS                         | Opposition LS member (since <b>1967</b> ). <b>CAG</b> reports. Born <b>1921</b>                   |
| Estimates (प्राकलन समिति) | <b>30 — all LS, no RS</b>                 | Ruling party. <b>No CAG</b> . Born <b>1950</b> . Often "largest" among the <b>financial three</b> |
| COPU                      | 22 = 15+7                                 | CAG on <b>PSUs</b> . Born <b>1964</b>                                                             |
| DRSC                      | 24 committees × <b>31</b> (21 LS + 10 RS) | <b>1993</b> . 16 under Speaker, 8 under RS Chairman. Recommendatory                               |
| BAC                       | LS <b>15</b> incl. Speaker                | Allots <b>time</b>                                                                                |
| Privileges                | LS 15 / RS 10                             | Breach / contempt                                                                                 |
| Ethics                    | RS <b>1997</b> , LS <b>2000</b>           | Conduct of members                                                                                |
| Subordinate Legislation   | LS 15 / RS 15                             | Rules under an Act — intra vires?                                                                 |
| Government Assurances     | LS from <b>1953</b>                       | Promises on the floor                                                                             |
| Petitions                 | —                                         | Public petitions                                                                                  |
| Office of Profit          | Joint                                     | Which offices are <b>exempt</b> from DQ                                                           |
| Consultative Committees   | —                                         | <b>Extra-constitutional</b> ; Ministry of Parliamentary Affairs — <b>not</b> a House committee    |

**Standing** = continuous. **Ad hoc** = Select (one House) / Joint (both) on a **specific Bill**, then die.  
**No minister** on PAC / Estimates / COPU / DRSC. Members by PR-STV, usually **1 year**.  
Trap: Estimates has RS members. **No**. Trap: PAC chair = ruling party. **Opposition**. Trap: DRSC can move cut motions. **Cannot**.

Bills

| Bill                       | Where introduced                                                                  | RS power                        | Joint sitting    | President                              |
|----------------------------|-----------------------------------------------------------------------------------|---------------------------------|------------------|----------------------------------------|
| Ordinary (107)             | Either House                                                                      | Amend / reject                  | <b>Yes (108)</b> | Assent / withhold / <b>return once</b> |
| Money (110 def / 109 proc) | <b>LS only</b> + President's rec.                                                 | <b>14 days</b> , recommendatory | <b>Never</b>     | <b>Cannot return</b>                   |
| Financial I (117(1))       | <b>LS only</b> + rec. for introduction                                            | Amend / reject                  | Yes              | Can return                             |
| Financial II (117(3))      | Either House; rec. for <b>consideration</b>                                       | Amend / reject                  | Yes              | Can return                             |
| Finance Bill (वित्त)       | Annual tax Bill with Budget; usually <b>certified Money Bill</b> ; <b>75 days</b> | as Money Bill                   | No               | as Money Bill                          |
| Appropriation (114)        | <b>Money Bill</b> . No amendment of amount/destination                            | 14 days                         | No               | Cannot return                          |
| CAB (368)                  | <b>Either House</b> . Special majority each; some need <b>half the States</b>     | Equal House                     | <b>Never</b>     | <b>Shall assent</b> (24th)             |
| Art. 3                     | Either House + President's rec.                                                   | Equal                           | Yes (ordinary)   | —                                      |
| Private Member             | Non-minister; <b>Fridays</b> ; 1 month's notice                                   | Same stages                     | —                | —                                      |

**Expressly NOT a Money Bill (110(2))**: fines · licence fees · **local** taxes.  
**Lapse on LS dissolution**: pending in LS · passed by LS pending in RS. **Does not lapse**: pending only in RS (never passed LS) · pending **assent** · joint sitting already summoned.  
**Prorogation does not lapse Bills**.  
Trap: 109 = definition. **110 = definition**; **109 = procedure**. Trap: CAB in RS is illegal. **Either House**. Trap: Money Bill can start in RS. **Never**.

UP Polity Quick Facts

| Pin                                  | Fact                                                                                                                                                                                                                     |
|--------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Capital / Raj Bhavan / Vidhan Bhavan | <b>Lucknow</b> (लखनऊ)                                                                                                                                                                                                    |
| High Court                           | Principal seat <b>Prayagraj</b> (प्रयागराज) (Letters Patent <b>17 Mar 1866</b> ; first sat <b>Agra</b> (आगरा), to Allahabad <b>1869</b> ). First CJ <b>Walter Morgan</b>                                                 |
| Lucknow Bench                        | <b>1948</b> amalgamation; Chief Court of Oudh <b>1925</b> . Permanent <b>Bench</b> , not a second HC. Classical <b>12 Avadh</b> districts                                                                                |
| LA                                   | <b>403</b> (was <b>425</b> ). Largest in India. Age 25. Speaker resigns to Deputy                                                                                                                                        |
| LC                                   | <b>100</b> = 36 local + 8 graduates + 8 teachers + 36 MLAs + 12 nominated. Cannot be <b>dissolved</b> (can be <b>abolished</b> , 169). Age 30                                                                            |
| LS / RS from UP                      | <b>80 / 31</b> (were 85 / 34). <b>17 SC</b> , <b>0 ST</b> LS seats                                                                                                                                                       |
| CoM cap                              | <b>15% of 403 ≈ 60</b> including CM (91st)                                                                                                                                                                               |
| Presidential vote-value              | UP MLA = highest (textbook <b>208</b> )                                                                                                                                                                                  |
| Language                             | Hindi Devanagari <b>1951</b> ; Urdu second <b>1989</b> . Region <b>A</b>                                                                                                                                                 |
| Uttarakhand (उत्तराखंड)              | <b>9 Nov 2000</b> (not 1 Nov). Born <b>Uttaranchal</b> ; rename <b>1 Jan 2007</b> . First Governor <b>Barnala</b> , first CM <b>Nityanand Swami</b> (स्वामी). <b>13</b> districts. HC <b>Nainital</b> (नैनीताल)          |
| Divisions / districts                | <b>18 / 75</b> . Faizabad → <b>Ayodhya</b> (अयोध्या). Devipatan HQ <b>Gonda</b>                                                                                                                                          |
| UPPSC                                | <b>Prayagraj</b> , <b>1937</b> . Governor appoints; <b>President</b> removes; <b>62/6y</b> ; functions by <b>UP Legislature (321)</b>                                                                                    |
| UP SEC (राज्य निर्वाचन आयोग)         | <b>Lucknow</b> . 243K+ZA. Removed like <b>HC judge</b>                                                                                                                                                                   |
| UP SFC                               | Governor, 5y, 243I+Y                                                                                                                                                                                                     |
| Lokayukta                            | UP Act <b>1975</b> (Maharashtra 1971 first). Classically <b>8 years</b> , no reappointment                                                                                                                               |
| PR                                   | Gram ( <b>Pradhan</b> ) → <b>Kshetra</b> ( <b>Pramukh</b> ) → Zila ( <b>Adhyaksha</b> ). Acts <b>1947 / 1961</b> . Women <b>50%</b> (State; Constitution floor 1/3). <b>No PESA</b> . Gram Sabha = <b>electoral roll</b> |
| ULB                                  | Nigam 1959 · Palika/Panchayat 1916. Mayor (महापौर) ≠ <b>Nagar Ayukt</b> . Cantonment = Defence. <b>Noida / GNIDA / YEIDA ≠ Nigam</b> (243Q)                                                                              |
| Not UP                               | <b>No Art. 371</b> . <b>No 5th/6th Schedule</b> ( <b>6वीं अनुसूची</b> ). Manipur LA is <b>60</b> not 62                                                                                                                  |

First Governor **Sarojini Naidu** (1947). First CM **G.B. Pant**. First woman CM **Sucheta Kripalani** (1963).

## Common Traps (bodies · Parliament · cases · UP)

| Trap                                  | Correct                                            |
|---------------------------------------|----------------------------------------------------|
| Standing NCBC = 340                   | <b>338B</b> ; 340 = Kalelkar/Mandal <b>inquiry</b> |
| NHRC / NCW = constitutional           | <b>Statutory</b>                                   |
| NITI = FC / constitutional            | <b>Executive, 2015</b>                             |
| ECI conducts Nagar Nigam polls        | <b>SEC</b>                                         |
| SPSC removed by Governor              | <b>President</b>                                   |
| AG salary charged / impeached         | <b>Pleasure</b> ; not charged                      |
| SG is in Art. 76                      | <b>No Article</b>                                  |
| ISC = Punchhi                         | <b>Sarkaria, 1990</b>                              |
| Rajamannar = 1st FC                   | <b>K.C. Neogy</b>                                  |
| Estimates = both Houses / CAG         | <b>LS only, no CAG</b>                             |
| PAC chair = ruling party              | <b>Opposition</b> since 1967                       |
| Zero Hour = first hour                | <b>After</b> Question Hour                         |
| 109 = Money Bill definition           | <b>110</b>                                         |
| CAB needs joint sitting               | <b>Forbidden</b>                                   |
| <i>Golaknath</i> = Basic Structure    | <b><i>Kesavananda</i> 1973</b>                     |
| <i>Navtej</i> = Art. 377              | <b>s.377 IPC</b> ; Art. 377 = <b>CAG</b>           |
| UP LA = 425 / LS = 85                 | <b>403 / 80</b> after 9 Nov 2000                   |
| Noida = Nagar Nigam                   | <b>243Q industrial township</b>                    |
| Joint sitting used for every deadlock | Only <b>three</b> times; never for Money/CAB       |
| NOTA wins the seat                    | Counts; <b>elects nobody</b>                       |
| Vote on Account = Vote of Credit      | Advance months vs <b>blank-cheque</b> emergency    |

## Complete PYQ Bank (Topic 26) — Bodies, Parliament, Cases, UP

**UPPCS Prelims 2024, Q125** — Body–article match. 165 = AdvG, 148 = CAG, 263 = ISC. Standing NCBC = **338B**; **340** = investigating commission — learn both.

**UPPCS Prelims 2021** — Inter-State Council constituted after **Sarkaria**, not Punchhi.

**UPPCS Prelims 2021, Q133** — UPPSC functions extended by **UP Legislature** (321).

**UPPCS Prelims 2021, Q81** — SPSC member removed by **President** after SC enquiry.

**UPPCS Prelims 2021, Q141** — Zero Hour = time **immediately after** Question Hour.

**UPPCS Prelims 2019, Q33** — Money Bill **defined** in **Art. 110**.

**UPPCS Prelims 2021, Q37** — Money Bill **cannot** be first introduced in RS.

**UPPCS Prelims 2023, Q17** — Panchayat elections = **SEC**. No “Panchayati Raj Commission of India.”

**UPPCS Prelims 2023, Q14** — UP RS **31** and LS **80**. Both true.

**UPPCS Prelims 2022, Q14** — Manipur **62** is the NOT-matched pair (actual **60**).

**UPPCS Prelims 2018, Q148** — LC can be **abolished**, not dissolved.

**UPPCS Prelims 2018** — *Navtej* = **s.377 IPC**, not Art. 377.

**UPPCS Prelims 2020** — CVC has **no** constitutional article.

**UPPCS Prelims 2025, Q42** — PAC reports to the **Lok Sabha** (CAG-examining, Opposition chair).

## Practice Zone — Bodies, Parliament, Cases, UP

### Mains link (one frame)

**Number map** then **name map**. Close on: **338B is not 340**; **ECI is not SEC**; **PAC has the CAG**, **Estimates does not**; **110 defines a Money Bill** (धन विधेयक), **109 times the Rajya Sabha**; ***Kesavananda* 1973 is Basic Structure**, ***Golaknath* is not**; ***Navtej* is s.377 IPC**. Joint sitting has been used only **three** times. UP pin: **403 / 100 / 80 / 31** · Lucknow = government + SEC · Prayagraj = HC + UPPSC · **9 Nov 2000**.

Must-Score Facts (High-Yield UKPCS)

- 1. **Assembly Reservation Architecture:**  
 $\text{Total Seats: } 70 = \text{General (55)} + \text{SC Reserved (13)} + \text{ST Reserved (2: Chakrata \& Nanakmatta)}$
- 2. **Lok Sabha Representation (5 Seats):**  
Out of 5 Lok Sabha seats, **Almora** (अल्मोड़ा) is exclusively reserved for **Scheduled Castes (SC)**. The remaining four (चातुर्यमि) (Tehri, Garhwal, Haridwar, Nainital-US Nagar) are unreserved general constituencies.
- 3. **State Executive Composition (UKPCS 2025 Q139):** The executive consists of the Governor (Head of State under Article 153/154) and the Council of Ministers headed by the Chief Minister (Article 163/164). Both arms are co-constitutive of the executive branch.
- 4. **Harbans Kapoor Record (UKPCS 2025 Q141):** Senior Dehradun legislator who uniquely discharged the duties of **Speaker** (2007–2012) and **Protem Speaker** on more than one occasion in the Uttarakhand Assembly.
- 5. **N. D. Tiwari Landmark:** The only Chief Minister in the entire history (इतिहास) of Uttarakhand to complete an unbroken full 5-year tenure (2002 to 2007).

### Must-Score Facts

---

1. UKPSC = state PSC.
  2. Advocate General ≠ Attorney General of India.
  3. First AG often listed as Nanda Ballabh Tiwari — still verify against the specific stem.
  4. Do not confuse State Finance Commission (वित्त आयोग) chair with PSC chair.
  5. Fund articles belong with the Funds chapter, not this PSC card.
-

### Must-Score Facts

---

1. High Court seat = **Nainital**.
  2. Mobile vans = courtroom + IT connectivity.
  3. Aim = doorstep justice for remote areas.
  4. Working description and purpose of mobile courts can both be true in the same stem.
  5. Do not relocate the High Court to Dehradun in a seat stem.
-

Must-Score Facts

---

- 1. Five STs = Jaunsari, Tharu, Bhotia, Buksa, Raji.
  - 2. Declared ST in **1967**.
  - 3. Do not pick 1969/1970 on year stems.
  - 4. Official language card = Hindi.
  - 5. Raji geography detail → Geography UK Topic 6.
-

### Must-Score Facts

---

1. Consolidated Fund ≠ Contingency Fund.
  2. Contingency Fund = unforeseen advances (Art. 267(2) idea).
  3. Assembly polls → EC; local polls → SEC.
  4. State Finance Commission ≠ UKPSC.
  5. Do not invent UK-only fund articles beyond the general state pattern.
-

### Must-Score Facts (High-Yield UKPCS)

---

1. **Uttarakhand Panchayati Raj Amendment Act, 2019: - Educational Qualification:**

- General Candidates: Must have passed **Class 10th (High School)**.
- SC/ST & Female Candidates: Must have passed **Class 8th** (Class 5th for SC/ST women in Gram Panchayat).
- **Two-Child Norm:** Anyone having more than two living children after the notified cut-off date is legally disqualified from contesting elections to any tier of Panchayati Raj.
- **Household Sanitation:** Must have a functional residential toilet.

2. **Panchayat Register Ratta (UKPCS 2025 Q134):** Gram Panchayats are statutorily required to maintain: - *Kutumb / Parivar Register* (Family Register) - *Janam-Mrityu Register* (Birth and Death Register) - *Anudan Register* (Grant / Financial Register) - *(The Health Register is maintained by ANMs / Primary Health Centres, NOT Panchayats)*.

3. **50% Women Reservation Benchmark (2008):** In March 2008, Uttarakhand became one of the earliest states to enhance women's reservation in all three tiers of Panchayati Raj from 33% to **50%**.

4. **Van Panchayats (Forest Councils):** Uttarakhand is the **only state in India** with statutory, democratic community forestry institutions. Established under the **Forest Grievances Committee (1921)** headed by P. Wyndham; first formalized under the **Kumaon (कुमाऊँ) Van Panchayat Rules, 1931**. Over 12,000 Van Panchayats manage community forests today.

---

### Must-Score Facts (High-Yield UKPCS)

- 1. Uniform Civil Code (UCC) of Uttarakhand (2024) Milestones:** - *Drafting Committee Head:* Retired SC Judge **Justice Ranjana Prakash Desai** (constituted May 2022). - *Vidhan Sabha (विधानसभा) Passed:* **7 February 2024**. - *Presidential Assent (Droupadi Murmu):* **11 March 2024**. - *Key Highlights:*
    - Prohibits polygamy and bigamy across all religions.
    - Abolishes practices like *Halala*, *Iddat*, and triple talaq.
    - Guarantees **equal inheritance rights** for sons and daughters.
    - Mandates **registration of live-in relationships** within 1 month.
    - Sets uniform marriageable age: **21 for males, 18 for females**.
    - Explicit Exemption:** The tribal (आदिवासी) communities (Scheduled Tribes under Art. 366(25)) are excluded from its purview to protect customary tribal traditions.
  - 2. Uttarakhand Human Rights Commission (UHRC) (UKPCS 2025 Q140):** - Formally constituted on **13 May 2013**. - Headquartered at Dehradun (देहरादून). - 1st Chairperson: **Justice Vijender Jain** (former Chief Justice of Punjab & Haryana High Court). - Core statutory mandate: Inquire into human rights violations and enforce accountability and transparency in public governance.
  - 3. Uttarakhand Right to Service Act, 2011:** - Enacted on **4 October 2011** (under CM B. C. Khanduri). - Created the **Uttarakhand Right to Service Commission**. - Imposes a daily financial penalty (₹250 to ₹5,000) deducted from the salary of a delinquent Designated Officer who fails to deliver public services (domicile, caste certificates, water connections) within the specified timeframe.
  - 4. Anti-Cheating / Anti-Paper Leak Act, 2023:** - Enacted as the *Uttarakhand Competitive Examination (Measures for Prevention and Redressal of Unfair Means in Recruitment) Act, 2023*. - Provisions: Offences are non-bailable and cognizable; organizers of paper leaks face **life imprisonment and ₹10 Crore fine** plus property confiscation; candidates caught cheating are debarred for **10 years**.
  - 5. Sanskrit as Second Official Language:** In January 2010, Uttarakhand became the **first state in India** to accord **Sanskrit** the status of second official language alongside Hindi.
-